

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101, San Luis Obispo, California 93401**

**ORDER NO. R3-2021-0001
NPDES NO. CA0047953**

**WASTE DISCHARGE REQUIREMENTS
FOR THE CITY OF EL PASO DE ROBLES
WASTEWATER TREATMENT PLANT**

The following Discharger is subject to waste discharge requirements (WDRs) set forth in this Order:

Discharger	City of El Paso de Robles
Name of Facility	City of El Paso de Robles Wastewater Treatment Plant
Facility Address	3200 Sulphur Springs Road Paso Robles, CA 93446 San Luis Obispo County

Table 1. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
001B	Secondary and Tertiary Treated Domestic Wastewater	35.653°	-120.690°	Salinas River
001C	Secondary and Tertiary Treated Domestic Wastewater	35.650°	-120.686°	Salinas River
002A	Tertiary Treated Domestic Wastewater	35.642°	-120.644°	Huerhuero Creek
002B	Tertiary Treated Domestic Wastewater	35.658°	-120.643°	Huerhuero Creek
003	Tertiary Treated Recycled	--	--	Reclamation Use

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
	Domestic Wastewater			

This Order was adopted on:

April 16, 2021

This Order shall become effective on:

July 1, 2021

This Order shall expire on:

June 30, 2026

The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDRs in accordance with title 23, California Code of Regulations and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than **January 1, 2026**. The U.S. Environmental Protection Agency (U.S. EPA) and the California Regional Water Quality Control Board, Central Coast Region have classified this discharge as follows: Major.

I, Matthew T. Keeling, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of an order adopted by the California Regional Water Quality Control Board, Central Coast Region on the date indicated above.

for Matthew T. Keeling, Executive Officer

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1. FACILITY INFORMATION

The City of El Paso de Robles (Discharger) is the owner and operator of the City of El Paso de Robles Wastewater Treatment Plant (Facility), a publicly owned treatment works (POTW). Information describing the Facility is summarized on the cover page and in sections 1 and 2 of the Fact Sheet (Attachment F). Section 1 of the Fact Sheet also includes information regarding the Facility's permit application.

2. FINDINGS

The California Regional Water Quality Control Board, Central Coast Region (Central Coast Water Board) finds:

- 2.1. **Legal Authorities.** This Order serves as waste discharge requirements (WDRs) pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as a NPDES permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 1 subject to the WDRs in this Order.
- 2.2. **Background and Rationale for Requirements.** The Central Coast Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E are also incorporated into this Order.
- 2.3. **Provisions and Requirements Implementing State Law.** Some provisions/requirements in this Order are included to implement state law only. These provisions/requirements are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- 2.4. **Water Reclamation Requirements for Recycled Water Production and Use.** This Order allows the production and onsite and limited offsite use of disinfected tertiary treated wastewater in compliance with applicable state and local requirements regarding the production and use of reclaimed wastewater, including those requirements established by the California Department of Public Health in title 22, sections 60301 - 60357 of the California Code of Regulations, Water Recycling Criteria. Additionally, this Order includes water reclamation requirements for the Facility pursuant to the State Water Resources Control Board's (State Water Board's) Division of Drinking Water recommendations submitted to the Central Coast Water Board. The distribution and offsite reuse of recycled water produced by the Facility is subject to the State Water Resources Control Board's (State Water Board) General Water Reclamation Requirements for Recycled Water Use (State Water Board Order No. WQ 2016-0068-DDW), or other applicable permit, dependent on final use.

- 2.5. Provision of New Discharge Locations at Huerhuero Creek.** This Order permits the Discharger to continue discharging to the Salinas River at its current discharge locations and adds two new discharge locations in Huerhuero Creek. The Discharger plans to discharge to Huerhuero Creek only when there is no natural surface flow and will manage the discharge to prevent it from resulting in surface flow in the channel, erosion, or habitat creation. Discharging tertiary treated effluent to the Huerhuero Creek will help bring the Paso Robles Groundwater Basin to sustainable yields. Additional findings related to the new discharge locations, including consideration of federal and state antidegradation requirements, are in the Fact Sheet.
- 2.6. Response to Climate Change.** Climate change refers to observed changes in regional weather patterns such as temperature, precipitation, and storm frequency and size. At the local scale, within urbanized areas, climate change may directly impact groundwater and surface water supply; drainage, flooding, and erosion patterns; and ecosystems and habitat. This shift in climate, combined with California's growing population, has increased reliance on pumping, conveying, treating, and heating water, increasing the water sector's greenhouse gas emissions. The State Water Board's Resolution No. 2017-0012, *Comprehensive Response to Climate Change*, requires a proactive response to climate change in all California Water Board actions, with the intent to embed climate change consideration into all programs and activities. Aligning with Resolution No. 2017-0012, this Order supports the Discharger's Facility improvements to remove treatment facilities from the 100-year floodplain, reduce its carbon footprint, and produce commercial-grade fertilizer to offset demand for mining of natural resources. Also aligning with Resolution No. 2017-0012 and the State Water Board's *Water Quality Control Policy for Recycled Water*, this Order permits new discharge locations in Huerhuero Creek to help bring the Paso Robles Groundwater Basin to sustainable yields, supports providing recycled water for direct non-potable reuse to help offset demand on potable water supplies, permits the Discharger's use of recycled water at the facility and for sanitary sewer cleaning and maintenance, and supports maintaining discharge to the Salinas River to support riparian habitat. This Order increases local water supply reliability as a climate adaptation strategy, in addition to maintaining instream discharges to provide water quality benefits and enhanced aquatic habitats. Additionally, to incorporate proactive planning for the future, this Order requires the Discharger to identify and plan for hazards and vulnerabilities at the Facility exacerbated by climate change.
- 2.7. Human Right to Water.** Consistent with the human right to water stated in California Water Code section 106.3, subdivision (a), and the Central Coast Water Board's Resolution No. R3-2017-0004, this Order promotes actions that advance the human right to water and discourages actions that delay or impede opportunities for communities to secure safe, clean, affordable, and accessible water adequate for human consumption, cooking, and sanitary purposes. This Order incorporates requirements to support the Discharger in providing recycled water for direct non-potable beneficial reuse and to alleviate overdraft conditions in the Paso Robles Groundwater Basin. Diversification of the City's water supply

portfolio is necessary to better prepare for uncertainties in water resources due to the changing climate. This Order implements recently updated mercury water quality objectives, which are more stringent than previous objectives, in order to more adequately protect beneficial uses related to water and fish consumption.

2.8. Disadvantaged Community Status. On January 26, 2017, the Central Coast Water Board approved Resolution No. R3-2017-0004, *Adopting the Human Right to Water as a Core Value and Directing Its Implementation in Central Coast Water Board Programs and Activities*, which adopts the human right to water as a core value and affirms the realization of the human right to water and protecting human health as the Central Coast Water Board's top priorities. To meet the objectives of the resolution, staff has evaluated the disadvantaged community status for the Discharger. Using 2016 census data, the California Department of Water Resources Disadvantaged Community (DAC) Mapping Tool¹ identifies two block groups as disadvantaged communities and two block groups as severely disadvantaged communities in the City of El Paso Robles de Robles, accounting for approximately one quarter of the city population as disadvantaged communities. The Facility and the Salinas River discharge points are located within the block groups identified as severely disadvantaged. The tool defines a disadvantaged community as a census block with a median household income between \$38,270 and \$51,026 and a severely disadvantaged community as a census block with a median household income less than \$38,270.

2.9. California Environmental Quality Act. Under California Water Code section 13389, this action to adopt an NPDES permit for the discharge of waste to surface waters is exempt from the California Environmental Quality Act (CEQA) provisions in Public Resources Code, Division 13, Chapter 3. The action to adopt groundwater receiving water limitations for discharges from the Facility to the Salinas River is exempt from CEQA as a permitting action for an existing facility under 14 California Code of Regulations section 15301.

This action to adopt new recycling requirements for the Facility to produce disinfected tertiary recycled wastewater for distribution is not exempt from the provisions of CEQA. This action to adopt groundwater receiving water limitations for discharges from the Facility to Huerhuero Creek is not exempt from the provisions of CEQA. The Discharger completed an Initial Study/Mitigated Negative Declaration in August 2018 for the construction of a recycled water distribution system that would divert a portion of disinfected tertiary municipal wastewater from the Discharger's existing Facility discharge points at the Salinas River for recycled water use and discharge of surplus recycled water to the Salinas River and Huerhuero Creek. The Central Coast Water Board, as a responsible agency under CEQA, has reviewed and considered the August 2018 Initial Study/Mitigated

¹ The DAC Mapping Tool is used to inform statewide Integrated Water Resources Management (IRWM), Sustainable Groundwater Monitoring Act (SGMA), and California Water Plan implementation efforts and can be found at the following website: <https://gis.water.ca.gov/app/dacs/>.

Negative Declaration and makes its own conclusions on whether and how to approve the recycling requirements for the Facility and how to establish groundwater receiving water limitations for discharges from the Facility to Huerhuero Creek. The August 2018 Initial Study/Mitigated Negative Declaration does not identify any significant or potentially significant impacts for items within the Central Coast Water Board's jurisdiction.

2.10. Notification of Interested Parties. The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.

2.11. Consideration of Public Comment. The Central Coast Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the public hearing are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED that this Order supersedes Order No. R3-2011-0002 except for enforcement purposes, and, in order to meet the provisions contained in division 7 of the California Water Code (commencing with section 13000) and regulations adopted thereunder and the provisions of the CWA and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order. This action in no way prevents the Central Coast Water Board from taking enforcement action for violations of the previous order.

3. DISCHARGE PROHIBITIONS

- 3.1. Discharge of treated wastewater at a location or in a manner, other than as described by this Order at Discharge Points 001B, 001C, 002A, and 002B, is prohibited.
- 3.2. The discharge of any waste not specifically regulated by this Order, excluding stormwater regulated by General Permit No. CAS000001 (Waste Discharge Requirements for Discharges of Stormwater Associated with Industrial Activities), is prohibited.
- 3.3. The monthly average dry weather effluent flow shall not exceed 4.9 million gallons per day (MGD), aggregated at Discharge Points 001B, 001C, 002A and 002B. The peak hour wet weather effluent flow shall not exceed 12.7 MGD, aggregated at Discharge Points 001B, 001C, 002A and 002B.
- 3.4. Overflow or bypass of wastewater from the Discharger's collection, treatment, or disposal facilities and the subsequent discharge of untreated or partially treated wastewater, except as provided for in Attachment D, Standard Provision 1.7 (Bypass), is prohibited.
- 3.5. Creation of a condition of pollution, contamination, or nuisance, as defined by section 13050 of the California Water Code, is prohibited.
- 3.6. The discharge shall not cause or contribute to adverse impacts to beneficial uses of water or to threatened or endangered species and their habitat.

4. EFFLUENT LIMITATIONS AND DISCHARGE PROHIBITIONS

4.1. Effluent Limitations – Discharge Points 001B, 001C, 002A, and 002B

4.1.1. Final Effluent Limitations – Discharge Points 001B and 001C

4.1.1.1. The Discharger shall maintain compliance with the following effluent limitations at Discharge Points 001B and 001C, with compliance measured at Monitoring Locations EFF-001B and EFF-001C as described in Attachment E, the Monitoring and Reporting Program:

Table 2. Effluent Limitations at Discharge Points 001B and 001C

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Biochemical Oxygen Demand 5-day @ 20°C (BOD ₅)	milligram per liter (mg/L)	25	35			
BOD ₅	pounds per day (lbs/day) ^[1]	1,022	1,430			
Total Suspended Solids (TSS)	mg/L	30	45			
TSS	lbs/day ^[1]	1,226	1,839			
pH	standard units				6.5	8.3
Oil and Grease	mg/L	10	18			
Settleable Solids	milliliter per liter (mL/L)	0.1	0.3			
Dissolved Oxygen	mg/L				2.0	
Total Chlorine Residual	mg/L				Non-Detect (ND) ^[2]	
Total Dissolved Solids (TDS)	mg/L	1,115				
Sodium	mg/L	255				
Chloride	mg/L	355				
Sulfate	mg/L	200				
Nitrogen, Total as N	mg/L	10				
Copper, Total Recoverable	Micro-gram per	8.8		21.4		

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
	liter (µg/L)					
Mercury, Total Recoverable	µg/L	0.012 ^[3]		0.024 ^[3]		
Selenium, Total Recoverable	µg/L	3.5 ^[4]		8.6 ^[4]		
Chlorodibromomethane	µg/L	0.40		0.80		
Dichlorobromomethane	µg/L	0.56		1.6		
Acute Toxicity	Toxic Units Acute (TUA)					Pass ^[5]
Chronic Toxicity	Toxic Units Chronic (TUC)					1.0 ^[5]

^[1] Mass loading limits were calculated using the following formulas:

lbs/day = pollutant concentration (mg/L) * permitted flow (4.9 MGD) * conversion factor (8.34)

^[2] ND = less than 0.1 mg/L. Compliance determination for total chlorine residual shall be based on 99 percent compliance. To determine 99 percent compliance, the following conditions shall be met:

- The total time during which the total chlorine residual values are above 0.1 mg/L (instantaneous maximum value) shall not exceed 7 hours and 26 minutes in any calendar month;
- No single excursion from 0.1 mg/L shall exceed 30 minutes;
- No single excursion shall exceed 2 mg/L; and
- When continuous monitoring is not being performed, standard compliance guidelines shall be followed.

^[3] Compliance with the effluent limitation shall be determined as specified in Table E-3 of the Monitoring and Reporting Program (Attachment E).

^[4] Compliance with the effluent limitation shall be determined based on the steps described in section 7.6. below.

^[5] As specified in section 5 of the Monitoring and Reporting Program (Attachment E).

4.1.1.2. **Percent Removal:** The average monthly percent removal of BOD₅ and TSS shall not be less than 85 percent.

4.1.1.3. ***E. Coli***

- 4.1.1.3.1. *E. coli* concentrations in the effluent shall not exceed 100 Most Probable Number (MPN)/100 mL, as a 6-week rolling geometric mean; and
- 4.1.1.3.2. *E. coli* concentrations in the effluent shall not exceed 320 MPN/100 mL in more than 10 percent of samples collected in a calendar month, calculated in a static manner.

4.1.2. Final Effluent Limitations – Discharge Points 002A and 002B

- 4.1.2.1. The Discharger shall maintain compliance with the following effluent limitations at Discharge Points 002A and 002B, with compliance measured at Monitoring Locations 002A and 002B as described in Attachment E, the Monitoring and Reporting Program:

Table 3. Effluent Limitations at Discharge Points 002A and 002B

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
BOD ₅	mg/L	25	35			
BOD ₅	lbs/day ^[1]	1,022	1,430			
TSS	mg/L	30	45			
TSS	lbs/day ^[1]	1,226	1,839			
pH	standard units				6.5	8.3
Oil and Grease	mg/L	10	18			
Settleable Solids	mL/L	0.1	0.3			
Dissolved Oxygen	mg/L				2.0	
TDS	mg/L	1,115				
Sodium	mg/L	255				
Chloride	mg/L	355				
Nitrogen, Total as N	mg/L	10				

^[1] Mass loading limits were calculated using the following formula:

$$\text{lbs/day} = \text{pollutant concentration (mg/L)} * \text{permitted flow (4.9 MGD)} * \text{conversion factor (8.34)}$$

- 4.1.2.2. **Percent Removal:** The average monthly percent removal of BOD₅ and TSS shall not be less than 85 percent.

4.1.2.3. *E. Coli*

- 4.1.2.3.1. *E. coli* concentrations in the effluent shall not exceed 100 MPN/100 mL, as a 6-week rolling geometric mean; and
- 4.1.2.3.2. *E. coli* concentrations in the effluent shall not exceed 320 MPN/100 mL in more than 10 percent of samples collected in a calendar month, calculated in a static manner.

4.1.3. Interim Effluent Limitations – Not Applicable

4.2. Land Discharge Specifications – Not Applicable

4.3. Recycling Specifications – Discharge Point 003

As specified below, this Order conditionally authorizes the Discharger to act as the producer of recycled (or reclaimed) water and to reuse recycled water onsite at the Facility and for cleaning and maintenance of the Discharger's sanitary sewer system. As specified within this Order, the Discharger is responsible for compliance with all applicable requirements associated with the production, onsite uses of recycled water, and offsite uses of recycled water solely for sanitary sewer cleaning and maintenance. The distribution and offsite (except for cleaning and maintenance of the Discharger's sanitary sewer system) reuse of recycled water produced by the Facility is subject to State Water Board Order No. WQ 2016-0068-DDW, *General Water Reclamation Requirements for Recycled Water Use*, or other applicable permit, dependent on final use.

- 4.3.1. Reclamation and use of disinfected tertiary treated wastewater shall adhere to applicable requirements of California Water Code sections 13500-13577 (Water Reclamation); and California Code of Regulations title 17 sections 7583-7586, title 17 sections 7601-7605, and title 22 sections 60301-60355 (Uniform Statewide Recycling Criteria).
- 4.3.2. Recycled water production shall comply with a title 22 engineering report approved by the Division of Drinking Water (DDW) that demonstrates or defines compliance with the Uniform Statewide Recycling Criteria (and amendments).
- 4.3.3. Recycled water shall be disinfected tertiary recycled water, as defined by title 22, section 60301.230.
- 4.3.4. Recycled water shall be adequately oxidized, filtered, and disinfected, as defined in title 22.
- 4.3.5. Beginning **July 1, 2021**, the Discharger shall maintain compliance with the limitations in section 4.3 of this Order at Discharge Point 003, with compliance measured at Monitoring Location EFF-003 as described in the attached MRP.
- 4.3.6. Filtered recycled water shall be passed through a cloth media filtration process so that turbidity of the filtered wastewater does not exceed any of the below. Filter influent turbidity shall be continuously measured. Influent turbidity shall not exceed 5 NTU for more than 15 minutes and never exceed 10 NTU.
 - 4.3.6.1. An average of 2 NTU within a 24-hour period;
 - 4.3.6.2. 5 NTU more than 5 percent of the time within a 24-hour period; and
 - 4.3.6.3. 10 NTU at any time.
- 4.3.7. The median concentration of total coliform bacteria measured in the disinfected recycled water shall not exceed the following limits:
 - 4.3.7.1. An MPN of 2.2 per 100 mL utilizing the bacteriological results of the last seven days for which analyses have been completed,

- 4.3.7.2. An MPN of 23 per 100 mL in more than one sample in any 30-day period, and
- 4.3.7.3. No sample shall exceed an MPN of 240 total coliform bacteria per 100 mL.
- 4.3.8. Freeboard shall always exceed two feet in all recycled water storage ponds owned or operated by the Discharger.
- 4.3.9. The Discharger shall discontinue delivery of recycled water to distributors and users during any period in which it has reason to believe that the limits established in this Order are not being met. The delivery of recycled water shall not be resumed until all conditions that caused the limits to be violated have been corrected.
- 4.3.10. The Discharger shall adhere to the below listed conditions for the TROJAN UVSigna™ Ultraviolet (UV) Reactor disinfection system:
- 4.3.10.1. The UV system must be operated with two-banks on-line as a minimum to deliver a minimum UV dose of 106 mJ/cm² at all times.
- 4.3.10.2. The equations below must be used for each UV reactor as part of the automatic UV disinfection control system for calculating UV dose. They are from the report entitled "TrojanUVSigna™ (2-Row) CA NWRI 2012 Validation Report Revision 1 Final" (Carollo Engineers, January 2017)".

$$S_{pred} = 10^{-4.16162} \times UVT^{1.91459} \times BPL^{0.76858}$$

$$RED_{calc} = CR \times 10^{[4.58043 - 1.65778 \times UVA]} \times UVA_{254}^{[2.54274 \times UVA]} \times [S/S_o]^{0.97312} \times Q^{-0.97312} \times B$$

Where:

BPL = Ballast power level setting (percent)

UVT = UV transmittance through 1 cm of water at 254 nm, expressed as percent, at or above 55 percent²

S_{pred} = Predicted UV sensor value (milliwatts per square centimeter [mW/cm²])

S = Measured UV sensor value (mW/cm²)

S_o = Calculated intensity from new lamp at full power (at same UVT) with clean sleeves, typically expressed as a function of UVT (mW/cm²)

RED_{calc} = UV dose calculated with the UV dose-monitoring equation (mJ/cm²)

CR = Confidence factor = 0.884

A₂₅₄ = UV absorbance at 254 nm (cm⁻¹)

² At UVT values above 80 percent, the value (80 percent UVT, or A₂₅₄ = 0.097) should be used as the default value in the RED calculation defined in section 4.3.12.2 of the Order.

Q = Flow rate per lamp, calculated as gpm divided by the number of lamps in one bank (gpm/lamp)

B = Number of operating banks

4.3.10.3. The UV disinfection system is limited to the following operational parameter ranges:

4.3.10.3.1. Permit total plant flow up to 5.7 MGD

4.3.10.3.2. UVTs at or above 55 percent

4.3.10.3.3. UV sensor intensities at or greater than 1.1 mW/cm²

4.3.10.4. On-line monitoring of UV intensity, flow, and UVT must be provided at all times.

4.3.10.5. Flow meters, UV intensity sensors, and UVT monitors must be properly calibrated to ensure proper disinfection.

4.3.10.6. At least monthly, all duty UV intensity sensors must be checked for calibration against a reference UV intensity sensor.

4.3.10.7. For all UV intensity sensors in use, the ratio of the duty UV sensor intensity to the reference UV sensor intensity must be less than or equal to 1.2. If the calibration ratio is greater than 1.2, the failed duty UV sensor must be replaced by a properly calibrated sensor and recalibrated by a qualified facility. The reference UV intensity sensors shall be recalibrated at least annually by a qualified facility using a National Institute of Standards and Technology (NIST) traceable standard.

4.3.10.8. UVT meter must be inspected and checked against a reference bench-top unit weekly to document accuracy.

4.3.10.9. If the on-line analyzer UVT reading varies from the bench-top spectrophotometer UVT reading by 2 percent or more, the on-line UVT analyzer must be recalibrated by a procedure recommended by the manufacturer.

4.3.10.10. Flow meters measuring the flow through a UV reactor must be verified to determine accuracy at least monthly via checking the flow reading against other flow determination methods.

4.3.10.11. Each UV reactor at the UV system must be designed with built-in automatic reliability features that must be triggered by critical alarm setpoints.

4.3.10.12. Conditions triggering an alarm and startup of the redundant bank include the following:

4.3.10.12.1. The UV dose goes below 111 mJ/cm²

4.3.10.12.2. Whole bank failure

4.3.10.13. Conditions that should divert effluent to waste include the following:

4.3.10.13.1. UV dose is below the minimum UV dose of 106 mJ/cm²

- 4.3.10.13.2. UVT is below of 55 percent
- 4.3.10.13.3. UV intensity below the minimum validated of 1.1 mW/cm²
- 4.3.10.13.4. Complete UV channel failure
- 4.3.10.14. The UV system must be operated in accordance with an approved operations plan that specifies clearly the operational limits and responses required for critical alarms. The operations plan shall be submitted to and approved by the State Water Board's Division of Drinking Water. A copy of the approved operations plan shall be maintained at the Facility and be readily available to operations personnel and regulatory agencies. A quick reference plant operations data sheet shall be posted at the Facility and include the following information:
 - 4.3.10.14.1. The alarm set points for flow, UV dose, UV intensity, and UVT.
 - 4.3.10.14.2. The values of flow, UV dose, UV intensity, and UVT when effluent must be diverted to waste.
 - 4.3.10.14.3. The required frequency of verification and calibration for all meters/analyzers measuring flow, UV intensity, and UV transmittance.
 - 4.3.10.14.4. The required frequency of mechanical cleaning and equipment inspection.
 - 4.3.10.14.5. The UV lamp hour tracking procedures and replacement intervals.
- 4.3.10.15. This UV dose equation assumes that the intensity sensors would measure the decline as the lamps age. Since there is one UV Intensity sensor per bank of lamps (each bank contains twelve lamps), unless another operational procedure can be developed and demonstrated, the lamps shall be rotated as follows: 1) the lamps shall be rotated once a quarter to detect any decline in intensity due to aging, 2) the lamp with the lowest intensity value shall be closest to the UV sensor, and 3) if all of the lamp ages vary by less than 20 percent, the oldest lamp shall be placed in the position nearest the UV sensor.
- 4.3.10.16. Equivalent or substitutions of equipment are not acceptable without an adequate demonstration of equivalent disinfection performance.
- 4.3.11. Personnel involved in producing, transporting, or using recycled water shall be informed of possible health hazards that may result from contact and use of recycled water.
- 4.3.12. All recycled water reservoirs and other areas with public access shall be posted with signs in English and an international symbol to warn the public that recycled wastewater is being stored or used.
- 4.3.13. Recycled water systems at the Facility shall be properly labeled and regularly inspected to ensure proper operation, absence of leaks, and absence of illegal connections.
- 4.3.14. The only offsite use of recycled water permitted by this Order is for cleaning and maintaining the Discharger's sanitary sewer system. When cleaning and

maintaining the Discharger's sanitary sewer system with recycled water, the Discharger shall only use Discharger personnel and Discharger-owned trucks that are leak-free with legible signage indicating the trucks contain recycled water. All recycled water used for cleaning and maintaining the Discharger's sanitary sewer system must be contained in the sanitary sewer system.

5. RECEIVING WATER LIMITATIONS

5.1. Surface Water Limitations

The discharge shall not cause the following in the Salinas River or Huerhuero Creek:

- 5.1.1. Waters shall be free of coloration that causes nuisance or adversely affects beneficial uses. Coloration attributable to materials of waste origin shall not be greater than 15 units or 10 percent above natural background color, whichever is greater.
- 5.1.2. Waters shall not contain taste- or odor-producing substances in concentrations that impart undesirable tastes or odors to fish flesh or other edible products of aquatic origin that cause nuisance or that adversely affect beneficial uses.
- 5.1.3. Waters shall not contain floating material, including solids, liquids, foams, and scum, in concentrations that cause nuisance or adversely affect beneficial uses.
- 5.1.4. Waters shall not contain suspended material in concentrations that cause nuisance or adversely affects beneficial uses.
- 5.1.5. Waters shall not contain settleable material in concentrations that result in deposition of material that causes nuisance or adversely affects beneficial uses.
- 5.1.6. Waters shall not contain oils, greases, waxes, or other similar materials in concentrations that result in a visible film or coating on the surface of the water or on objects in the water, that cause nuisance, or that otherwise adversely affect beneficial uses.
- 5.1.7. Waters shall not contain biostimulatory substances in concentrations that promote aquatic growths to the extent that such growths cause nuisance or adversely affect beneficial uses.
- 5.1.8. The suspended sediment load and suspended sediment discharge rate to surface waters shall not be altered in such a manner as to cause nuisance or adversely affect beneficial uses.
- 5.1.9. Waters shall be free of changes in turbidity that cause nuisance or adversely affect beneficial uses. Increase in turbidity attributable to controllable water quality factors shall not exceed the following limits.
 - 5.1.9.1. Where natural turbidity is between 0 and 50 nephelometric turbidity units (NTU), increases shall not exceed 20 percent.
 - 5.1.9.2. Where natural turbidity is between 50 and 100 NTU, increases shall not exceed 10 NTU.

- 5.1.9.3. Where natural turbidity is greater than 100 NTU, increases shall not exceed 10 percent.
- 5.1.10. The pH value shall not be depressed below 7.0 nor raised above 8.3. The change in normal ambient pH levels shall not exceed 0.5 in fresh water.
- 5.1.11. Dissolved oxygen concentrations in receiving waters shall not be reduced below 2.0 mg/L at any time.
- 5.1.12. Natural temperature of receiving waters shall not be altered unless it can be demonstrated to the satisfaction of the Central Coast Water Board that such alteration in temperature does not adversely affect beneficial uses. However, for the Salinas River, at no time or place shall the temperature of any water be increased by more than 5° F above the natural receiving water temperature.
- 5.1.13. All waters shall be maintained free of toxic substances in concentrations that are toxic to or that produce detrimental physiological responses in human, plant, animal, or aquatic life. Survival of aquatic life in surface waters subjected to a waste discharge or other controllable water quality conditions shall not be less than that for the same waterbody in areas unaffected by the waste discharge.
- 5.1.14. The discharge of wastes shall not cause concentrations of un-ionized ammonia (NH₃) to exceed 0.025 mg/L (as N) in the receiving water.
- 5.1.15. No individual pesticide or combination of pesticides shall reach concentrations that adversely affect the beneficial uses of the receiving water. There shall be no increase in pesticide concentrations found in bottom sediments or aquatic life. For waters where existing concentrations are presently nondetectable or where beneficial uses would be impaired by concentrations in excess of nondetectable levels, total identifiable chlorinated hydrocarbon pesticides shall not be present at concentrations detectable within the accuracy of analytical methods as prescribed in *Standard Methods for the Examination of Water and Wastewater*, latest edition, or other equivalent methods approved by the Central Coast Water Board Executive Officer.
- 5.1.16. Waters shall not contain organic substances in concentrations greater than those listed in the table below:

Table 4. Organic Substances Water Quality Criteria

Parameter	Units	Water Quality Objective
Methylene Blue Activated Substances	mg/L	0.2
Total Phenols	µg/L	1.0
Polychlorinated Biphenyls (PCBs)	µg/L	0.3
Phthalate Esters	µg/L	0.002

- 5.1.17. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life or result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life. In no circumstance shall receiving waters contain concentrations of radionuclides in excess of the maximum contaminant levels

(MCLs) for radioactivity presented in Table 4 of Title 22 California Code of Regulations, division 4, chapter 15, article 5, sections 64442 and 64443.

- 5.1.18. Receiving waters shall not contain concentrations of chemical constituents in excess of the primary MCLs specified for drinking water in Table 64431-A (Primary MCLs for Inorganic Chemicals) and Table 64444-A (Primary MCLs for Organic Chemicals) of Title 22 California Code of Regulations, division 4, chapter 15.
- 5.1.19. The concentrations of metals listed in the table below shall not be exceeded for the protection of aquatic life.

Table 5. Hardness Dependent Metals Criteria

Parameter	Units	Receiving Water Hardness >100 mg/L CaCO ₃	Receiving Water Hardness <100 mg/L CaCO ₃
Cadmium	mg/L	0.03	0.004
Chromium	mg/L	0.05	0.05
Copper	mg/L	0.03	0.01
Lead	mg/L	0.03	0.03
Mercury	mg/L	0.0002	0.0002
Nickel	mg/L	0.4	0.1
Zinc	mg/L	0.2	0.004

- 5.1.20. Receiving waters shall not contain concentrations of chemical constituents known to be deleterious to fish or wildlife in excess of the levels presented in section 3, Table 3-3 of the Basin Plan.
- 5.1.21. For the Salinas River, cadmium shall not exceed 0.003 mg/L when hardness in receiving waters is greater than 100 mg/L as CaCO₃, nor shall cadmium exceed 0.0004 mg/L when hardness in receiving waters is equal to or less than 100 mg/L as CaCO₃.
- 5.1.22. *E. coli* concentration shall not exceed 100 MPN/100 mL as a 6-week rolling geometric mean, calculated weekly. A statistical threshold value (STV) of 320 MPN/100 mL for *E. coli* shall not be exceeded by more than 10 percent of samples collected in a calendar month, calculated in a static manner.
- 5.1.23. Discharges shall not cause receiving water to exceed the water quality objectives for the Salinas River above Bradley Sub-Area of the Salinas River Hydrologic Unit specifically identified in Table 3-5 of the Basin Plan, as shown in the table below.

Table 6. Salinity Water Quality Objectives

Parameter	Units	Annual Mean
TDS	mg/L	250
Chloride	mg/L	20
Sulfate	mg/L	100
Boron	mg/L	0.2

Parameter	Units	Annual Mean
Sodium	mg/L	20

5.2. Groundwater Limitations

Activities at the Facility shall not cause exceedance/deviation from the following water quality objectives for groundwater established by the Basin Plan. The Central Coast Water Board may require the Discharger to investigate if it is the cause of exceedances in the groundwater.

- 5.2.1. Groundwater shall not contain taste- or odor-producing substances in concentrations that adversely affect beneficial uses.
- 5.2.2. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life or that result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life. In no circumstances shall groundwater contain concentrations of radionuclides in excess of the MCLs for radioactivity presented in Table 4 of Title 22 California Code of Regulations, division 4, chapter 15, article 5, section 64443.
- 5.2.3. The median concentration of coliform organisms in groundwater, over any seven-day period, shall be less than 2.2 organisms per 100 mL.
- 5.2.4. Groundwater shall not contain concentrations of chemical constituents in excess of the primary MCLs specified for drinking water in Table 64431-A (Primary MCLs for Inorganic Chemicals) and Table 64444-A (Primary MCLs for Organic Chemicals) of Title 22 California Code of Regulations, division 4, chapter 15.
- 5.2.5. Groundwater shall not contain concentrations of chemical constituents in amounts that adversely affect the agricultural supply beneficial use. Interpretation of adverse effects shall be as described in University of California Agricultural Extension Service guidelines provided in Table 3-1 of the Basin Plan.
- 5.2.6. Groundwater used for irrigation and livestock watering shall not exceed concentrations of chemical constituents in excess of those levels specified for irrigation and livestock watering in chapter 3, Table 3-2 of the Basin Plan.
- 5.2.7. Groundwater shall not contain constituents greater than the following concentrations established in Table 3-6 of the Basin Plan for groundwaters within the Paso Robles Sub-Basin of the Paso Robles Groundwater Basin.

Table 7. Groundwater Objectives

Parameter	Units	Annual Median
TDS	mg/L	1,050
Chloride	mg/L	270
Sulfate	mg/L	200
Boron	mg/L	2.0
Sodium	mg/L	225
Nitrogen	mg/L	2.3

6. PROVISIONS

6.1. Standard Provisions

- 6.1.1. The Discharger shall comply with all Standard Provisions included in Attachment D.
- 6.1.2. The Discharger shall comply with Central Coast Water Board Standard Provisions in Attachment D.

6.2. Monitoring and Reporting Program (MRP) Requirements

The Discharger shall comply with the MRP, and future revisions thereto, in Attachment E.

6.3. Special Provisions

6.3.1. Reopener Provisions

- 6.3.1.1. This Order may be reopened for modification or revocation and reissuance as a result of the detection of a reportable priority pollutant generated by special conditions included in this Order. These special conditions may be, but are not limited to, fish tissue sampling, whole effluent toxicity, monitoring requirements on internal waste stream(s), and monitoring for surrogate parameters. Additional requirements may be included in this Order as a result of the special condition monitoring data.
- 6.3.1.2. This Order may be reopened and modified in accordance with NPDES regulations at 40 C.F.R. parts 122 and 124, as necessary, to modify the conditions or limitations based on newly available information or to implement any U.S. EPA approved, new, state water quality objective.
- 6.3.1.3. This Order may be reopened for modification to include an effluent limitation if monitoring establishes that the discharge causes, has the reasonable potential to cause, or contributes to an excursion above a State Implementation Policy (SIP) water quality objective.

6.3.2. Special Studies, Technical Papers and Additional Monitoring Requirements

6.3.2.1. Toxicity Reduction Requirements

If the discharge consistently exceeds an effluent limitation for toxicity specified by section 4.1 of this Order, the Discharger shall conduct a Toxicity Reduction Evaluation (TRE) defined in Attachment A in accordance with the Discharger's TRE Workplan.

A TRE is a study conducted in a stepwise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. A TIE is a set of procedures to identify the specific chemical(s)

responsible for toxicity. These procedures are performed in three phases: characterization; identification; and confirmation using aquatic organism toxicity tests. The TRE shall include all reasonable steps to identify the source of toxicity. The Discharger shall take all reasonable steps to reduce toxicity to the required level once the source of toxicity is identified.

When monitoring detects effluent toxicity greater than a limitation in this Order, the Discharger shall resample immediately, if the discharge is continuing, and retest for whole effluent toxicity. Results of an initial failed test and results of subsequent monitoring shall be reported to the Central Coast Water Board Executive Officer as soon as possible after receiving monitoring results. The Executive Officer will determine whether to initiate enforcement action, whether to require the Discharger to implement a TRE, or to implement other measures. The Discharger shall conduct a TRE considering guidance provided by the U.S. EPA's *Toxicity Reduction Evaluation Procedures, Phases 1, 2, and 3* (EPA document Nos. EPA 600/3-88/034, 600/3-88/035, and 600/3-88/036, respectively). A TRE, if necessary, shall be conducted in accordance with the following schedule.

Table 8. Toxicity Reduction Evaluation Schedule

Actions Step	When Required
Take all reasonable measures necessary to immediately reduce toxicity, where the source is known.	Within 24 hours of identification of noncompliance.
Initiate the TRE in accordance to the Workplan.	Within 7 days of notification by the Executive Officer.
Conduct the TRE following the procedures in the Workplan.	Within the period specified in the Workplan (not to exceed one year without an approved Workplan)
Submit the results of the TRE, including summary of findings, required corrective action, and all results and data.	Within 60 days of completion of the TRE.
Implement corrective actions to meet Permit limits and conditions.	To be determined by the Executive Officer.

The Discharger shall maintain a TRE Workplan, which describes steps that the Discharger intends to follow if a toxicity effluent limitation in this Order is exceeded. The Workplan shall be prepared in accordance with current technical guidance and reference material, including EPA/600/2-88-062, and shall describe, at a minimum:

- 6.3.2.1.1. Specific actions the Discharger will take to investigate and identify the cause(s) of toxicity, including a TRE whole effluent toxicity (WET) monitoring schedule;
- 6.3.2.1.2. Specific actions the Discharger will take to mitigate the impact of the discharge and prevent the recurrence of toxicity; and

6.3.2.1.3. A schedule for these actions.

6.3.3. Best Management Practices and Pollution Prevention

6.3.3.1. Pollutant Minimization Program

The Discharger shall develop and conduct a Pollutant Minimization Program (PMP) as further described below when there is evidence (e.g., sample results reported as “Detected, but Not Quantified” (DNQ) when the effluent limitation is less than the minimum detection limit (MDL), sample results from analytical methods more sensitive than those methods required by this Order, presence of whole effluent toxicity, health advisories for fish consumption, or results of benthic or aquatic organism tissue sampling) that a priority pollutant is present in the effluent above an effluent limitation and either:

6.3.3.1.1. A sample result is reported as DNQ and the effluent limitation is less than the reporting limit (RL); or

6.3.3.1.2. A sample result is reported as “Not Detected” (ND) and the effluent limitation is less than the MDL, using definitions described in Attachment A and reporting protocols described in MRP section 10.2.4.

The PMP shall include, but not be limited to, the following actions and submittals acceptable to the Central Coast Water Board Executive Officer:

6.3.3.1.2.1. An annual review and semi-annual monitoring of potential sources of the reportable priority pollutant(s), which may include fish tissue monitoring and other bio-uptake sampling;

6.3.3.1.2.2. Quarterly monitoring for the reportable priority pollutant(s) in the influent to the wastewater treatment system;

6.3.3.1.2.3. Submittal of a control strategy designed to proceed toward the goal of maintaining concentrations of the reportable priority pollutant(s) in the effluent at or below the effluent limitation;

6.3.3.1.2.4. Implementation of appropriate cost-effective control measures for the reportable priority pollutant(s), consistent with the control strategy; and

6.3.3.1.2.5. An annual status report that shall be sent to the Central Coast Water Board Executive Officer including:

6.3.3.1.2.5.1. All PMP monitoring results for the previous year;

6.3.3.1.2.5.2. A list of potential sources of the reportable priority pollutant(s);

6.3.3.1.2.5.3. A summary of all actions undertaken pursuant to the control strategy; and

6.3.3.1.2.5.4. A description of actions to be taken in the following year.

6.3.4. Construction, Operation and Maintenance Specifications

6.3.4.1. The Facility shall be operated as specified under Standard Provision 1.4 of Attachment D.

6.3.4.2. **Pond Operations.** In the event that the Discharger uses Ponds 4 through 6 to treat or contain wastewater, a minimum of 2 feet of freeboard shall be

maintained in Ponds 4 through 6 at all times (unless technical justification is provided to support lesser freeboard).

6.3.5. Special Provisions for Publicly Owned Treatment Works (POTWs)

- 6.3.5.1. Biosolids.** The handling, management, and disposal of sludge and solids derived from wastewater treatment must comply with applicable provisions of U.S. EPA regulations at 40 C.F.R. sections 257, 258, 501, and 503, including all monitoring, record keeping, and reporting requirements.

Solids and sludge treatment, storage, and disposal or reuse shall not create a nuisance, such as objectionable odors or flies, and shall not result in groundwater contamination. Sites for solids and sludge treatment and storage shall have adequate facilities to divert surface water runoff from adjacent areas to protect the boundaries of such sites from erosion, and to prevent drainage from treatment and storage sites.

The treatment, storage, disposal, or reuse of sewage sludge and solids shall not cause waste material to be in a position where it is, or can be, conveyed from the treatment and storage sites and deposited into waters of the State. The Discharger is responsible for ensuring that all biosolids produced at its facility are used or disposed of in accordance with the above rules, regardless of whether the Discharger uses or disposes of the biosolids itself or transfers them to another party for further treatment, use, or disposal. The Discharger is responsible for informing subsequent preparers, appliers, and disposers of the requirements that they must adhere to these rules.

- 6.3.5.2. Pretreatment.** The Discharger shall be responsible for the performance for all pretreatment requirements contained in 40 C.F.R. part 403 and shall be subject to enforcement actions, penalties, fines, and other remedies by the U.S. EPA, or other appropriate parties, as provided in the CWA, as amended (33 USC 1351 et seq.). The Discharger shall continue to implement and enforce its POTW Pretreatment Program. U.S. EPA or the Central Coast Water Board may initiate enforcement action against an industrial user for noncompliance with applicable standards and requirements as provided in the CWA. The Discharger shall continue to implement and enforce its POTW Pretreatment Program, including any amendments resulting from approval of the program.

The Discharger shall enforce the requirements promulgated under sections 307 (b), 307 (c), 307 (d), and 402 (b) of the CWA. The Discharger shall cause industrial users subject to Federal Categorical Standards to achieve compliance no later than the date specified in those requirements or, in the case of a new industrial user, upon commencement of the discharge.

The Discharger shall perform the pretreatment functions as required in 40 C.F.R. part 403, including, but not limited to the following:

- 6.3.5.2.1.** Implement the necessary authorities as provided in 40 C.F.R. section 403.8 (f) (1);
- 6.3.5.2.2.** Enforce the pretreatment requirements under 40 C.F.R. sections 403.5 and 403.6;

- 6.3.5.2.3. Implement the programmatic functions as provided in 40 C.F.R. section 403.8 (f) (2); and
- 6.3.5.2.4. Provide the requisite funding and personnel to implement the pretreatment program as provided in 40 C.F.R. section 403.8 (f) (3).
- 6.3.5.3. **Discharges of Stormwater.** For the control of stormwater discharged from the site of the wastewater treatment and disposal facilities, if applicable, the Discharger shall seek authorization to discharge under and meet the requirements of the State Water Board's Water Quality Order 2014-0057-DWQ, NPDES General Permit No. CAS000001, *Waste Discharge Requirements for Discharges of Stormwater Associated with Industrial Activities Excluding Construction Activities*.
- 6.3.5.4. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** The Order requires coverage by and compliance with applicable provisions the State Water Board's Water Quality Order No. 2006-0003-DWQ, *General Waste Discharge Requirements for Sanitary Sewer Systems*. This general permit, adopted on May 2, 2006, is applicable to all "federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California." The purpose of the general permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows. This provision is retained from the previous order. The Discharger is enrolled under the general permit.
- 6.3.5.5. **Resource Recovery from Anaerobically Digestible Material.** If the Discharger will receive hauled-in anaerobically digestible material for injection into an anaerobic digester, the Discharger shall notify the Central Coast Water Board and develop and implement standard operating procedures for this activity. The standard operating procedures shall be developed prior to receiving hauled-in anaerobically digestible material. The standard operating procedures shall address material handling, including unloading, screening, or other processing prior to anaerobic digestion; transportation; spill prevention; and spill response. In addition, the standard operating procedures shall address avoidance of the introduction of materials that could cause interference, pass-through, or upset of the treatment processes; avoidance of prohibited material; vector control; odor control; operation and maintenance; and the disposition of any solid waste segregated from introduction to the digester. The Discharger shall train its staff on the standard operating procedures and shall maintain records for a minimum of five years for each load received, describing the hauler, waste type, and quantity received. In addition, the Discharger shall maintain records for a minimum of five years for the disposition, location, and quantity of cumulative pre-digestion-segregated solid waste hauled offsite.
- 6.3.6. **Other Special Provisions**

6.3.6.1. **Recycled Water Policy Salt and Nutrient Management Program.** The Discharger shall continue to update and implement an ongoing salt and nutrient management program, with the intent of reducing mass loading of salts and nutrients in treated effluent and attainment of applicable water quality objectives for salts and nutrients in the Paso Robles Sub-Basin of the Paso Robles Groundwater Basin.

6.3.6.1.1. Salt reduction measures shall focus on all potential salt contributors to the collection system, including water supply, commercial, industrial, and residential dischargers.

6.3.6.1.2. Nutrient reduction measures shall focus on optimizing wastewater treatment processes for nitrification and denitrification, or other means of nitrogen removal.

6.3.6.1.3. As part of the salt and nutrient management program, the Discharger shall submit an annual report of salt and nutrient reduction efforts. This report shall be included as part of the annual report described in the MRP (Attachment E). The report shall be submitted by February 1, and shall include (at a minimum):

6.3.6.1.3.1. **Salt Component**

6.3.6.1.3.1.1. Calculations of annual salt mass discharged to (influent) and from (effluent) the wastewater treatment or recycling facility with a description of contributing sources;

6.3.6.1.3.1.2. Analysis of wastewater evaporation/salt concentration effects;

6.3.6.1.3.1.3. Analysis of groundwater monitoring results for salts constituents and associated trends;

6.3.6.1.3.1.4. Analysis of potential impacts of salt loading on the groundwater basin (focusing on the relationship between salt concentration in the discharge and the Basin Plan water quality objectives);

6.3.6.1.3.1.5. A summary of existing salt reduction measures; and

6.3.6.1.3.1.6. Recommendations and time schedules for implementation of any additional salt reduction measures.

6.3.6.1.3.2. **Nutrient Component**

6.3.6.1.3.2.1. Calculations of annual nitrogen mass (for all identified species) discharged to (influent) and from (effluent) the wastewater treatment or recycling facility with a description of contributing sources;

6.3.6.1.3.2.2. Analysis of wastewater treatment facility ability to facilitate nitrification and denitrification, or other means of nitrogen removal;

6.3.6.1.3.2.3. Analysis of groundwater monitoring results for nitrogen constituents and trends;

6.3.6.1.3.2.4. Analysis of potential impacts of nitrogen loading on the groundwater basin (focusing on the relationship between nitrogen concentration in the discharge and the Basin Plan water quality objectives);

- 6.3.6.1.3.2.5. A summary of existing nitrogen loading reduction measures; and
- 6.3.6.1.3.2.6. Recommendations and time schedules for implementation of any additional nitrogen loading reduction measures.
- 6.3.6.1.4. As an alternative to the Salt and Nutrient Management Program requirements described above, the Discharger may submit documentation and summary of participation in a regional salt/nutrient management plan implemented under the provisions of the *Water Quality Control Policy for Recycled Water*, approved by the State Water Board on December 11, 2018, and effective on April 8, 2019 (Recycled Water Policy). If the Discharger pursues this alternative it shall implement monitoring pursuant to conditions in the regional salt/nutrient management plan and/or the applicable groundwater sustainability plan.
- If the Discharger pursues this alternative, annually it shall submit this documentation and summary of participation, to satisfy the Salt and Nutrient Management Report requirement described in the MRP (Attachment E). The Discharger shall also provide a summary of any monitoring conducted and results of the monitoring.
- 6.3.6.2. **Salt Reduction Plan.** The Discharger shall continue to implement its Salt Reduction Plan, including the specific measures described in the Fact Sheet section 2.4.2.
- 6.3.6.3. **Climate Change Adaptation Program.** With the Report of Waste Discharge that is due January 1, 2026, the Discharger shall submit a Climate Change Adaptation Program³ to the Central Coast Water Board Executive Officer describing the Discharger's long-term approach for identifying and addressing climate change hazards and vulnerabilities at the Facility, including all associated infrastructure (e.g., treatment facilities, conveyances to discharge points, discharge facilities). The Climate Change Adaptation Program shall, at a minimum, include the following components:
- 6.3.6.3.1. Hazards and Vulnerabilities – Identify climate change hazards, at a minimum accounting for the hazards listed below, applicable to the Facility. Using up-to-date tools, data, and guidance from the State of California (e.g., Cal-Adapt,⁴ reports from the Climate-Safe Infrastructure Working Group, the

³ In place of a static document, the Discharger may develop a living document and/or set of tools that fulfills the components outlined for the Climate Change Adaptation Program.

⁴ Cal-Adapt is an online resource with downscaled climate project data. It provides users with easily accessible projections and more detailed downloadable data supporting a range of needs and array of climate models and emissions scenarios. Cal-Adapt offers climate projections for the major stressors facing California, including the following: temperature averages and extremes, precipitation averages and extremes, sea-level rise, wildfires, and drought. The Governor's Office of Planning and Research (OPR) recommends agencies use Representative Concentration

Climate Adaptation Planning Guide, California Climate Assessment Regional Reports), assess the Facility's vulnerability to identified hazards that could cause reduction, loss, or failure of treatment processes and/or critical structures at the Facility. Identify and justify the resources (e.g., models and tools, design parameters) used to inform identification of these hazards and vulnerabilities.

- 6.3.6.3.1.1. Precipitation Pattern Changes –
 - 6.3.6.3.1.1.1. Drought – Decreased influent quantity and quality
 - 6.3.6.3.1.1.2. Peak Events – Flooding and increased influent quantity
- 6.3.6.3.1.2. Temperature fluctuations and extremes
- 6.3.6.3.1.3. Increased wildfires
- 6.3.6.3.1.4. Increased power outages
- 6.3.6.3.2. Resiliency Actions – Identify actions to build facility and operational resilience to identified vulnerabilities, accounting for options that minimize resource impacts.
- 6.3.6.3.3. Adaptation Strategy – Develop and implement a strategy to complete Resiliency Actions, at a minimum encompassing the following:
 - 6.3.6.3.3.1. Prioritization – Prioritized Resiliency Actions based on risks to water quality, but also accounting for costs and benefits.
 - 6.3.6.3.3.2. Schedule and Milestones – Timeframes to complete prioritized Resiliency Actions and/or climate change hazard triggers to inform when the Discharger shall implement actions. Milestones to complete critical steps for prioritized Resiliency Actions, designed to demonstrate measurable progress at a steady, or accelerated, completion pace over the established timeframes.
 - 6.3.6.3.3.3. Financial Planning – Projected costs necessary to implement and sustain Resiliency Actions and a strategy to procure funds.

6.3.7. Compliance Schedules – Not Applicable

7. COMPLIANCE DETERMINATION

7.1. General

Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Central Coast and State Water Boards, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level (ML).

Pathway (RCP) 8.5 for analyses considering impacts through 2050, because there are minimal differences between emissions scenarios during the first half of the 21st century.

7.2. Multiple Sample Data

When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple samples analyses and the data set contains one or more reported determinations of DNQ, or ND, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

- 7.2.1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
- 7.2.2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

7.3. Average Monthly Effluent Limitation (AMEL)

If the average of daily discharges over a calendar month exceeds the AMEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for each day of that month for that parameter (e.g., resulting in 31 days of non-compliance in a 31-day month). The average of daily discharges over the calendar month that exceeds the AMEL for a parameter will be considered out of compliance for that month only. If only a single sample is taken during the calendar month and the analytical result for that sample exceeds the AMEL, the Discharger will be considered out of compliance for that calendar month. For any one calendar month during which no sample (daily discharge) is taken, no compliance determination can be made for that calendar month.

7.4. Average Weekly Effluent Limitation (AWEL)

If the average of daily discharges over a calendar week exceeds the AWEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for each day of that week for that parameter, resulting in seven days of noncompliance. The average of daily discharges over the calendar week that exceeds the AWEL for a parameter will be considered out of compliance for that week only. If only a single sample is taken during the calendar week and the analytical result for that sample exceeds the AWEL, the Discharger will be considered out of compliance for that calendar week. For any one calendar week during which no sample (daily discharge) is taken, no compliance determination can be made for that calendar week.

7.5. Maximum Daily Effluent Limitation (MDEL)

If a daily discharge exceeds the MDEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for that parameter for that one day only within the reporting period. For any one day during which no sample is taken, no compliance determination can be made for that day.

7.6. Selenium Intake Credit

In order to determine compliance with the effluent limitations for selenium in Table 2 of this Order, the Discharger shall calculate the following:

7.6.1. Determine the average daily concentration ($\mu\text{g/L}$) of selenium in the Discharger's potable water distribution system attributable to the Salinas River underflow for the previous quarter using the below information.

- Selenium concentrations ($\mu\text{g/L}$) in the potable water distribution system, at monitoring locations PSW-001 and PSW-002 (see Table E-1 in Attachment E), representing potable water quality on both the east and west sides of the City.
- Daily volumes (MG) from the sanitary sewer collection system, representative of the east and west sides of the City, on the same day the selenium samples are taken from the potable water distribution system.
- Total daily volume (MG) received at Facility on the same day the selenium samples are taken from the potable water distribution system.

The Discharger shall use the following volume-weighted average equation to calculate the average water supply selenium concentration:

Selenium Intake Credit ($\mu\text{g/L}$) = ((east side daily volume (MG) * selenium concentration in potable water distribution system at monitoring location PSW-001 ($\mu\text{g/L}$)) + (west side daily volume (MG) * selenium concentration in potable water distribution system at monitoring location PSW-002 ($\mu\text{g/L}$))) / total daily volume received at Facility (MG)

Sometimes the Discharger augments its potable water supply with sources not attributable to the Salinas River underflow. When the Discharger is blending sources, so long as the Discharger can demonstrate that sources not attributable to the Salinas River underflow have selenium concentrations that are historically less than this Order's selenium effluent limits, the Discharger does not need to subtract out those flows, and associated selenium concentrations, from the above equation.

- 7.6.2. Determine the concentration of selenium ($\mu\text{g/L}$) discharged from the Facility. Effluent sampling must be within one day of the potable water distribution system selenium sampling date.
- 7.6.3. Determine compliance with the effluent limitations for selenium in Table 2 of this Order by deducting the Selenium Intake Credit, calculated in section 7.6.1., from the Facility's effluent selenium concentrations when calculating the average monthly and maximum daily effluent limits.

ATTACHMENT A – DEFINITIONS

Arithmetic Mean (μ)

Also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

$$\text{Arithmetic mean } (\mu) = \frac{\sum x}{n}$$

where: $\sum x$ is the sum of the measured ambient water concentrations, and n is the number of samples.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Bioaccumulative

Those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Calendar Year

A period of time defined as twelve consecutive calendar months.

Carcinogenic

Pollutants are substances that are known to cause cancer in living organisms.

Coefficient of Variation (CV)

CV is a measure of the data variability and is calculated as the estimated standard deviation divided by the arithmetic mean of the observed values.

Daily Discharge

Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a

day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if one day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

Detected, but Not Quantified (DNQ)

DNQ are those sample results less than the RL, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dilution Credit

Dilution Credit is the amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Effluent Concentration Allowance (ECA)

ECA is a value derived from the water quality criterion/objective, dilution credit, and ambient background concentration that is used, in conjunction with the coefficient of variation for the effluent monitoring data, to calculate a long-term average (LTA) discharge concentration. The ECA has the same meaning as wasteload allocation (WLA) as used in U.S. EPA guidance (Technical Support Document for Water Quality-based Toxics Control, March 1991, second printing, EPA/505/2-90-001).

Enclosed Bays

Enclosed Bays means indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between the headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. Enclosed bays include, but are not limited to, Humboldt Bay, Bodega Harbor, Tomales Bay, Drake's Estero, San Francisco Bay, Morro Bay, Los Angeles-Long Beach Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay. Enclosed bays do not include inland surface waters or ocean waters.

Estimated Chemical Concentration

The estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries

Estuaries means waters, including coastal lagoons, located at the mouths of streams that serve as areas of mixing for fresh and ocean waters. Coastal lagoons and mouths of streams that are temporarily separated from the ocean by sandbars shall be considered estuaries. Estuarine waters shall be considered to extend from a bay or the open ocean to a point upstream where there is no significant mixing of fresh water and seawater. Estuarine waters included, but are not limited to, the Sacramento-San Joaquin Delta, as defined in Water Code section 12220, Suisun Bay, Carquinez Strait

downstream to the Carquinez Bridge, and appropriate areas of the Smith, Mad, Eel, Noyo, Russian, Klamath, San Diego, and Otay rivers. Estuaries do not include inland surface waters or ocean waters.

Inland Surface Waters

All surface waters of the state that do not include the ocean, enclosed bays, or estuaries.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Maximum Daily Effluent Limitation (MDEL)

The highest allowable daily discharge of a pollutant, over a calendar day (or 24-hour period). For pollutants with limitations expressed in units of mass, the daily discharge is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the daily discharge is calculated as the arithmetic mean measurement of the pollutant over the day.

Median

The middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order).

If the number of measurements (n) is odd, then:

$$\text{median} = \frac{X_{(n+1)}}{2}$$

If n is even, then:

$$\text{median} = \frac{\frac{X_n}{2} + \frac{X_{n+1}}{2}}{2}$$

(i.e., the midpoint between the (n/2 and ((n/2)+1))).

Method Detection Limit (MDL)

MDL is the minimum concentration of a substance that can be reported with 99 percent confidence that the measured concentration is distinguishable from method blank results, as defined in 40 C.F.R. part 136, Attachment B.

Minimum Level (ML)

ML is the concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific

analytical procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Mixing Zone

Mixing Zone is a limited volume of receiving water that is allocated for mixing with a wastewater discharge where water quality criteria can be exceeded without causing adverse effects to the overall waterbody.

Not Detected (ND)

Sample results which are less than the laboratory's MDL.

Persistent Pollutants

Persistent pollutants are substances for which degradation or decomposition in the environment is nonexistent or very slow.

Pollutant Minimization Program (PMP)

PMP means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of a priority pollutant(s) through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Central Coast Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Pollution Prevention

Pollution Prevention means any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as defined in Water Code section 13263.3). Pollution prevention does not include actions that merely shift a pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State Water Resources Control Board (State Water Board) or Central Coast Water Board.

Reporting Level (RL)

The RL is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order, including an additional factor if applicable as discussed herein. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Central Coast Water Board either from Appendix 4 of the State Implementation Policy (SIP) in accordance with section 2.4.2 of the SIP or established in accordance with section 2.4.3 of the SIP. The ML is based on the proper application

of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the RL.

Source of Drinking Water

Any water designated as municipal or domestic supply (MUN) in a Central Coast Water Board Basin Plan.

Standard Deviation (σ)

Standard Deviation is a measure of variability that is calculated as follows:

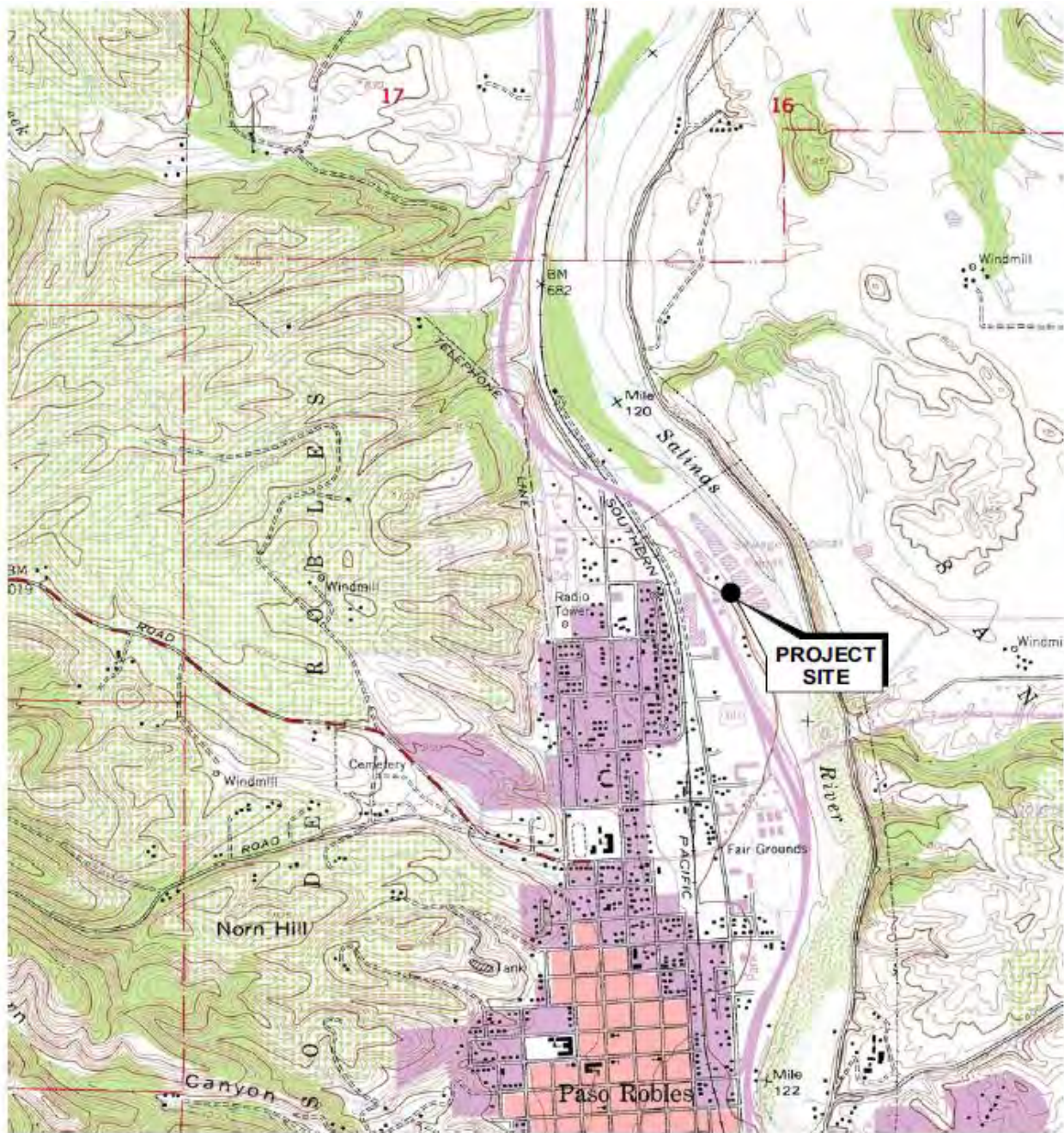
$$\text{Standard Deviation } (\sigma) = \frac{\sum (X - \mu)^2}{(n - 1)^{0.5}}$$

where: x is the observed value; μ is the arithmetic mean of the observed values; and n is the number of samples.

Toxicity Reduction Evaluation (TRE)

TRE is a study conducted in a stepwise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

ATTACHMENT B – MAPS



BASE MAP SOURCE: USGS 7.5' Paso Robles quadrangle map.

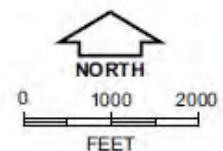


Figure B-1: Vicinity map showing location of the Facility.

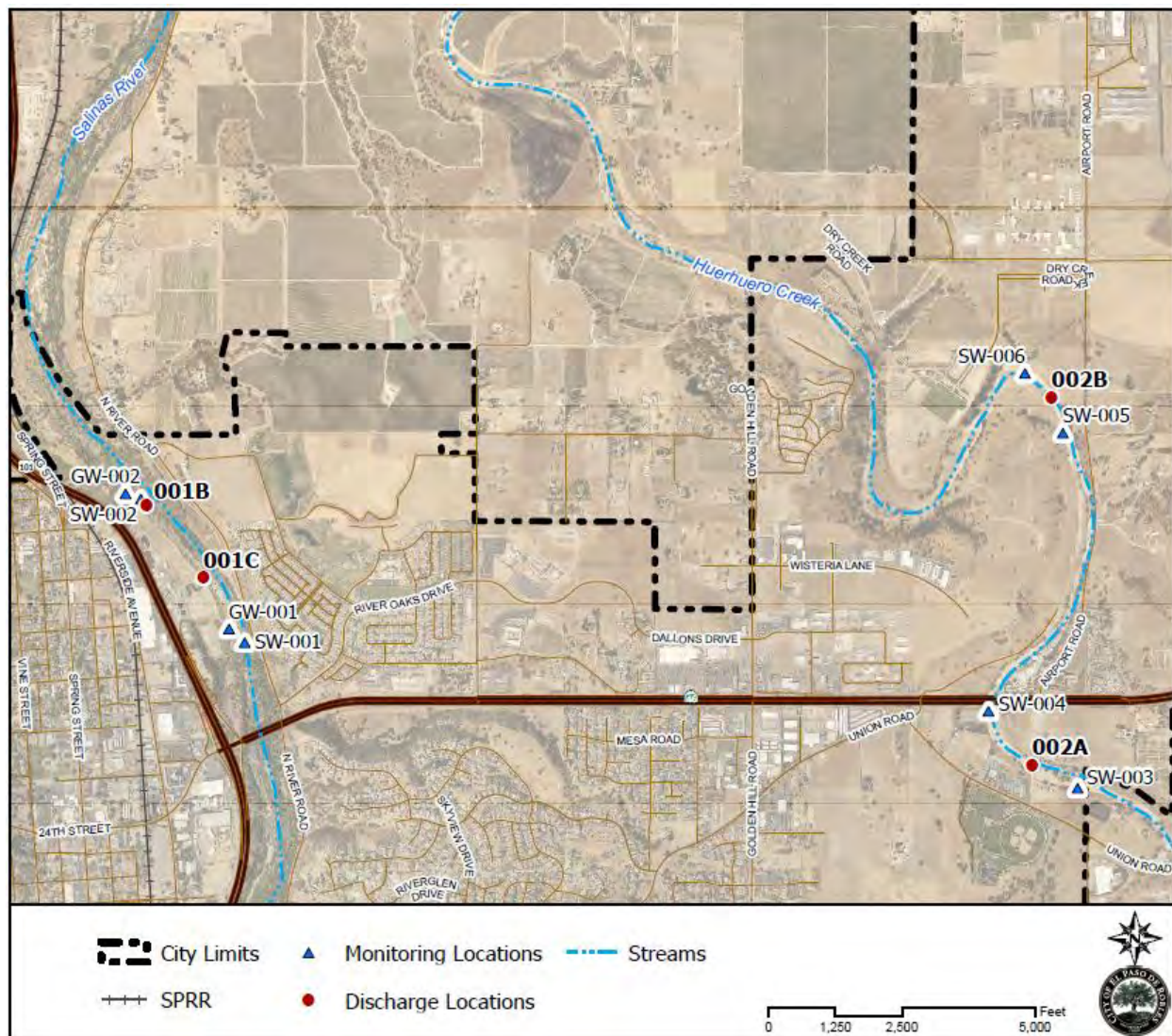


Figure B-2: Map showing locations of discharge points and surface water and groundwater monitoring.



ATTACHMENT C – PROCESS FLOW SCHEMATIC

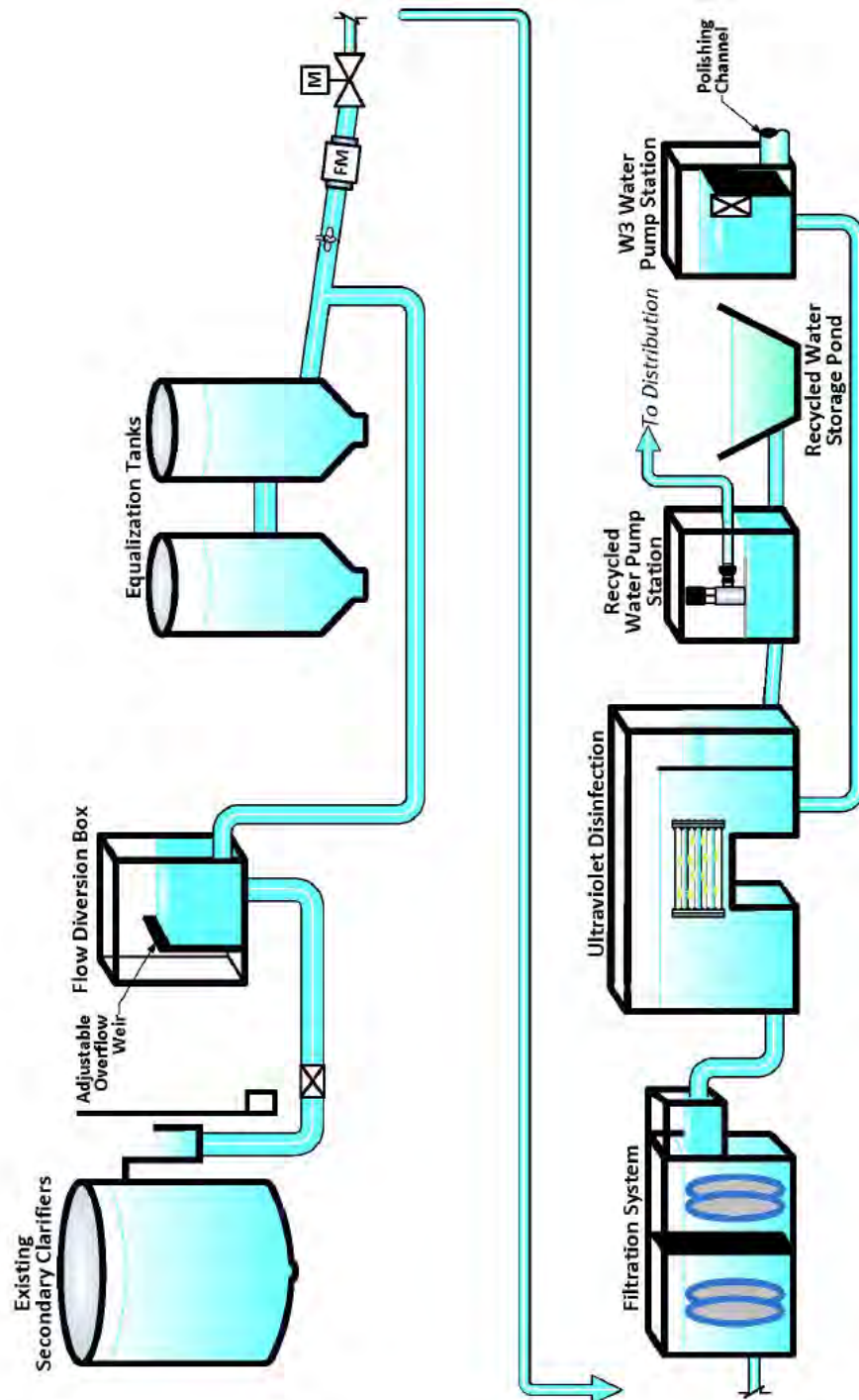


Figure C-2: Flow Schematic of Tertiary Treatment Facilities at the City of El Paso de Robles WWTP

ATTACHMENT D – STANDARD PROVISIONS

1. STANDARD PROVISIONS – PERMIT COMPLIANCE

1.1. Duty to Comply

- 1.1.1. The Discharger must comply with all terms, requirements, and conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 C.F.R. § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385.)
- 1.1.2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 C.F.R. § 122.41(a)(1).)

1.2. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 C.F.R. § 122.41(c).)

1.3. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 C.F.R. § 122.41(d).)

1.4. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also include adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 C.F.R. § 122.41(e).)

1.5. Property Rights

- 1.5.1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 C.F.R. § 122.41(g).)
- 1.5.2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 C.F.R. § 122.5(c).)

1.6. Inspection and Entry

The Discharger shall allow the Central Coast Water Board, State Water Board, U.S. Environmental Protection Agency (U.S. EPA), and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 U.S.C. § 1318(a)(4)(B); 40 C.F.R. § 122.41(i); Wat. Code, §§ 13267, 13383):

- 1.6.1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(B)(i); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383);
- 1.6.2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383);
- 1.6.3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C. § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, §§ 13267, 13383); and
- 1.6.4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 U.S.C. § 1318(a)(4)(B); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383.)

1.7. Bypass

1.7.1. Definitions

- 1.7.1.1. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 C.F.R. § 122.41(m)(1)(i).)
- 1.7.1.2. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 C.F.R. § 122.41(m)(1)(ii).)

1.7.2. **Bypass not exceeding limitations.** The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance 1.7.3, 1.7.4, and 1.7.5 below. (40 C.F.R. § 122.41(m)(2).)

1.7.3. **Prohibition of bypass.** Bypass is prohibited, and the Central Coast Water Board may take enforcement action against a Discharger for bypass, unless (40 C.F.R. § 122.41(m)(4)(i)):

- 1.7.3.1. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 C.F.R. § 122.41(m)(4)(i)(A));
- 1.7.3.2. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 C.F.R. § 122.41(m)(4)(i)(B)); and
- 1.7.3.3. The Discharger submitted notice to the Central Coast Water Board as required under Standard Provisions – Permit Compliance 1.7.5 below. (40 C.F.R. § 122.41(m)(4)(i)(C).)
- 1.7.4. The Central Coast Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Coast Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance 1.7.3 above. (40 C.F.R. § 122.41(m)(4)(ii).)

1.7.5. **Notice**

- 1.7.5.1. **Anticipated bypass.** If the Discharger knows in advance of the need for a bypass, it shall submit prior notice, if possible at least 10 days before the date of the bypass. The notice shall be sent to the Central Coast Water Board. As of December 21, 2023, be submitted electronically to the initial recipient defined in Standard Provisions – Reporting 5.10 below. Notices shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(m)(3)(i).)
- 1.7.5.2. **Unanticipated bypass.** The Discharger shall submit a notice of an unanticipated bypass as required in Standard Provisions - Reporting 5.5 below (24-hour notice). The notice shall be sent to the Central Coast Water Board. As of December 21, 2023, be submitted electronically to the initial recipient defined in Standard Provisions – Reporting 5.10 below. Notices shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(m)(3)(ii).)

1.8. **Upset**

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 C.F.R. § 122.41(n)(1).)

- 1.8.1. **Effect of an upset.** An upset constitutes an affirmative defense to an action brought for noncompliance with such technology based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance 1.8.2 below are met. No determination made during administrative review of claims that

noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 C.F.R. § 122.41(n)(2).)

- 1.8.2. **Conditions necessary for a demonstration of upset.** A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 C.F.R. § 122.41(n)(3)):
- 1.8.2.1. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 C.F.R. § 122.41(n)(3)(i));
 - 1.8.2.2. The permitted facility was, at the time, being properly operated (40 C.F.R. § 122.41(n)(3)(ii));
 - 1.8.2.3. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting 5.5.2.2 below (24-hour notice) (40 C.F.R. § 122.41(n)(3)(iii)); and
 - 1.8.2.4. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance 1.3 above. (40 C.F.R. § 122.41(n)(3)(iv).)
- 1.8.3. **Burden of proof.** In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 C.F.R. § 122.41(n)(4).)

2. STANDARD PROVISIONS – PERMIT ACTION

2.1. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 C.F.R. § 122.41(f).)

2.2. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 C.F.R. § 122.41(b).)

2.3. Transfers

This Order is not transferable to any person except after notice to the Central Coast Water Board. The Central Coast Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 C.F.R. §§ 122.41(l)(3), 122.61.)

3. STANDARD PROVISIONS – MONITORING

- 3.1. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 C.F.R. § 122.41(j)(1).)

- 3.2. Monitoring must be conducted according to test procedures approved under 40 C.F.R. part 136 for the analyses of pollutants unless another method is required under 40 C.F.R. chapter 1, subchapter N. Monitoring must be conducted according to sufficiently sensitive test methods approved under 40 C.F.R. part 136 for the analysis of pollutants or pollutant parameters or as required under 40 C.F.R. chapter 1, subchapter N. For the purposes of this paragraph, a method is sufficiently sensitive when:
- 3.2.1. The method minimum level (ML) is at or below the level of the most stringent effluent limitation established in the permit for the measured pollutant or pollutant parameter, and either the method ML is at or below the level of the most stringent applicable water quality criterion for the measured pollutant or pollutant parameter or the method ML is above the applicable water quality criterion but the amount of the pollutant or pollutant parameter in the facility's discharge is high enough that the method detects and quantifies the level of the pollutant or pollutant parameter in the discharge; or
- 3.2.2. The method has the lowest ML of the analytical methods approved under 40 C.F.R. part 136 or required under 40 C.F.R. chapter 1, subchapter N for the measured pollutant or pollutant parameter. In the case of pollutants or pollutant parameters for which there are no approved methods under 40 C.F.R. part 136 or otherwise required under 40 C.F.R. chapter 1, subchapter N, monitoring must be conducted according to a test procedure specified in this Order for such pollutants or pollutant parameters. (40 C.F.R. §§ 122.21(e)(3), 122.41(j)(4), 122.44(l)(1)(iv).)

4. STANDARD PROVISIONS – RECORDS

- 4.1. The Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Coast Water Board Executive Officer at any time. (40 C.F.R. § 122.41(j)(2).)
- 4.2. Records of monitoring information shall include:**
- 4.2.1. The date, exact place, and time of sampling or measurements (40 C.F.R. § 122.41(j)(3)(i));
- 4.2.2. The individual(s) who performed the sampling or measurements (40 C.F.R. § 122.41(j)(3)(ii));
- 4.2.3. The date(s) analyses were performed (40 C.F.R. § 122.41(j)(3)(iii));
- 4.2.4. The individual(s) who performed the analyses (40 C.F.R. § 122.41(j)(3)(iv));
- 4.2.5. The analytical techniques or methods used (40 C.F.R. § 122.41(j)(3)(v)); and
- 4.2.6. The results of such analyses. (40 C.F.R. § 122.41(j)(3)(vi).)

4.3. Claims of confidentiality for the following information will be denied (40 C.F.R. § 122.7(b)):

- 4.3.1. The name and address of any permit applicant or Discharger (40 C.F.R. § 122.7(b)(1)); and
- 4.3.2. Permit applications and attachments, permits and effluent data. (40 C.F.R. § 122.7(b)(2).)

5. STANDARD PROVISIONS – REPORTING

5.1. Duty to Provide Information

The Discharger shall furnish to the Central Coast Water Board, State Water Board, or U.S. EPA within a reasonable time, any information which the Central Coast Water Board, State Water Board, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Coast Water Board, State Water Board, or U.S. EPA copies of records required to be kept by this Order. (40 C.F.R. § 122.41(h); Wat. Code, §§ 13267, 13383.)

5.2. Signatory and Certification Requirements

- 5.2.1. All applications, reports, or information submitted to the Central Coast Water Board, State Water Board, and/or U.S. EPA shall be signed and certified in accordance with Standard Provisions – Reporting 5.2.2, 5.2.3, 5.2.4, 5.2.5, and 5.2.6 below. (40 C.F.R. § 122.41(k).)
- 5.2.2. All permit applications shall be signed by a responsible corporate officer. For the purpose of this section, a responsible corporate officer means: (i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or (ii) the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiating and directing other comprehensive measures to assure long term environmental compliance with environmental laws and regulations; the manager can ensure that the necessary systems are established or actions taken to gather complete and accurate information for permit application requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures. (40 C.F.R. § 122.22(a)(1).)
- 5.2.3. All permit applications shall be signed by a general partner or the proprietor, respectively. (40 C.F.R. § 122.22(a)(2).)
- 5.2.4. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or

- (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of U.S. EPA). (40 C.F.R. § 122.22(a)(3).)
- 5.2.5. All reports required by this Order and other information requested by the Central Coast Water Board, State Water Board, or U.S. EPA shall be signed by a person described in Standard Provisions – Reporting 5.2.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
- 5.2.5.1. The authorization is made in writing by a person described in Standard Provisions – Reporting 5.2.2 above (40 C.F.R. § 122.22(b)(1));
- 5.2.5.2. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 C.F.R. § 122.22(b)(2)); and
- 5.2.5.3. The written authorization is submitted to the Central Coast Water Board and State Water Board. (40 C.F.R. § 122.22(b)(3).)
- 5.2.6. If an authorization under Standard Provisions – Reporting 5. above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting 5. above must be submitted to the Central Coast Water Board and State Water Board prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 C.F.R. § 122.22(c).)
- 5.2.7. Any person signing a document under Standard Provisions – Reporting 5.2.2 or 5.2.3 above shall make the following certification:
- “I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 C.F.R. § 122.22(d).)
- 5.2.8. Any person providing the electronic signature for documents described in Standard Provisions – 5.2.1, 5.2.2, or 5.2.3 that are submitted electronically shall meet all relevant requirements of Standard Provisions – Reporting 5.2, and shall ensure that all relevant requirements of 40 C.F.R. part 3 (Cross-Media Electronic Reporting) and 40 C.F.R. part 127 (NPDES Electronic Reporting Requirements) are met for that submission. (40 C.F.R. § 122.22(e).)

5.3. Monitoring Reports

- 5.3.1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 C.F.R. § 122.41(l)(4).)
- 5.3.2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Coast Water Board or State Water Board. All reports and forms must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting 5.10 and comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(l)(4)(i).)
- 5.3.3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 C.F.R. part 136, or another method required for an industry-specific waste stream under 40 C.F.R. chapter 1, subchapter N, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or reporting form specified by the Central Coast Water Board or State Water Board. (40 C.F.R. § 122.41(l)(4)(ii).)
- 5.3.4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 C.F.R. § 122.41(l)(4)(iii).)

5.4. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 C.F.R. § 122.41(l)(5).)

5.5. Twenty-Four Hour Reporting

- 5.5.1. The Discharger shall report any noncompliance which may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A report shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The report shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance.

For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports must include the data described above (with the exception of time of discovery) as well as the type of event (i.e., combined sewer overflow, sanitary sewer overflow, or bypass event), type of overflow structure (e.g., manhole, combined sewer overflow outfall), discharge volume untreated by the treatment works treating domestic sewage, types of human health and environmental impacts of the event, and whether the noncompliance was related to wet weather.

As of December 21, 2023, all reports related to combined sewer overflows, sanitary sewer overflows, or bypass events must be submitted to the Central Coast Water Board and must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting 5.10. The reports shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. The Central Coast Water Board may also require the Discharger to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 C.F.R. § 122.41(l)(6)(i).)

5.5.2. The following shall be included as information that must be reported within 24 hours:

5.5.2.1. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(A).)

5.5.2.2. Any upset that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(B).)

5.5.3. The Central Coast Water Board may waive the above required written report on a case-by-case basis if an oral report has been received within 24 hours. (40 C.F.R. § 122.41(l)(6)(ii)(B).)

5.6. Planned Changes

The Discharger shall give notice to the Central Coast Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 C.F.R. § 122.41(l)(1)):

5.6.1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 C.F.R. § 122.41(l)(1)(i)); or

5.6.2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 C.F.R. § 122.41(l)(1)(ii).)

5.7. Anticipated Noncompliance

The Discharger shall give advance notice to the Central Coast Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with this Order's requirements. (40 C.F.R. § 122.41(l)(2).)

5.8. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting 5.3, 5.4, and 5.5 above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting 5.5 above. For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports shall contain the information described in Standard Provision – Reporting 5.5 and the applicable required data in appendix A to 40 C.F.R. part 127. The Central Coast Water Board may also require the Discharger to electronically submit reports not

related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 C.F.R. § 122.41(l)(7).)

5.9 Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Central Coast Water Board, State Water Board, or U.S. EPA, the Discharger shall promptly submit such facts or information. (40 C.F.R. § 122.41(l)(8).)

5.10. Initial Recipient for Electronic Reporting Data

The owner, operator, or the duly authorized representative is required to electronically submit NPDES information specified in appendix A to 40 C.F.R. part 127 to the initial recipient defined in 40 C.F.R. section 127.2(b). U.S. EPA will identify and publish the list of initial recipients on its website and in the Federal Register, by state and by NPDES data group [see 40 C.F.R. section 127.2(c)]. U.S. EPA will update and maintain this listing. (40 C.F.R. § 122.41(l)(9).)

6. STANDARD PROVISIONS – ENFORCEMENT

6.1. The Central Coast Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13268, 13385, 13386, and 13387.

7. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

7.1. Non-Municipal Facilities

Existing manufacturing, commercial, mining, and silvicultural Dischargers shall notify the Central Coast Water Board as soon as they know or have reason to believe (40 C.F.R. § 122.42(a)):

- 7.1.1. That any activity has occurred or will occur that would result in the discharge, on a routine or frequent basis, of any toxic pollutant that is not limited in this Order, if that discharge will exceed the highest of the following "notification levels" (40 C.F.R. § 122.42(a)(1)):
 - 7.1.1.1. 100 micrograms per liter (µg/L) (40 C.F.R. § 122.42(a)(1)(i));
 - 7.1.1.2. 200 µg/L for acrolein and acrylonitrile; 500 µg/L for 2,4 dinitrophenol and 2 methyl 4,6 dinitrophenol; and 1 milligram per liter (mg/L) for antimony (40 C.F.R. § 122.42(a)(1)(ii));
 - 7.1.1.3. Five (5) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge (40 C.F.R. § 122.42(a)(1)(iii)); or
 - 7.1.1.4. The level established by the Central Coast Water Board in accordance with section 122.44(f). (40 C.F.R. § 122.42(a)(1)(iv).)
- 7.1.2. That any activity has occurred or will occur that would result in the discharge, on a non-routine or infrequent basis, of any toxic pollutant that is not limited in this

Order, if that discharge will exceed the highest of the following “notification levels” (40 C.F.R. § 122.42(a)(2)):

- 7.1.2.1. 500 micrograms per liter (µg/L) (40 C.F.R. § 122.42(a)(2)(i));
- 7.1.2.2. 1 milligram per liter (mg/L) for antimony (40 C.F.R. § 122.42(a)(2)(ii));
- 7.1.2.3. Ten (10) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge (40 C.F.R. § 122.42(a)(2)(iii)); or
- 7.1.2.4. The level established by the Central Coast Water Board in accordance with section 122.44(f). (40 C.F.R. § 122.42(a)(2)(iv).)

7.2. Publicly Owned Treatment Works (POTWs)

All POTWs shall provide adequate notice to the Central Coast Water Board of the following (40 C.F.R. § 122.42(b)):

- 7.2.1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 C.F.R. § 122.42(b)(1)); and
- 7.2.2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 C.F.R. § 122.42(b)(2).)
- 7.2.3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 C.F.R. § 122.42(b)(3).)

8. CENTRAL COAST WATER BOARD STANDARD PROVISIONS

8.1. Central Coast Water Board Standard Provision – Prohibitions

- 8.1.1. Introduction of “incompatible wastes” to the treatment system is prohibited.
- 8.1.2. Discharge of high-level radiological waste and of radiological, chemical, and biological warfare agents is prohibited.
- 8.1.3. Discharge of “toxic pollutants” in violation of effluent standards and prohibitions established under section 307(a) of the Clean Water Act (CWA) is prohibited.
- 8.1.4. Discharge of sludge, sludge digester or thickener supernatant, and sludge drying bed leachate to drainageways, surface waters, or the ocean is prohibited.
- 8.1.5. Introduction of pollutants into the collection, treatment, or disposal system by and “indirect discharger” that:
 - 8.1.5.1. Inhibit or disrupt the treatment process, system operation, or the eventual use or disposal of sludge; or,
 - 8.1.5.2. Flow through the system to the receiving water untreated; and,

8.1.5.3. Cause or “significantly contribute” to a violation of any requirement of this Order, is prohibited.

8.1.6. Introduction of “pollutant free” wastewater to the collection, treatment, and disposal system in amounts that threaten compliance with this order is prohibited.

8.2. Central Coast Water Board Standard Provision – Provisions

8.2.1. Collection, treatment, and discharge of waste shall not create a nuisance or pollution, as defined by California Water Code (CWC) section 13050.

8.2.2. All facilities used for transport or treatment of wastes shall be adequately protected from inundation and washout as the result of a 100-year frequency flood.

8.2.3. Operation of collection, treatment, and disposal systems shall be in a manner that precludes public contact with wastewater.

8.2.4. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed in a manner approved by the Central Coast Water Board Executive Officer.

8.2.5. Publicly owned wastewater treatment plans shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to Title 23 of the California Administrative Code.

8.2.6. After notice and opportunity for a hearing, this order may be terminated for cause, including, but not limited to:

8.2.6.1. Violation of any term or condition contained in this order;

8.2.6.2. Obtaining this order by misrepresentation, or by failure to disclose fully all relevant facts;

8.2.6.3. A change in any condition or endangerment to human health or environment that requires a temporary or permanent reduction or elimination of the authorized discharge; and,

8.2.6.4. A substantial change in character, location, or volume of the discharge.

8.2.7. Provisions of this permit are severable. If any provision of the permit is found invalid, the remainder of the permit shall not be affected.

8.2.8. After notice and opportunity for hearing, this order may be modified or revoked and reissued for cause, including:

8.2.8.1. Promulgation of a new or revised effluent standard or limitation;

8.2.8.2. A material change in character, location, or volume of the discharge;

8.2.8.3. Access to new information that affects the terms of the permit, including applicable schedules;

8.2.8.4. Correction of technical mistakes or mistaken interpretations of law; and,

8.2.8.5. Other causes set forth under Sub-part D of 40 C.F.R. part 122.

- 8.2.9. Safeguards shall be provided to ensure maximal compliance with all terms and conditions of this permit. Safeguards shall include preventative and contingency plans and may also include alternative power sources, stand-by generators, retention capacity, operative procedures, or other precautions. Preventative and contingency plans for controlling and minimizing the effect of accidental discharges shall:
- 8.2.9.1. Identify possible situations that could cause “upset,” “overflow,” or “bypass,” or other noncompliance. (Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks and pipes should be considered).
 - 8.2.9.2. Evaluate the effectiveness of present facilities and procedures and describe procedures and steps to minimize or correct any adverse environmental impact resulting from noncompliance with the permit.
- 8.2.10. Physical Facilities shall be designed and constructed according to accepted engineering practice and shall be capable of full compliance with this order when properly operated and maintained. Proper operation and maintenance shall be described in an Operation and Maintenance Manual. Facilities shall be accessible during the wet-weather season.
- 8.2.11. The discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the discharger to achieve compliance with the conditions of this order. Electrical and mechanical equipment shall be maintained in accordance with appropriate practices and standards, such as NFPA 70B, Recommended Practice for Electrical Equipment Maintenance; NFPA 70E, Standard for Electrical Safety in the Workplace; ANSI/NETA MTS Standard for Maintenance: Testing Specifications for Electrical Power Equipment and Systems, or procedures established by insurance companies or industry resources.
- 8.2.12. If the discharger’s facilities are equipped with SCADA or other systems that implement wireless, remote operation, the discharger should implement appropriate safeguards against unauthorized access to the wireless systems. Standards such as NIST SP 800-53, Recommended Security Controls for Federal Information Systems, can provide guidance.
- 8.2.13. Production and use of reclaimed water is subject to the approval of the Central Coast Board. Production and use of reclaimed water shall be in conformance with recycling criteria established in chapter 3, Title 22, of the California Administrative Code and chapter 7, division 7, of the CWC. An engineering report pursuant to section 60323, Title 22, of the California Administrative Code is required and a waiver or water recycling requirements from the Central Coast Board is required before reclaimed water is supplied for any use, or to any user, not specifically identified and approved either in this Order or another order issued by this Board.

8.3. Central Coast Water Board Standard Provisions – General Monitoring Requirements

- 8.3.1. If results of monitoring a pollutant appear to violate effluent limitations based on a weekly, monthly, 30-day, or six-month period, but compliance or non-compliance cannot be validated because sampling is too infrequent, the frequency of sampling shall be increased to validate the test within the next monitoring period. The increased frequency shall be maintained until the Central Coast Water Board Executive Officer agrees the original monitoring frequency may be resumed.

For example, if copper is monitored annually and results exceed the six-month median numerical effluent limitation in the permit, monitoring of copper must be increased to a frequency of at least once every two months (Central Coast Water Board Standard Provisions – Definitions 1.7.13.). If suspended solids are monitored weekly and results exceed the weekly average numerical limit in the permit, monitoring of suspended solids must be increased to at least four (4) samples every week (Central Coast Water Board Standard Provisions – Definitions 1.7.14.).

- 8.3.2. Water quality analyses performed in order to monitor compliance with this permit shall be by a laboratory certified by the State Water Board Division of Drinking Water for the constituent(s) being analyzed. Bioassay(s) performed in order to monitor compliance with this permit shall be in accord with guidelines approved by the State Water Resources Control Board (State Water Board) and the State Department of Fish and Game. If the laboratory used or proposed for use by the discharger is not certified by the Division of Drinking Water or, where appropriate, the Department of Fish and Game due to restrictions in the State's laboratory certification program, the discharger shall be considered in compliance with this provision provided:
- 8.3.2.1. Data results remain consistent with results of samples analyzed by the Central Coast Water Board;
- 8.3.2.2. A quality assurance program is used at the laboratory, including a manual containing steps followed in this program that is available for inspections by the staff of the Central Coast Water Board; and,
- 8.3.2.3. Certification is pursued in good faith and obtained as soon as possible after the program is reinstated.
- 8.3.3. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. Samples shall be taken during periods of peak loading conditions. Influent samples shall be samples collected from the combined flows of all incoming wastes, excluding recycled wastes. Effluent samples shall be samples collected downstream of the last treatment unit and tributary flow and upstream of any mixing with receiving waters.
- 8.3.4. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.

8.4. Central Coast Water Board Standard Provisions – General Reporting Requirements

- 8.4.1. Reports of marine monitoring surveys conducted to meet receiving water monitoring requirements of the Monitoring and Reporting Program shall include at least the following information:
 - 8.4.1.1. A description of climatic and receiving water characteristics at the time of sampling (weather observations, floating debris, discoloration, wind speed and direction, swell or wave action, time of sampling, tide height, etc.).
 - 8.4.1.2. A description of sampling stations, including differences unique to each station (e.g., station location, grain size, rocks, shell litter, calcareous worm tubes, evident life, etc.).
 - 8.4.1.3. A description of the sampling procedures and preservation sequence used in the survey.
 - 8.4.1.4. A description of the exact method used for laboratory analysis. In general, analysis shall be conducted according to Central Coast Water Board Standard Provisions – 8.3.1 above, and Federal Standard Provision – Monitoring 3.2. However, variations in procedure are acceptable to accommodate the special requirements of sediment analysis. All such variations must be reported with the test results.
 - 8.4.1.5. A brief discussion of the results of the survey. The discussion shall compare data from the control station with data from the outfall stations. All tabulations and computations shall be explained.
- 8.4.2. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule shall be submitted within 14 days following each scheduled date unless otherwise specified within the permit. If reporting noncompliance, the report shall include a description of the reason, a description and schedule of tasks necessary to achieve compliance, and an estimated date for achieving full compliance. A second report shall be submitted within 14 days of full compliance.
- 8.4.3. The “Discharger” shall file a report of waste discharge or secure a waiver from the Central Coast Water Board Executive Officer at least 180 days before making any material change or proposed change in the character, location, or plume of the discharge.
- 8.4.4. Within 120 days after the discharger discovers, or is notified by the Central Coast Water Board, that monthly average daily flow will or may reach design capacity of waste treatment and/or disposal facilities within four (4) years, the discharger shall file a written report with the Central Coast Water Board. The report shall include:
 - 8.4.4.1. the best estimate of when the monthly average daily dry weather flow rate will equal or exceed design capacity; and,

- 8.4.4.2. a schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

In addition to complying with Federal Standard Provision – Reporting 5.2., the required technical report shall be prepared with public participation and reviewed, approved and jointly submitted by all planning and building departments having jurisdiction in the area served by the waste collection, treatment, or disposal facilities.

- 8.4.5. All “Dischargers” shall submit reports electronically to the:

State Water Board’s California Integrated Water Quality System (CIWQS) database at: <http://ciwqs.waterboards.ca.gov/>.

In addition, "Dischargers" with designated major discharges shall submit a copy of each document to U.S. EPA, Region 9’s Discharge Monitoring Report (NetDMR) database at: <https://cdxnodengn.epa.gov/net-netdmr/>.

Other correspondence may be sent to the Central Coast Region at: centralcoast@waterboards.ca.gov.

- 8.4.6. Transfer of control or ownership of a waste discharge facility must be preceded by a notice to the Central Coast Water Board at least 30 days in advance of the proposed transfer date. The notice must include a written agreement between the existing “Discharger” and proposed “Discharger” containing specific date for transfer of responsibility, coverage, and liability between them. Whether a permit may be transferred without modification or revocation and reissuance is at the discretion of the Board. If permit modification or revocation and reissuance is necessary, transfer may be delayed 180 days after the Central Coast Water Board's receipt of a complete permit application. Please also see Federal Standard Provision – Permit Action 2.3.
- 8.4.7. Except for data determined to be confidential under CWA section 308 (excludes effluent data and permit applications), all reports prepared in accordance with this permit shall be available for public inspection at the office of the Central Coast Water Board or Regional Administrator of U.S. EPA. Please also see Federal Standard Provision – Records 4.3.
- 8.4.8. By February 1 of each year, the discharger shall submit an annual report to the Central Coast Water Board. The report shall contain the following:
- 8.4.8.1. Both tabular and graphical summaries of the monitoring data obtained during the previous year.
- 8.4.8.2. A discussion of the previous year’s compliance record and corrective actions taken, or which may be needed, to bring the discharger into full compliance.
- 8.4.8.3. An evaluation of wastewater flows with projected flow rate increases over time and the estimated date when flows will reach facility capacity.

- 8.4.8.4. A discussion of operator certification and a list of current operating personnel and their grades of certification.
- 8.4.8.5. The date of the facility's Operation and Maintenance Manual (including contingency plans as described in Central Coast Water Board Standard Provisions – 8.2.9), the date the manual was last reviewed, and whether the manual is complete and valid for the current facility.
- 8.4.8.6. A discussion of the laboratories used by the discharger to monitor compliance with effluent limits and a summary of performance relative to Central Coast Water Board Standard Provisions – General Monitoring Requirements 8.3.
- 8.4.8.7. If the facility treats industrial or domestic wastewater and there is no provision for periodic sludge monitoring in the Monitoring and Reporting Program, the report shall include a summary of sludge quantities, analyses of its chemical and moisture content, and its ultimate destination.
- 8.4.8.8. If appropriate, the report shall also evaluate the effectiveness of the local source control or pretreatment program using the State Water Resources Control Board's "Guidelines for Determining the Effectiveness of Local Pretreatment Program."

8.5. Central Coast Water Board Standard Provisions – General Pretreatment Provisions

- 8.5.1. Discharge of pollutants by "indirect dischargers" in specific industrial sub-categories (appendix C, 40 C.F.R. part 403), where categorical pretreatment standards have been established, or are to be established, (according to 40 C.F.R. chapter 1, subchapter N), shall comply with the appropriate pretreatment standards:
 - 8.5.1.1. By the date specified therein;
 - 8.5.1.2. Within three (3) years of the effective date specified therein, but in no case later than July 1, 1984; or,
 - 8.5.1.3. If a new indirect discharger, upon commencement of discharge.

8.6. Central Coast Water Board Standard Provision – Enforcement

- 8.6.1. Any person failing to file a report of waste discharge or other report as required by this permit shall be subject to a civil penalty not to exceed \$5,000 per day.
- 8.6.2. Upon reduction, loss, or failure of the treatment facility, the "Discharger" shall, to the extent necessary to maintain compliance with this permit, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided.

8.7. Central Coast Water Board Standard Provisions – Definitions (Not otherwise included in Attachment A to this Order)

- 8.7.1. A "composite sample" is a combination of no fewer than eight (8) individual samples obtained at equal time intervals (usually hourly) over the specified

sampling (composite) period. The volume of each individual sample is proportional to the flow rate at the time of sampling. The period shall be specified in the Monitoring and Reporting Program ordered by the Central Coast Water Board Executive Officer.

- 8.7.2. "Daily Maximum" limit means the maximum acceptable concentration or mass emission rate of a pollutant measured during a calendar day or during any 24-hour period reasonably representative of the calendar day for purposes of sampling. It is normally compared with results based on "composite samples" except for ammonia, total chlorine, phenolic compounds, and toxicity concentration. For all exceptions, comparisons will be made with results from a "grab sample".
- 8.7.3. "Discharger", as used herein, means, as appropriate: (1) the Discharger, (2) the local sewerage entity (when the collection system is not owned and operated by the Discharger), or (3) "indirect discharger" (where "Discharger" appears in the same paragraph as "indirect discharger", it refers to the discharger.)
- 8.7.4. "Duly Authorized Representative" is one where:
- 8.7.4.1. the authorization is made in writing by a person described in the signatory paragraph of Federal Standard Provision 5.2.;
- 8.7.4.2. the authorization specifies either an individual or the occupant of a position having either responsibility for the overall operation of the regulated facility, such as the plant manager, or overall responsibility for environmental matters of the company; and,
- 8.7.4.3. the written authorization was submitted to the Central Coast Water Board.
- 8.7.5. A "grab sample" is defined as any individual sample collected in less than 15 minutes. "Grab samples" shall be collected during peak loading conditions, which may or may not be during hydraulic peaks. It is used primarily in determining compliance with the daily maximum limits identified in Central Coast Water Board Standard Provision – 8.7.2. and instantaneous maximum limits.
- 8.7.6. "Hazardous substance" means any substance designated under 40 C.F.R. part 116 pursuant to section 311 of the Clean Water Act.
- 8.7.7. "Incompatible wastes" are:
- 8.7.7.1. Wastes which create a fire or explosion hazard in the treatment works;
- 8.7.7.2. Wastes which will cause corrosive structural damage to treatment works, but in no case wastes with a pH lower than 5.0 unless the works is specifically designed to accommodate such wastes;
- 8.7.7.3. Solid or viscous wastes in amounts which cause obstruction to flow in sewers, or which cause other interference with proper operation of treatment works;
- 8.7.7.4. Any waste, including oxygen demanding pollutants (BOD, etc.), released in such volume or strength as to cause inhibition or disruption in the treatment works and subsequent treatment process upset and loss of treatment efficiency; and,

- 8.7.7.5. Heat in amounts that inhibit or disrupt biological activity in the treatment works or that raise influent temperatures above 40°C (104°F) unless the treatment works is designed to accommodate such heat.
- 8.7.8. "Indirect Discharger" means a non-domestic discharger introducing pollutants into a publicly owned treatment and disposal system.
- 8.7.9. "Log Mean" is the geometric mean. Used for determining compliance of fecal or total coliform populations, it is calculated with the following equation:
- $\text{Log Mean} = (C_1 \times C_2 \times \dots \times C_n)^{1/n}$,
in which "n" is the number of days samples were analyzed during the period and any "C" is the concentration of bacteria (MPN/100 mL) found on each day of sampling. "n" should be five or more.
- 8.7.10. "Mass emission rate" is a daily rate defined by the following equations:
- mass emission rate (lbs/day) = $8.34 \times Q \times C$; and,
- where "C" (in mg/L) is the measured daily constituent concentration or the average of measured daily constituent concentrations and "Q" (in MGD) is the measured daily flowrate or the average of measured daily flow rates over the period of interest.
- 8.7.11. The "Maximum Allowable Mass Emission Rate," whether for a month, week, day, or six-month period, is a daily rate determined with the formulas in Central Coast Water Board Standard Provision – Provision 8.7.10, above, using the effluent concentration limit specified in the permit for the period and the average of measured daily flows (up to the allowable flow) over the period.
- 8.7.12. "Maximum Allowable Six-Month Median Mass Emission Rate" is a daily rate determined with the formulas in Central Coast Water Board Standard Provision – Provision 8.7.10, above, using the "six-month Median" effluent limit specified in the permit, and the average of measured daily flows (up to the allowable flow) over a 180-day period.
- 8.7.13. "Median" is the value below which half the samples (ranked progressively by increasing value) fall. It may be considered the middle value, or the average of two middle values.
- 8.7.14. "Monthly Average" (or "Weekly Average", as the case may be) is the arithmetic mean of daily concentrations or of daily mass emission rates over the specified 30-day (or 7-day) period.
- $\text{Average} = (X_1 + X_2 + \dots + X_n) / n$
- in which "n" is the number of days samples were analyzed during the period and "X" is either the constituent concentration (mg/l) or mass emission rate (lbs/day) for each sampled day. "n" should be four or greater.
- 8.7.15. "Municipality" means a city, town, borough, county, district, association, or other public body created by or under State law and having jurisdiction over disposal of sewage, industrial waste, or other waste.

- 8.7.16. "Overflow" means the intentional or unintentional diversion of flow from the collection and transport systems, including pumping facilities.
- 8.7.17. "Pollutant-free wastewater" means inflow and infiltration, stormwaters, and cooling waters and condensates which are essentially free of pollutants.
- 8.7.18. "Primary Industry Category" means any industry category listed in 40 C.F.R. part 122, Appendix A.
- 8.7.19. "Removal Efficiency" is the ratio of pollutants removed by the treatment unit to pollutants entering the treatment unit. Removal efficiencies of a treatment plant shall be determined using "Monthly averages" of pollutant concentrations (C, in mg/l) of influent and effluent samples collected about the same time and the following equation (or its equivalent):

$$C_{\text{effluent}} \text{ Removal Efficiency (\%)} = 100 \times (1 - C_{\text{effluent}} / C_{\text{influent}})$$

- 8.7.20. "Severe property damage" means substantial physical damage to property, damage to treatment facilities which causes them to become inoperable, or substantial and permanent loss to natural resources which can reasonably be expected to occur in the absence of a "bypass". It does not mean economic loss caused by delays in production.
- 8.7.21. "Sludge" means the solids, residues, and precipitates separated from, or created in, wastewater by the unit processes of a treatment system.
- 8.7.22. To "significantly contribute" to a permit violation means an "indirect discharger" must:
- 8.7.22.1. Discharge a daily pollutant loading in excess of that allowed by contract with the "Discharger" or by Federal, State, or Local law;
- 8.7.22.2. Discharge wastewater which substantially differs in nature or constituents from its average discharge;
- 8.7.22.3. Discharge pollutants, either alone or in conjunction with discharges from other sources, which results in a permit violation or prevents sewage sludge use or disposal; or
- 8.7.22.4. Discharge pollutants, either alone or in conjunction with pollutants from other sources that increase the magnitude or duration of permit violations.
- 8.7.23. "Toxic Pollutant" means any pollutant listed as toxic under Section 307 (a) (1) of the Clean Water Act or under 40 C.F.R. part 122, Appendix D. Violation of maximum daily discharge limitations are subject to 24-hour reporting (Federal Standard Provisions 5.5.).
- 8.7.24. "Zone of Initial Dilution" means the region surrounding or adjacent to the end of an outfall pipe or diffuser ports whose boundaries are defined through calculation of a plume model verified by the State Water Board.

ATTACHMENT E – MONITORING AND REPORTING PROGRAM

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM

Clean Water Act (CWA) sections 308 and 122.41(h), (j)-(l), 122.44(i), and title 40 of the Code of Federal Regulations (40 C.F.R.) section 122.48 require that all National Pollutant Discharge Elimination System (NPDES) permits specify monitoring and reporting requirements. California Water Code sections 13267 and 13383 also authorize the California Regional Water Quality Control Board, Central Coast Region (Central Coast Water Board) to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. This Monitoring and Reporting Program (MRP) establishes monitoring, reporting, and recordkeeping requirements that implement the federal and California laws and/or regulations.

1. GENERAL MONITORING PROVISIONS

- 1.1. Laboratories analyzing monitoring samples shall be certified by the State Water Board Division of Drinking Water Environmental Laboratory Accreditation Program, in accordance with the provision of Water Code section 13176 and must include quality assurance/quality control data with their reports.
- 1.2. Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring locations specified in this MRP and, unless otherwise specified, before the monitored flow joins or is diluted by any other waste stream, body of water, or substance. Monitoring locations shall not be changed without notification to and approval of the Central Coast Water Board.
- 1.3. Appropriate flow measurement devices and methods consistent with accepted scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. The devices shall be installed, calibrated, and maintained to ensure that the accuracy of the measurements is consistent with the accepted capability of that type of device. Devices selected shall be capable of measuring flows with a maximum deviation of less than ± 10 percent from true discharge rates throughout the range of expected discharge volumes. Guidance in selection, installation, calibration, and operation of acceptable flow measurement devices can be obtained from the following references.
 - 1.3.1. *A Guide to Methods and Standards for the Measurement of Water Flow*, U.S. Department of Commerce, National Bureau of Standards, NBS Special Publication 421, May 1975, 96 pp.
<http://nvlpubs.nist.gov/nistpubs/Legacy/SP/nbsspecialpublication421.pdf>
 - 1.3.2. *Water Measurement Manual*, U.S. Department of Interior, Bureau of Reclamation, Third Edition, Revised Reprint, 2001, 317 pp.
<https://www.usbr.gov/tsc/techreferences/mands/wmm/index.htm>
 - 1.3.3. *Flow Measurement in Open Channels and Closed Conduits*, U.S. Department of Commerce, National Bureau of Standards, NBS Special Publication 484, October 1977, 982 pp.
<https://nvlpubs.nist.gov/nistpubs/Legacy/SP/nbsspecialpublication484v2.pdf>

- 1.3.4. NPDES Compliance Inspection Manual, Chapter 6 – Flow Measurement, U.S. Environmental Protection Agency (U.S. EPA), Office of Water Enforcement, Publication Number 305-K-17-001, January 2017, 918 pp.
<https://www.epa.gov/compliance/compliance-inspection-manual-national-pollutant-discharge-elimination-system>
- 1.4. All monitoring instruments and devices used by the City of El Paso de Robles (Discharger) to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year to ensure continued accuracy of the devices.
- 1.5. Monitoring results, including noncompliance, shall be reported at intervals and in a manner specified in this MRP.
- 1.6. Unless otherwise specified by this MRP, all monitoring shall be conducted according to test procedures established at 40 C.F.R. part 136, Guidelines Establishing Test Procedures for Analysis of Pollutants. All analyses shall be conducted using the lowest practical quantitation limit achievable using the specified methodology. Where effluent limitations are set below the lowest achievable quantitation limits, pollutants not detected at the lowest practical quantitation limits will be considered in compliance with effluent limitations. Analysis for toxic pollutants listed by the California Toxics Rule shall also adhere to guidance and requirements contained in the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (2005) (SIP).
- 1.7. The Discharger shall ensure that the results of the Discharge Monitoring Report-Quality Assurance (DMR-QA) Study or the most recent Water Pollution Performance Evaluation Study are submitted annually to the State Water Board at the following address:
- State Water Resources Control Board
Quality Assurance Program Officer
Office of Information Management and Analysis
101 I Street, Sacramento, CA 95814

2. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table E-1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
	INF-001	Influent wastewater at the plant headworks, prior to treatment and following all significant inputs of wastewater to the treatment system.

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
001B	EFF-001B	Location where representative sample of secondary and/or tertiary treated effluent can be collected, after all treatment, and prior to contact with the Salinas River at the following discharge location: Latitude: 35.653° Longitude: -120.690°
001C	EFF-001C	Location where representative sample of secondary and/or tertiary treated effluent can be collected, after all treatment, and prior to contact with the Salinas River at the following discharge location: Latitude: 35.650° Longitude: -120.686°
002A and 002B	EFF-002	Location where a representative sample of tertiary treated effluent can be collected, after all treatment, and prior to contact with Huerhuero Creek at the following discharge locations: <u>Discharge Point 002A</u> Latitude: 35.642° Longitude: -120.644° <u>Discharge Point 002B</u> Latitude: 35.658° Longitude: -120.643°
003	RCY-001	Location where a representative sample of tertiary treated recycled water can be collected, after all treatment and prior to discharge or distribution.
	SW-001	Surface water monitoring point, in the Salinas River upstream of all outfalls, where representative samples of background water quality conditions can be collected.
	SW-002	Surface water monitoring point, in the Salinas River approximately 50 feet downstream of Discharge Point 001B.
	SW-003	Surface water monitoring point, in Huerhuero Creek upstream of Discharge Point 002A, where representative samples of background water quality conditions can be collected.

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
	SW-004	Surface water monitoring point, in Huerhuero Creek approximately 1,200 feet downstream of Discharge Point 002A, approximately where Huerhuero Creek passes under California Highway 46 East.
	SW-005	Surface water monitoring point, in Huerhuero Creek upstream of Discharge Point 002B, where representative samples of background water quality conditions can be collected.
	SW-006	Surface water monitoring point, in Huerhuero Creek approximately 400 feet downstream of Discharge Point 002B, just upstream of where an unnamed drainageway enters into Huerhuero Creek.
	GW-001	Upgradient groundwater monitoring well from Discharge Points 001B and 001C, where representative samples of upgradient groundwater can be collected, located at: Latitude: 35.648° Longitude: -120.685°
	GW-002	Downgradient groundwater monitoring well from Discharge Points 001B and 001C, where representative samples of downgradient groundwater can be collected, located at: Latitude: 35.653° Longitude: -120.690°
	BIO-001	Biosolids at the last point in the biosolids handling process where representative samples of residual solids from the treatment process can be obtained.
	PWS-001	Representative samples of the City's potable water supply from the eastern portion of the City, located at Sherwood Park. Latitude: 35.609° Longitude: -120.658°
	PWS-002	Representative samples of the City's potable water supply from the western portion of the City, located at Downtown City Park. Latitude: 35.626° Longitude: -120.690°

The coordinates information in Table E-1 are approximate for administrative purposes.

3. INFLUENT MONITORING REQUIREMENTS

3.1. Monitoring Location INF-001

3.1.1. The Discharger shall monitor influent to the City of El Paso de Robles Wastewater Treatment Plant (Facility) at Monitoring Location INF-001 as below:

Table E-2. Influent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency
Flow	Million gallons per day (MGD)	Continuous	Continuous ^[1]
Biochemical Oxygen Demand 5-day @ 20°C (BOD ₅) ^[2]	Milligram per liter (mg/L)	24-hour Composite	1/Week
Total Suspended Solids (TSS) ^[2]	mg/L	24-hour Composite	1/Week
Total Dissolved Solids (TDS)	mg/L	24-hour Composite	1/Year
Boron (B)	mg/L	Grab	1/Year
Fluoride (F)	mg/L	Grab	1/Year

^[1] The Discharger shall report the average and maximum daily flows.

^[2] Collection of BOD₅ and TSS samples shall occur on days that effluent samples are collected.

4. EFFLUENT MONITORING REQUIREMENTS

4.1. Monitoring Locations EFF-001B, EFF-001C, and EFF-002

4.1.1. The Discharger shall monitor effluent discharged at Monitoring Locations EFF-001B, EFF-001C, and EFF-002. Monitoring is not required for monitoring locations associated with discharge points with no discharge. With the exception of flow parameters and unless specified otherwise in Tables E-1 or E-3, the Discharger may use representative samples from monitoring locations EFF-001B and RCY-001 to meet monitoring location EFF-002 sampling requirements. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding Minimum Level:

Table E-3. Effluent Monitoring – Monitoring Locations EFF-001B, EFF-001C, and EFF-002

Parameter	Units	Sample Type	Minimum Sampling Frequency
Flow Volume	MGD	Metered	1/Day
Instantaneous Maximum Flow	MGD	Metered	1/Day
Maximum Daily Flow	MGD	Calculated	1/Month
Mean Daily Flow	MGD	Calculated	1/Month
pH	standard units	Grab	5/Week
Turbidity	Nephelometric Turbidity Unit (NTU)	Metered	5/Week
Settleable Solids	milliliter per liter (mL/L)	Grab	1/Week
Total Chlorine Residual ^{[1] [2]}	mg/L	Grab	1/Week
Chlorine Used	pounds per day (lbs/day)	Calculated	1/Day
<i>E. coli</i> ^[1]	Most probable number (MPN)/100 mL	Grab	2/Week
Total Coliform Organisms (applies only to EFF-002) ^[1]	MPN/100 mL	Grab	1/Week
Dissolved Oxygen ^[1]	mg/L	Grab	1/Week
BOD ₅	mg/L	24-hour Composite	1/Week
BOD ₅	percent removal	Calculated	1/Week
TSS	mg/L	24-hour Composite	1/Week
TSS	percent removal	Calculated	1/Week
Chloride	mg/L	24-hour Composite	1/Month
Temperature	degrees Fahrenheit (°F)	Instantaneous	1/Month
Oil and Grease	mg/L	Grab	1/Month
Sodium	mg/L	24-hour Composite	1/Month
Sulfate	mg/L	24-hour Composite	1/Month
TDS	mg/L	24-hour Composite	1/Month
Un-ionized Ammonia	mg/L	Calculated ^[3]	1/Quarter
Ammonia, Total (as N)	mg/L	Grab	1/Quarter

Parameter	Units	Sample Type	Minimum Sampling Frequency
Nitrogen, Total (as N)	mg/L	Grab	1/Quarter
Nitrate (as N)	mg/L	Grab	1/Quarter
Nitrite (as N)	mg/L	Grab	1/Quarter
Hardness, as CaCO ₃	mg/L	24-hour Composite	1/Quarter
Chlorodibromomethane	microgram per liter (µg/L)	24-hour Composite	1/Quarter
Copper, Total Recoverable	µg/L	24-hour Composite	1/Quarter
Mercury, Total Recoverable ^[4]	µg/L	24-hour Composite	1/Year
Selenium, Total Recoverable	µg/L	24-hour Composite	1/Quarter
Dichlorobromomethane	µg/L	24-hour Composite	1/Quarter
Chloroform ^{[1][5]}	µg/L	24-hour Composite	1/Quarter
Bromoform ^{[1][5]}	µg/L	24-hour Composite	1/Quarter
Acute Toxicity ^[6]	Toxic Units Acute (TUA)	24-hour Composite	1/Year
Chronic Toxicity ^[6]	Toxic Units Chronic (TUC)	24-hour Composite	1/Year
Calcium (Ca)	mg/L	Grab	1/Year
Magnesium (Mg)	mg/L	Grab	1/Year
Potassium (K)	mg/L	Grab	1/Year
Bicarbonate (HCO ₃)	mg/L	Grab	1/Year
Carbonate (CO ₃)	mg/L	Grab	1/Year
Fluoride (F)	mg/L	Grab	1/Year
Boron	µg/L	24-hour Composite	1/Permit Term
Methylene Blue Activated Substances	µg/L	24-hour Composite	1/Permit Term
Phthalate Esters	µg/L	24-hour Composite	1/Permit Term
CTR Pollutants ^{[7] [8]}	µg/L	24-hour Composite	1/Permit Term
Title 22 Pollutants ^{[9] [10]}	µg/L	24-hour Composite	1/Permit Term

^[1] For monitoring location EFF-002 sampling requirements, when discharging from Discharge Points 002A and/or 002B, the Discharger shall sample

for this parameter downstream of the dechlorination station at the Barney Schwartz Sports Park.

- [2] Monitoring required only on days when sodium hypochlorite or other chlorinating agents are used for disinfection of the flow discharged to the Salinas River (Discharge Points 001B and 001C) or to prevent regrowth in conveyance system for the flow discharged to Huerhuero Creek (Discharge Points 002A and 002B). Compliance determinations for total chlorine residual shall be based on 99 percent compliance. To determine 99 percent compliance with the effluent limitation for total chlorine residual, the following conditions shall be met: (1) the total time during which total chlorine residual exceeds 0.1 mg/L (instantaneous maximum value) shall not exceed 7 hours and 26 minutes in any calendar month; (2) no excursion above 0.1 mg/L shall exceed 30 minutes; and (3) no excursion shall exceed 2.0 mg/L. Verification of excursion length shall be submitted with monthly monitoring report.
- [3] Un-ionized ammonia shall be calculated based on the following formula, or as otherwise approved by the Central Coast Water Board:

$$\text{Fraction of NH}_3 = 1/(1+10^{(pK - pH)})$$

Where:

$$pK = 0.09018 + 2,729.92/T$$

T = Temperature, in degrees Kelvin, taken as a field measurement at the time the sample is collected for total ammonia analysis

pH = pH taken as a field measurement at the time the sample is collected for total ammonia analysis

- [4] Analyses, compliance determination, and reporting for mercury shall adhere to applicable provisions of Part 2 of the Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Tribal and Subsistence Fishing Beneficial Uses and Mercury Provisions (SIP Part 2). The annual average mercury concentration in the effluent shall be calculated as an arithmetic mean of all mercury effluent samples collected during a calendar year. For any sample reported as below the detection limit, one half of the detection limit shall be used to calculate the arithmetic mean. For any sample reported as below the quantitation limit and above the detection shall be used to calculate the arithmetic mean.
- [5] Monitoring required only if using, on day of monitoring, sodium hypochlorite or other chlorinating agents for disinfection of the flow discharged to the Salinas River (Discharge Points 001B and 001C) or to prevent regrowth in the conveyance system for the flow discharged to Huerhuero Creek (Discharge Points 002A and 002B).
- [6] Whole effluent toxicity monitoring shall be conducted according to the requirements established in section 5 of this MRP.
- [7] The California Toxics Rule (CTR) priority pollutants are those listed by the CTR at 40 C.F.R. section 131.38 (b) (1). These pollutants shall be monitored one time per permit term. Analyses, compliance determination, and reporting for these pollutants shall adhere to applicable provisions of the Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California (SIP). The Discharger shall instruct its analytical laboratory to establish calibration standards so that the Minimum Levels (MLs) presented in Appendix 4 of the SIP are the lowest calibration standards. The Discharger and its analytical laboratory shall select MLs which are below applicable water quality criteria of the CTR; and when

applicable water quality criteria are below all MLs, the Discharger and its analytical laboratory shall select the lowest ML. Monitoring for the CTR pollutants in effluent shall occur simultaneously with monitoring required for the CTR pollutants in receiving water.

- [8] Those 126 pollutants with applicable water quality objectives established by the California Toxics Rule (CTR) at 40 C.F.R. section 131.38.
- [9] The Title 22 pollutants are those pollutants for which Maximum Contaminant Levels (MCLs) have been established at Title 22, division 4, chapter 15, sections 64431 (inorganic chemicals) and 64444 (organic chemicals) of the California Code of Regulations. Where these pollutants are included in other groups of pollutants (CTR Priority Pollutants), monitoring does not need to be duplicated. Analytical methods shall adhere to the Detection Limits for Purposes of Reporting (DLRs) established by Title 22 of the California Code of Regulations, division 4, chapter 15, section 64432 and 64445.1. Monitoring for the Title 22 pollutants in effluent shall occur simultaneously with monitoring required for the Title 22 pollutants in receiving water.
- [10] Analytical methods shall adhere to the Detection Limits for Purposes of Reporting (DLRs) established by Title 22 of the California Code of Regulations, division 4, chapter 15, section 64432 (inorganics) and section 64445.1 (organics).

5. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

5.1. Acute Toxicity

5.1.1. Acute Toxicity Monitoring Requirements – Monitoring Locations EFF-001B, EFF-001C, and EFF-002

- 5.1.1.1. Bioassays shall be performed to evaluate the toxicity of the discharge in accordance with the following procedures unless otherwise specified by the Central Coast Water Board's Executive Officer or designee:

Table E-4. Approved Test for Acute Toxicity – Fresh Water

Species	Effect	Test Duration (days)	Reference
Fathead Minnow (<i>Pimephales promelas</i>)	Larval Survival and Growth	7	EPA/821-R-02-012 (Acute)
Water Flea (<i>Ceriodaphnia dubia</i>)	Survival; number of young	6 to 8 days	EPA/821-R-02-012 (Acute)

- 5.1.1.2. Both test species given above shall be used to measure acute toxicity:
- 5.1.1.3. Determination of acute toxicity shall be based on mortality data derived from chronic toxicity tests, utilizing these species, as specified below.
- 5.1.1.4. The presence of acute toxicity shall be determined as significantly reduced survival of test organisms at 100 percent effluent compared to a control using a statistical t-test. The Discharger shall include with the self monitoring report the percent survival of the organisms for both the effluent and control, and the results of the t-test ("statistically different" or "not statistically different").

5.2. Chronic Toxicity

5.2.1. Chronic Toxicity Monitoring Requirements – Monitoring Locations EFF-001B, EFF-001C, and EFF-002

5.2.1.1. **Sampling.** The Discharger shall collect 24-hour composite samples of the effluent at monitoring locations EFF-001B, EFF-001C, and EFF-002 as specified in Table E-1 above, for critical life stage toxicity testing as indicated below.

Table E-5. Short-Term Methods for Estimating Chronic Toxicity – Fresh Water

Species	Scientific Name	Effect	Test Duration (days)
Fathead Minnow	<i>Pimephales promelas</i>	Larval Survival and Growth	7
Water Flea	<i>Ceriodaphnia dubia</i>	Survival; number of young	6 to 8 days
Green Alga	<i>Selenastrum capricornutum</i>	Growth Rate	4 days

5.2.1.2. **Test Species.** The test species shall include a vertebrate, and invertebrate, and an aquatic plant. After a three-month screening period, or based on the last three years of historical test results, monitoring may be reduced to the most sensitive species. Screening phase chronic toxicity monitoring shall be conducted with the three species in the table above with approved test protocols. The Central Coast Water Board Executive Officer may change the test species if data suggest that another test species is more sensitive to the discharge.

5.2.1.3. **Methods.** Sample collection, handling, and preservation shall be in accordance with U.S. EPA protocols. In addition, bioassays shall be conducted in compliance with the most recently promulgated test methods, as shown in Appendix E-1 and *Short-Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms*, currently third edition (EPA-821-R-02-014) and *Short-Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms*, currently fourth Edition (EPA-821-R-02-013), with exceptions granted the Discharger by the Central Coast Water Board Executive Officer and the Environmental Laboratory Accreditation Program (ELAP).

5.2.1.4. **Dilution Series.** The Discharger shall conduct tests at 100%. The “%” represents percent effluent as discharged. The Discharger may use the biological buffer MOPS (3-(N-Morpholino) propanesulfonic acid) to control pH drift and ammonia toxicity caused by increasing pH during the test.

5.2.2. Chronic Toxicity Reporting Program

5.2.2.1. **Routine Reporting.** Toxicity test results for the current reporting period shall include, at a minimum, for each test:

5.2.2.1.1. Sample dates

5.2.2.1.2. Test initiation date

5.2.2.1.3. Test species

5.2.2.1.4. End point values for each dilution (e.g. number of young, growth rate, percent survival)

5.2.2.1.5. NOEC values in percent effluent

5.2.2.1.6. TUC values (100/NOEC)

5.2.2.1.7. Mean percent mortality ($\pm$ s.d.) after 96 hours in 100% effluent (if applicable)

5.2.2.1.8. NOEC and LOEC values for reference toxicant tests

5.2.2.1.9. Available water quality measurements for each test (pH, dissolved oxygen, temperature, conductivity, hardness, salinity, ammonia)

5.2.2.2. **Compliance Summary.** The results of the chronic toxicity testing shall be provided in the next Self-Monitoring Report and shall include a summary table of chronic toxicity data from at least eleven of the most recent samples. The information in the table shall include the items listed above under section 5.2.2.1 of the MRP.

5.3. **Quality Assurance.**

5.3.1. The use of dilution series for this Discharger is not applicable because there is no dilution in the receiving water.

5.3.2. For the acute toxicity testing using a t-test, two dilutions shall be used, i.e., 100 percent effluent and a control.

5.3.3. If organisms are not cultured in-house, concurrent testing with a referenced toxicant shall be conducted. Where organisms are cultured in-house, monthly reference toxicant testing is sufficient. Reference toxicant tests also shall be conducted using the same test conditions as the effluent toxicity tests (e.g., same test duration, etc.).

5.3.4. If either the reference toxicant test or effluent test does not meet all test acceptability criteria (TAC) as specified in the toxicity test references, then the permittee must resample and retest within 15 working days or as soon as possible. The retesting period begins when the Discharger collects the first sample required to complete the retest.

5.3.5. The reference toxicant and effluent tests must meet the upper bounds and should meet the lower bounds on test sensitivity as determined by calculating the percent minimum significant difference (PMSD) for each test result. The test sensitivity bound is specified for each test method in the respective methods manuals.

5.4. **Accelerated Monitoring Requirements**

5.4.1. When acute toxicity is detected in the effluent, or when the chronic toxicity effluent limitation of 1.0 TUC is exceeded during regular toxicity monitoring, and

the testing meets all test acceptability criteria, the Discharger shall initiate accelerated monitoring to confirm the effluent toxicity.

- 5.4.2. The Discharger shall implement an accelerated monitoring frequency consisting of performing three toxicity tests in a six-week period following the first failed test results.
- 5.4.3. If implementation of the generic Toxicity Reduction Evaluation (TRE) work plan indicates the source of the exceedance of the effluent limitation or toxicity trigger (for instance, a temporary plant upset), then only one additional test is necessary. If exceedance of the effluent limitation or toxicity trigger is detected in this test, the Discharger will continue with accelerated monitoring requirements or implement the Toxicity Identification and Toxicity Reduction Evaluations. A single failed retest may count towards the three required accelerated tests.
- 5.4.4. If none of the three tests indicated exceedance of the effluent limitation or toxicity trigger, then the Discharger may return to the normal bioassay testing frequency. If at least two of the three tests indicate compliance with the effluent limitation, then the Discharger may return to the normal bioassay testing frequency.

5.5. Toxicity Identification Evaluations (TIE) and Toxicity Reduction Evaluation (TRE) Process

- 5.5.1. A Toxicity Identification Evaluation (TIE) shall be triggered if testing from the accelerated monitoring frequency indicates any of the following:
 - 5.5.1.1. Two of the three accelerated toxicity tests are reported as failed tests meeting any of the conditions specified in Attachment E, section 5.3.
 - 5.5.1.2. The TIE shall be initiated within 30 days following failure of the second accelerated monitoring test.
 - 5.5.1.3. If a TIE is triggered prior to the completion of the accelerated testing, the accelerated testing schedule may be terminated, or used as necessary in performing the TIE.
- 5.5.2. The TIE shall be conducted to identify and evaluate toxicity in accordance with procedures recommended by the U.S. EPA which include the following:
 - 5.5.2.1. *Toxicity Identification Evaluation: Characterization of Chronically Toxic Effluents, Phase I*, (U.S. EPA, 1992a);
 - 5.5.2.2. *Methods for Aquatic Toxicity Identification Evaluations: Phase I Toxicity Characterization Procedures, Second Edition* (U.S. EPA, 1991a);
 - 5.5.2.3. *Methods for Aquatic Toxicity Identification Evaluations: Phase II Toxicity Identification Procedures for Sampling Exhibiting Acute and Chronic Toxicity* (U.S. EPA, 1993a); and
 - 5.5.2.4. *Methods for Aquatic Toxicity Identification Evaluations: Phase III Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity* (U.S. EPA, 1993b).

5.5.3. As part of the TIE investigation, the Discharger shall be required to implement its TRE work plan. The Discharger shall take all reasonable steps to control toxicity once the source of the toxicity is identified. A failure to conduct required toxicity tests or a TRE within a designated period shall result in the establishment of numerical effluent limitations for chronic toxicity in a permit or appropriate enforcement action. Recommended guidance in conducting a TRE includes the following:

5.5.3.1. *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants*, August 1999, EPA/833B-99/002; and

5.5.3.2. Clarifications Regarding Toxicity Reduction and Identification Evaluations in the National Pollutant Discharge Elimination System Program dated March 27, 2001, U.S. EPA Office of Wastewater Management, Office of Regulatory Enforcement.

6. LAND DISCHARGE MONITORING REQUIREMENTS – NOT APPLICABLE

7. RECYCLING MONITORING REQUIREMENTS

7.1. Monitoring Location RCY-001

7.1.1. The Discharger shall monitor recycled water at Monitoring Location RCY-001 as below:

Table E-6. Recycled Water Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency
Daily Flow	MGD	Metered	Continuous
Maximum Daily Flow	MGD	Calculated	1/Day
Mean Daily Flow	MGD	Calculated	1/Day
Total Coliform	MPN/100 mL	Grab	1/Day
Turbidity	NTU	Metered	Continuous
Dissolved Oxygen	mg/L	Grab	5/Week
pH	standard units	Grab	5/Week

7.1.2. In the event the Producer is unable to comply with the conditions of the water recycling requirements and prohibitions, the Producer shall immediately notify the Central Coast Water Board by telephone and submit a written follow-up report with two weeks of the noncompliance. The written report shall include pertinent information explaining reasons for the noncompliance and shall indicate what steps are being taken to prevent the problems from recurring.

7.1.3. An annual self-monitoring report shall be submitted to the Central Coast Water Board by February 1 of the following year. The report shall include the following:

7.1.3.1. A letter transmitting self-monitoring reports should accompany each report. The letter shall include a discussion of violations found during the reporting period and actions taken or planned for correcting noted violations, such as operation or facility modifications. If the Producer has previously submitted a report describing corrective actions or a time schedule for implementing corrective actions, reference to the previous correspondence will be satisfactory. The transmittal letter shall contain a statement by the Producer or the Producer's authorized agent, under penalty of perjury, that to the best of the signer's knowledge the report is true, accurate, and complete.

7.1.3.2. Tabulations of the results of each required analysis by the Producer specified in Table E-6 by date, time, type of sample, and station.

8. RECEIVING WATER MONITORING REQUIREMENTS

8.1. Monitoring Locations SW-001, SW-002, SW-003, SW-004, SW-005, and SW-006

8.1.1. The Discharger shall monitor the Salinas River at Monitoring Locations SW-001 and SW-002, and Huerhuero Creek at Monitoring Locations SW-003, SW-004, SW-005, and SW-006 as below:

Table E-7. Surface Water Monitoring Requirements^[1]

Parameter	Units	Monitoring Locations	Sample Type	Minimum Sampling Frequency
Dissolved Oxygen	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Hardness (as CaCO ₃)	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
pH	standard units	SW-001 through SW-004	Grab	1/Quarter ^[2]
Temperature	°F	SW-001 through SW-004	Grab	1/Quarter ^[2]
Turbidity	NTU	SW-001 through SW-004	Grab	1/Quarter ^[2]
Color	color units	SW-001 through SW-004	Grab	1/Quarter ^[2]
Boron	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Chloride	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Sodium	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Sulfate	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
TDS	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]

Parameter	Units	Monitoring Locations	Sample Type	Minimum Sampling Frequency
Total Nitrogen (as N)	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Ammonia (as N)	mg/L	SW-001 through SW-004	Grab	1/Quarter ^[2]
Un-ionized Ammonia (as N)	mg/L	SW-001 through SW-004	Calculated ^[3]	1/Quarter ^[2]
Methylene Blue Activated Substances	µg/L	SW-001 and SW-003	Grab	1/Permit Term
Phthalate Esters	µg/L	SW-001 and SW-003	Grab	1/Permit Term
CTR Pollutants ^[4]	µg/L	SW-001 and SW-003	Grab	1/Permit Term
Title 22 Pollutants ^[5]	µg/L	SW-001 and SW-003	Grab	1/Permit Term
Salinas River Flow	Cubic feet per second (cfs)	USGS Gage ^[6]	--	At time of sampling events
Huerhuero Creek Flow	presence/absence	SW-003, SW-004	--	At time of sampling events

^[1] If the surface water has no observable surface flow at the time of sampling, no surface water monitoring is required.

^[2] Monitoring shall be conducted once per quarter in January, April, July, and October.

^[3] Un-ionized ammonia shall be calculated based on the following formula, or as otherwise approved by the Central Coast Water Board:

$$\text{Fraction of NH}_3 = 1/(1+10^{(pK - pH)})$$

Where:

$$pK = 0.09018 + 2,729.92/T$$

T = Temperature, in degrees Kelvin, taken as a field measurement at the time the sample is collected for total ammonia analysis

pH = pH taken as a field measurement at the time the sample is collected for total ammonia analysis

^[4] The CTR priority pollutants are those listed by the CTR at 40 C.F.R. section 131.38 (b) (1). Analyses, compliance determination, and reporting for these pollutants shall adhere to applicable provisions of the Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California (SIP). Monitoring of receiving water for the CTR pollutants shall occur simultaneously with effluent monitoring for the CTR pollutants.

^[5] The Title 22 pollutants are those for which primary MCLs have been established and which are listed in sections 64431-A and 64444-A of the California Code of Regulations, Title 22, division 4, chapter 15. Where these pollutants are also

identified as CTR Priority Pollutants, monitoring does not need to be duplicated.
Monitoring of receiving water for the Title 22 Pollutants shall occur simultaneously with effluent monitoring for Title 22 pollutants.

[6] USGS Gaging Station No. 11147500 (Salinas River at Paso Robles, CA).

8.2. Groundwater Monitoring - Monitoring Locations GW-001 and GW-002

8.2.1. The Discharger shall monitor groundwater at Monitoring Locations GW-001 and GW-002 as below:

Table E-8. Groundwater Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency
pH	standard units	Grab	1/Quarter ^[1]
TDS	mg/L	Grab	1/Quarter ^[1]
Sodium	mg/L	Grab	1/Quarter ^[1]
Chloride	mg/L	Grab	1/Quarter ^[1]
Boron	mg/L	Grab	1/Quarter ^[1]
Sulfate	mg/L	Grab	1/Quarter ^[1]
Hardness	mg/L	Grab	1/Quarter ^[1]
Total Nitrogen	mg/L	Grab	1/Quarter ^[1]

[1] Monitoring shall be conducted once per quarter in January, April, July, and October.

9. OTHER MONITORING REQUIREMENTS

9.1. Biosolids, Monitoring, and Notification – BIO-001

9.1.1. A representative sample of biosolids shall be obtained from the last point in the handling process (i.e., in the drying beds just prior to removal or from a pond bottom). All constituents shall be analyzed annually for total concentrations for comparison with Total Threshold Limit Concentration (TTLC) criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the Soluble Threshold Limit Concentration (STLC) for that substance. Twelve (12) discrete representative samples shall be collected at separate locations in the biosolids ready for disposal. These 12 samples shall be composited to form one (1) sample for constituent analysis. For accumulated, previously untested biosolids, the Discharger shall develop a representative sampling plan including number and location of sampling points, and collect representative samples. The analysis shall test for the metals required in 40 C.F.R. section 503.16 (for land application) or 503.26 (for surface disposal), using the methods in Test Methods for Evaluating Solid Waste, Physical/Chemical Methods (U.S. EPA Publication SW-846, all applicable editions and updates), as required in 503.8(b)(4), at the minimum frequencies established therein, provided in the table below.

Table E-9. Amount of Biosolids and Frequency of Analysis

Amount^[1] (dry metric tons/365-day period)	Minimum Sampling Frequency^[2]
Greater than zero, but less than 290	Once per year
Equal to or greater than 290 but less than 1,500	Once per quarter (four times per year)
Equal to or greater than 1,500 but less than 15,000	Once per sixty days (six times per year)
Greater than 15,000	Once per month (twelve times per year)

^[1] For land application, either the amount of bulk biosolids applied to the land or the amount prepared for sale or give-away in a bag or other container for application to the land (dry weight basis). If the Discharger's biosolids are directly land applied without further treatment by another preparer, biosolids shall also be tested for organic-N, ammonium-N, and nitrate-N at the frequencies required. For surface disposal, the amount of biosolids placed on an active sludge unit (dry weight basis).

^[2] Test results shall be expressed in mg pollutant per kg biosolids on a 100% dry weight basis.

Biosolids shall be analyzed for the constituents in the table below.

Table E-10. Biosolids Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency
Quantity Removed	Tons or yd ³	Measured	During Removal
Location of Reuse/Disposal	General Public or Specific Site	--	--
Moisture Content	Percent	Grab	Per Table E-9 (above)
pH	standard units	Grab	Per Table E-9 (above)
Total Kjeldahl Nitrogen	mg/kg ^[1]	Grab	Per Table E-9 (above)
Ammonia (as N)	mg/kg ^[1]	Grab	Per Table E-9 (above)
Nitrate (as N)	mg/kg ^[1]	Grab	Per Table E-9 (above)
Total Phosphorus	mg/kg ^[1]	Grab	Per Table E-9 (above)
Oil and Grease	mg/kg ^[1]	Grab	Per Table E-9 (above)
Arsenic	mg/kg ^[1]	Grab	Per Table E-9 (above)
Boron	mg/kg ^[1]	Grab	Per Table E-9 (above)
Cadmium	mg/kg ^[1]	Grab	Per Table E-9 (above)
Copper	mg/kg ^[1]	Grab	Per Table E-9 (above)
Chromium (Total)	mg/kg ^[1]	Grab	Per Table E-9 (above)
Lead	mg/kg ^[1]	Grab	Per Table E-9 (above)
Mercury	mg/kg ^[1]	Grab	Per Table E-9 (above)
Molybdenum	mg/kg ^[1]	Grab	Per Table E-9 (above)

Parameter	Units	Sample Type	Minimum Sampling Frequency
Nickel	mg/kg ^[1]	Grab	Per Table E-9 (above)
Selenium	mg/kg ^[1]	Grab	Per Table E-9 (above)
Zinc	mg/kg ^[1]	Grab	Per Table E-9 (above)

^[1] Total sample (including solids and any liquid portion) to be analyzed and results reported as mg/kg based on the dry weight of the sample.

9.1.2. Prior to land application, the Discharger shall demonstrate that the biosolids meet Class A or Class B pathogen reduction levels by one of the methods listed in 40 C.F.R. section 503.32 (unless transferred to another preparer who demonstrates pathogen reduction). Prior to disposal in a surface disposal site, the Discharger shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day. If pathogen reduction is demonstrated using a "Process to Significantly/Further Reduce Pathogens" (PFRP), the Discharger shall maintain daily records of the operating parameters to achieve this reduction.

The following applies when biosolids from the Discharger are directly land applied as Class B, without further treatment by a second preparer. If the Discharger demonstrates pathogen reduction by direct testing for fecal coliforms and/or pathogens, samples must be drawn at the frequency in the Amount/Frequency table above. If the Discharger demonstrates Class B pathogen reduction by testing for fecal coliform, at least seven grab samples must be drawn and analyzed during each monitoring event, and a geometric mean calculated from these seven samples. If the Discharger demonstrates Class A pathogen reduction by testing for fecal coliform and/or salmonella, plus one of the PFRP processes or testing for enteric viruses and helminth ova at least four samples of fecal coliform or salmonella must be drawn during each monitoring event. All four samples must meet the limits specified in 503.32(a).

9.1.3. For biosolids that are land applied or placed in a surface disposal site, the Discharger shall track and keep records of the operational parameters used to achieve Vector Attraction Reduction requirements in 40 C.F.R. section 503.33(b).

9.1.4. Class 1 facilities (facilities with pretreatment programs or others designated as Class 1 by the Regional Administrator) and Federal facilities with greater than five million gallons per day (MGD) influent flow shall sample biosolids for pollutants listed under CWA section 307(a), as required in the pretreatment section of the permit for Publicly Owned Treatment Works (POTWs) with pretreatment programs. Class 1 facilities and Federal facilities greater than 5 MGD shall test dioxins/dibenzofurans using a detection limit of less than one pg/g at the time of their next priority pollutant scan if they have not done so within the past five years, and once per five years thereafter.

9.1.5. The biosolids shall be tested annually, or more frequently if necessary, to determine hazardousness. All constituents regulated under Title 22 California Code or Regulations, division 5, chapter 11, article 3 shall be analyzed for

comparison with TTLC criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the STLC limit for that substance.

- 9.1.6. If biosolids are placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater monitoring program for the site, or shall certify that the placement of biosolids on the site will not contaminate an aquifer.
- 9.1.7. Biosolids placed in a municipal landfill shall be tested by the Paint Filter Liquids Test (U.S. EPA Method 9095) at the frequency determined by Table E-9, or more often if necessary to demonstrate that there are no free liquids.
- 9.1.8. The Discharger, either directly or through contractual agreements with their biosolids management contractors, shall comply with the following notification requirements:
 - 9.1.8.1. *Notification of non-compliance.* The Discharger shall notify U.S. EPA Region 9, the State Water Board, and the Regional Water Board located in the region where the biosolids are used or disposed, of any non-compliance within 24 hours if the noncompliance may seriously endanger health or the environment. For other instances of non-compliance, the Discharger shall notify U.S. EPA Region 9 and the affected Regional Water Boards of any non-compliance in writing within five working days of becoming aware of the non-compliance. The Discharger shall require their biosolids management contractors to notify U.S. EPA Region 9 and the affected Regional Water Boards of any non-compliance within the same time frames.
 - 9.1.8.2. If biosolids are shipped to another State or Indian lands, the Discharger must send notice at least 60 days prior to the shipment to the permitting authorities in the receiving State or Indian land (the U.S. EPA Regional Office for that area and the State/Indian authorities).
 - 9.1.8.3. *For land application (in cases where Class B biosolids are directly applied without further treatment):* Prior to reuse of any biosolids from the Discharger's facility to a new or previously unreported site, the Discharger shall notify U.S. EPA, the Central Coast Water Board, and any other affected Regional Water Board. The notification shall include description of the crops or vegetation to be grown, proposed loading rates and determination of agronomic rates.

If any biosolids within a given monitoring period do not meet 40 C.F.R. section 503.13 metals concentrations limits, the Discharger (or its contractor) must pre-notify U.S. EPA, and determine the cumulative metals loading to that site to date, as required in 40 C.F.R. section 503.12. The Discharger shall notify the applier of all the applier's requirements under 40 C.F.R. part 503, including the requirement that the applier certify that the management practices, site restrictions, and any applicable vector attraction reduction requirements have been met. The Discharger shall require the applier to certify at the end of 38 months following application of Class B biosolids that the harvesting restrictions in effect for up to 38 months have been met.

- 9.1.8.4. *For surface disposal:* Prior to disposal to a new or previously unreported site, the Discharger shall notify U.S. EPA and the Central Coast Water Board. The notice shall include a description and a topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator, site owner, and any State or local permits. The notice shall describe procedures for ensuring public access and grazing restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.
- 9.1.9. The Discharger shall submit an annual biosolids report to the U.S. EPA Region 9 Biosolids Coordinator and Central Coast Water Board by February 19th of each year (per U.S. EPA guidance and 40 C.F.R. part 503) for the period covering the previous calendar year. This report shall include:
- 9.1.9.1. Annual biosolids removed in dry tons and percent solids.
- 9.1.9.2. If appropriate, a narrative description of biosolids dewatering and other treatment processes, including process parameters, including a schematic diagram showing biosolids handling facilities. For example, if drying beds are used, report depth of application and drying time. If composting is used, report the temperature achieved and duration.
- 9.1.9.3. A description of disposal methods, including the following information as applicable related to the disposal methods used at the facility. If more than one method is used, include the percentage and tonnage of annual biosolids production disposed by each method.
- 9.1.9.3.1. For landfill disposal include: 1) the Regional Board waste discharge requirement (WDR) numbers that regulate the landfills used, 2) the present classifications of the landfills used, 3) the results of any groundwater monitoring, 4) certifications of management practices, and 5) the names and locations of the facilities receiving biosolids.
- 9.1.9.3.2. For land application include: 1) the location of the site(s), 2) the Regional Board's WDR numbers that regulate the site(s), 3) the application rate in lbs/acre/year (specify wet or dry), 4) certifications of management practices and site restrictions, and 5) subsequent uses of the land.
- 9.1.9.3.3. For offsite application by a licensed hauler and composter include: 1) the name, address and U.S. EPA license number of the hauler and composter.
- 9.1.9.4. Copies of analytical data required by other agencies (i.e. U.S. EPA or County Health Department) and licensed disposal facilities (i.e. landfill, land application, or composting facility) for the previous year.
- 9.1.9.5. Descriptions of pathogen reduction methods and vector attraction reduction methods. Including supporting time and temperature data, and certifications, as required in 40 C.F.R. sections 503.17 and 503.27.
- 9.1.9.6. Names mailing address, and street addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, or

for other use or disposal methods not covered above, and amounts delivered to each.

- 9.1.9.7. For all biosolids used or disposed at the Discharger's facility, the site and management practice information and certification required in 40 C.F.R. sections 503.17 and 503.27.
- 9.1.9.8. For all biosolids temporarily stored, the information required in 40 C.F.R. section 503.20 is required to demonstrate temporary storage.
- 9.1.9.9. The biosolids annual reports shall be submitted to the State Water Board and the Regional Water Board electronically through the self-monitoring report (SMR) module of the California Integrated Water Quality System (CIWQS). Signed copies of the reports shall also be submitted electronically to U.S. EPA at R9NPDES@epa.gov or as instructed otherwise.

9.2. Pretreatment Monitoring

By February 1 of each year, the Discharger shall submit an Annual Report to the State Water Board, Central Coast Water Board, and U.S. EPA – Region 9 describing the Discharger's pretreatment activities over the previous twelve months. In the event that the Discharger is not in compliance with any condition or requirement of this Order and permit pertaining to pretreatment, including any noncompliance with pretreatment audit or compliance inspection requirements, then the Discharger shall also include the reasons for noncompliance and state how and when the Discharger will comply with such conditions and requirements. This report shall contain, but not be limited to, the following information:

- 9.2.1. A summary of analytical results from representative, flow-proportioned, 24-hour composite sampling of the plant's influent, effluent, and sludge which the Discharger finds may be causing or contributing to interference, pass-through, or adversely impacting sludge quality. Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 C.F.R. part 136 and amendments thereto.
- 9.2.2. A discussion of upset, interference, or pass-through incidents, if any, at the POTW, which the Discharger knows or suspects, were caused by industrial users of the POTW system. The discussion shall include the reasons why incidents occurred, corrective actions taken and, if known, the name and address of the industrial user(s) responsible. Discussions shall also include a review of applicable pollutant limitations to determine whether any additional limitations or changes to existing requirements may be necessary to prevent pass-through, interference, or noncompliance with sludge disposal requirements.
- 9.2.3. The cumulative number of industrial users that the Discharger has notified regarding Baseline Monitoring Reports and the cumulative number of industrial user responses.
- 9.2.4. An updated list of the Discharger's industrial users, including their names and addresses, or a list of deletions and additions keyed to a previously submitted list. The Discharger shall provide a brief explanation for each deletion. The list shall identify the industrial users subject to Federal Categorical Standards by specifying

which set(s) of standards are applicable. The list shall indicate which categorical industries, or specific pollutants from each industry, are subject to local limitations that are more stringent than the Federal Categorical Standards. The Discharger shall also list the non-categorical industrial users that are subject only to local discharge limitations. The Discharger shall characterize the compliance status of each industrial user by employing the following descriptions.

- 9.2.4.1. In compliance with Baseline Monitoring Report requirements (where applicable);
- 9.2.4.2. Consistently achieving compliance;
- 9.2.4.3. Inconsistently achieving compliance;
- 9.2.4.4. Significantly violated applicable pretreatment requirements defined by 40 C.F.R. section 403.8 (f)(2)(vii);
- 9.2.4.5. On a schedule to achieve compliance (include the date final compliance is required);
- 9.2.4.6. Not achieving compliance and not on a compliance schedule; or,
- 9.2.4.7. The Discharger does not know the industrial user's compliance status.

A quarterly report describing the compliance status of any industrial user characterized by descriptions in Items 9.2.4.3. through 9.2.4.7., above, shall be submitted to the State Water Board, Central Coast Water Board, and U.S. EPA. The report shall identify the specific compliance status of each such industrial user. This quarterly reporting requirement shall commence upon issuance of this Order. Quarterly reports shall be submitted May 1, August 1, and November 1. The fourth quarter report shall be incorporated in the Annual Report (February 1). Quarterly reports shall briefly describe POTW compliance with audit/pretreatment compliance inspection requirements. If none of the aforementioned conditions exist, at a minimum, a letter indicating that all industries are in compliance and no violations or changes to the pretreatment program have occurred during the quarter must be submitted.

- 9.2.4.8. A summary of inspection and sampling activities conducted by the Discharger during the past year to gather information and data regarding industrial users. The summary shall include the following:
 - 9.2.4.8.1. Names and addresses of the industrial users subject to surveillance by the Discharger and an explanation of whether they were inspected, sampled, or both and the frequency of these activities at each user; and
 - 9.2.4.8.2. Conclusions or results from the inspection or sampling of each industrial user.
- 9.2.4.9. A summary of compliance and enforcement activities during the past year. The summary shall include names and addresses of the industrial users affected by the following actions:
 - 9.2.4.9.1. Warning letters or notices of violation regarding the industrial users' apparent noncompliance with Federal Categorical Standards or local discharge

- limitations. For each industrial user, identify whether the apparent violation concerned the Federal Categorical Standards or local discharge limitations;
- 9.2.4.9.2. Administrative Orders regarding the industrial users' noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned the Federal Categorical Standards or local discharge limitations;
- 9.2.4.9.3. Civil actions regarding the industrial users' noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned the Federal Categorical Standards or local discharge limitations;
- 9.2.4.9.4. Criminal actions regarding the industrial users' noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned Federal Categorical Standards or local discharge limitations;
- 9.2.4.9.5. Assessment of monetary penalties. For each industrial user, identify the amount of the penalties;
- 9.2.4.9.6. Restriction of flow to the POTW; or
- 9.2.4.9.7. Disconnection from discharge to the POTW.
- 9.2.4.10. Description of any significant changes in operating the pretreatment program, including, but not limited to, changes concerning:
- 9.2.4.10.1. The program's administrative structure;
- 9.2.4.10.2. Local industrial discharge limitations;
- 9.2.4.10.3. Monitoring program and monitoring frequencies;
- 9.2.4.10.4. Legal authority or enforcement policy;
- 9.2.4.10.5. Funding mechanisms;
- 9.2.4.10.6. Resource requirements; or
- 9.2.4.10.7. Staffing levels.
- 9.2.4.11. A summary of the annual pretreatment budget, including costs of pretreatment program functions and equipment purchases.
- 9.2.4.12. A summary of public participation activities to involve and inform the public.
- 9.2.4.13. A discussion of any concerns not described elsewhere in the report.

The pretreatment quarterly and annual reports shall be signed by a principal executive officer, ranking elected official, or other duly authorized employee who is responsible for the overall operation of the Discharger (POTW - 40 C.F.R. section 403.12(m)). The Discharger shall submit signed copies of the reports to the State Water Board and the Regional Water Board electronically through the SMR module of CIWQS. Signed copies of the reports shall also be submitted electronically to U.S. EPA at R9Pretreatment@epa.gov or as instructed otherwise.

9.3. Potable Water Supply Monitoring – Monitoring Locations PWS-001 and PWS-002

9.3.1. The Discharger shall monitor the potable water supply at Monitoring Locations PWS-001 and PSW-002 as below:

Table E-11. Potable Water Supply Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency
Flow ^[1]	MGD	Continuous	1/Quarter ^[2]
TDS	mg/L	Grab	2/Year ^[3]
Sodium	mg/L	Grab	2/Year ^[3]
Chloride	mg/L	Grab	2/Year ^[3]
Sulfate	mg/L	Grab	2/Year ^[3]
Hardness	mg/L	Grab	2/Year ^[3]
Selenium, Total Recoverable	µg/L	Grab	1/Quarter ^[2]

^[1] The Discharger may report flows from the sanitary sewer collection system, representative of the east and west sides of the City, in place of flows from Monitoring Locations PSW-001 and PSW-002.

^[2] Monitoring shall be conducted four times per year in January, April, July, and October.

^[3] Monitoring shall be conducted twice per year in April and October.

9.4. Volumetric Monitoring of Wastewater and Recycled Water

9.4.1. The Discharger shall monitor and report the items described below and provide all volumetric data as acre-feet (af).

- Monthly volume of wastewater collected and treated by the Facility.
- Monthly volume of wastewater treated, specifying level of treatment.
- Monthly volume of treated wastewater discharged, monthly volume of recycled water distributed for reuse, and annual volume of treated wastewater distributed for beneficial use in compliance with California Code of Regulations, title 22 use categories.

10. REPORTING REQUIREMENTS

10.1. General Monitoring and Reporting Requirements

The Discharger shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.

10.2. Self-Monitoring Reports (SMRs)

10.2.1. The Discharger shall electronically submit SMRs using the State Water Board's [California Integrated Water Quality System \(CIWQS\) Program website](#)

<http://www.waterboards.ca.gov/water_issues/programs/ciwqs>. The CIWQS website will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.

- 10.2.2. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections 3 through 9 (except for MRP section 9.4.). The Discharger shall submit SMRs including the results of all required monitoring using U.S. EPA-approved test methods or other test methods specified in this Order. SMRs are to include all new monitoring results obtained since the last SMR was submitted. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
- 10.2.3. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule:

Table E- 12. Reporting Schedule

SMR Name	Permit Section for Monitoring and Sampling Data Included in Report	SMR Submittal Frequency	SMR Due Date
NPDES Monitoring Report - Monthly	MRP Sections 3 (Influent) and 4 (Effluent))	Monthly	First day of second calendar month following period of sampling (first report due September 1
NPDES Monitoring Report - Quarterly	MRP Sections 4 (Effluent), 8.1 (Receiving Water), 8.2 (Groundwater), 9.3 (Potable Water Supply)	Quarterly	May 1 st August 1 st November 1 st February 1 st
NPDES Monitoring Report – Semi-annually	MRP Section 9.3 (Potable Water Supply)	Semi-annually	August 1 st February 1 st
NPDES Monitoring Report – Annually	MRP Sections 3 (Influent) and 4 (Effluent))	Annually	February 1 st following calendar year of sampling
Salt and Nutrient Management Report	Section 6.3.6.1.3 (Salt and Nutrient Management Report)	Annually	February 1 st following calendar year
Recycled Water Monitoring Report	MRP Section 7 (Recycled Water Monitoring)	Annually	February 1 st following calendar year of sampling

SMR Name	Permit Section for Monitoring and Sampling Data Included in Report	SMR Submittal Frequency	SMR Due Date
Recycled Water Volumetric Monitoring	MRP Section 9.4 (Volumetric Reporting of Wastewater and Recycled Water)	Annually	April 30 th following calendar year Note: This report is submitted using the GeoTracker system, not CIWQS.
Biosolids Monitoring Report	MRP Section 9.1 (Biosolids)	Annually	February 19 th following calendar of sampling
Pretreatment Report – Annually	MRP Section 9.2 (Pretreatment Monitoring)	Annually	February 1 st following calendar year
Pretreatment Report – Quarterly	MRP Section 9.2.4.7 (Pretreatment Monitoring)	Quarterly	May 1 st August 1 st November 1 st February 1 st
Summary Report	Attachment D, Standard Provision, 8.4.8 (page D-13)	Annually	February 1 st following calendar year
NPDES Monitoring Report – Once per Permit Term	MRP Sections 4 (Effluent) and 8.1 (Receiving Water)	Once per permit term	January 1, 2026
Updated Toxicity Reduction Evaluation Workplan	Order Section 6.3.2.1 (Toxicity Reduction Requirements)	Once per permit term	January 1, 2026
Updated Pollutant Minimization Program	Order Section 6.3.3.1 (Pollutant Minimization Program)	Once per permit term	January 1, 2026
Climate Change Adaptation Program	Section 6.3.6.3 (Climate Change Adaptation Program)	Once per permit term	January 1, 2026
ROWD Application	Permit renewal application	Once per permit term	January 1, 2026

10.2.4. Reporting Protocols. The Discharger shall report with each sample result the applicable Reporting Level (RL) and the current Method Detection

Limit (MDL), as determined by the procedure in 40 C.F.R. part 136. The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- 10.2.4.1. Sample results greater than or equal to the RL shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- 10.2.4.2. Sample results less than the RL, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported. For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.
- 10.2.4.3. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
- 10.2.4.4. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
- 10.2.5. **Compliance Determination.** Compliance with effluent limitations for priority pollutants shall be determined based on the requirements in provision 7 of this Order and using sample reporting protocols defined above and in Attachment A of this Order. For purposes of reporting and administrative enforcement by the Central Coast Water Board and State Water Board, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the priority pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reporting level (RL).
- 10.2.6. **Multiple Sample Data.** When determining compliance with an AMEL, AWEL, or MDEL for priority pollutants and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND). In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
 - 10.2.6.1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 - 10.2.6.2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in

which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

10.2.7. The Discharger shall submit SMRs in accordance with the following requirements:

10.2.7.1. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.

10.2.7.2. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the waste discharge requirements; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.

10.2.7.3. The Discharger shall electronically self-report all identified violations of this Order using the CIWQS self-reported violations function.

10.3. Discharge Monitoring Reports (DMRs)

10.3.1. DMRs are U.S. EPA reporting requirements. The Discharger shall electronically certify and submit DMRs together with SMRs using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal shall be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the DMR website at:
<http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring>.

10.4. Other Reports

10.4.1. The Discharger shall report the results of any special studies, acute and chronic toxicity testing, Toxicity Reduction Evaluation (TRE)/Toxicity Identification Evaluation (TIE), and Pollutant Minimization Program (PMP), required in section 6.3 of this Order. The Discharger shall report the progress in satisfaction of compliance schedule dates specified in section 6.3.7 of the Order. The Discharger shall submit reports with the first monthly SMR scheduled to be submitted on or immediately following the report due date.

10.4.2. The Discharger shall submit a Salt and Nutrient Management Report as specified in section 6.3.6.1.3 of this Order.

10.4.3. With the Report of Waste Discharge submitted for reissuance of this Order, the Discharger shall submit a Climate Change Adaptation Program as specified in section 6.3.6.3 of this Order.

10.4.4. The Discharger shall report the volumetric monitoring requirements as specified in section 9.4 of the MRP to the State Water Board by April 30 of each calendar year. The Discharger shall electronically certify and submit this annual report

containing the required data via the State Water Board's Internet GeoTracker system at <http://geotracker.waterboards.ca.gov/>. Information about the volumetric reporting of wastewater and recycled water and the Recycled Water Policy is available at the Recycled Water Policy Volumetric Annual Reporting website at <http://www.waterboards.ca.gov/recycledwaterpolicy>.

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ATTACHMENT F – FACT SHEET

As described in section 2.2 of this Order, the California Regional Water Quality Control Board, Central Coast Region (Central Coast Water Board) incorporates this Fact Sheet as findings of the Central Coast Water Board supporting the issuance of this Order. This Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this discharger. Sections or subsections of this Order not specifically identified as “not applicable” are applicable to this discharger.

1. PERMIT INFORMATION

The following table summarizes administrative information related to the City of El Paso de Robles Wastewater Treatment Plant (Facility).

Table F-1. Facility Information

WDID	3 400105001
GeoTracker No.	GT-NPD100051576
ECM/CIWQS	CW-247750
Discharger	City of El Paso de Robles
Name of Facility	City of El Paso de Robles Wastewater Treatment Plant
Facility Address	3200 Sulphur Springs Road Paso Robles, CA 93446 San Luis Obispo County
Facility Contact, Title and Phone	Matt Thompson, Wastewater Manager, (805) 227-7200 ext. 7716
Authorized Person to Sign and Submit Reports	Casey Shepherd, Chief Plant Operator, (805) 237-3865
Mailing Address	3200 Sulphur Springs Road, Paso Robles, CA 93446
Billing Address	1000 Spring Street, Paso Robles, CA 93446
Type of Facility	POTW
Major or Minor Facility	Major
Threat to Water Quality	2
Complexity	A
Pretreatment Program	Yes

Facility Permitted Flow	4.9 million gallons per day (MGD) (monthly average dry weather flow) 12.7 MGD (peak hour wet weather flow)
Facility Design Flow	4.9 MGD (monthly average dry weather design treatment capacity) 12.7 MGD (peak hour wet weather design treatment capacity)
Watershed	Salinas River Hydrologic Unit
Receiving Waters	Salinas River and Huerhuero Creek
Receiving Water Type	Inland Surface Water

1.1. The City of El Paso de Robles (Discharger) is the owner and operator of the Facility, a publicly owned treatment works (POTW).

For the purposes of this Order, references to the “discharger” or “permittee” in applicable federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

1.2. The Facility discharges wastewater to the Salinas River, a water of the United States. The Facility also plans to discharge treated wastewater to Huerhuero Creek, also a water of the United States. The Discharger was previously regulated by Order No. R3-2011-0002 and National Pollutant Discharge Elimination System (NPDES) Permit No. CA0047953, adopted on June 25, 2011, which expired on June 25, 2016. Attachment B provides maps showing the area around the Facility, the discharge and monitoring locations, and of the Facility. Attachment C provides flow schematics of the Facility.

1.3. When applicable, state law requires dischargers to file a petition with the State Water Board, Division of Water Rights and receive approval for any change in the point of discharge, place of use, or purpose of use of treated wastewater that decreases the flow in any portion of a watercourse. The State Water Board retains separate jurisdictional authority to enforce any applicable requirements under California Water Code section 1211. This is not an NPDES permit requirement.

1.4. The Discharger filed a report of waste discharge and submitted an application for reissuance of its waste discharge requirements (WDRs) and NPDES permit on March 28, 2016.

1.5. Section 122.46 of title 40 of the Code of Federal Regulations (40 C.F.R.) limit the duration of NPDES permits to a fixed term not to exceed five years. However, pursuant to California Code of Regulations, title 23, section 2235.4, the terms and conditions of an expired permit are automatically continued pending reissuance of the permit if the Discharger complies with all federal NPDES requirements for continuation of expired permits.

2. FACILITY DESCRIPTION

2.1. Description of Wastewater and Biosolids Treatment and Controls

The Discharger owns and operates a wastewater collection and treatment facility, which provides service to the City of El Paso de Robles. The Facility currently serves a population of approximately 32,000 people.

The Facility receives domestic, commercial, and industrial wastewater.

The Discharger commissioned an upgraded wastewater treatment process in April 2015. Construction of the \$47.2 million, phased upgrade project was substantially completed in April 2016. The upgraded process is designed to remove ammonia and comply with a total nitrogen effluent limit of 10 milligrams per liter (as nitrogen). The upgraded process utilized chloramination as the primary process for disinfection. As a follow-up to the upgrade project, the Discharger constructed new tertiary treatment facilities, which became operational in May 2019. The tertiary treatment facilities include flow equalization, cloth media filtration, ultraviolet light (UV) disinfection, and a recycled water pump station with an 800,000-gallon storage reservoir. These facilities produce “tertiary 2.2 quality” recycled water, as defined in California’s Title 22 recycled water regulations. Although the Discharger intends for filtration and UV disinfection to be the primary process for disinfection, the Facility retains the ability to use chloramination for disinfection in the event of failure of the tertiary treatment facilities. The treatment process includes:

- Preliminary treatment with screening, a vortex grit removal basin, and a septage receiving station;
- Two primary clarifiers;
- Three biological nutrient removal (BNR) basins. Each basin consists of one anaerobic cell, two anoxic cells, two oxic zones, a deoxygenation zone, and mixed liquor return pumps and piping. The BNR basins are fed air from three blowers;
- Three circular secondary clarifiers with a return activated sludge pump station;
- Disinfection by flash mixing of sodium hypochlorite and ammonium sulfate (chloramination), with contact time in a serpentine basin and dechlorination with sodium bisulfite, or cloth media filtration and UV light; and
- Effluent polishing channel.

Waste sludge is thickened by a dissolved air flotation thickener, digested in anaerobic digesters, and dewatered by a belt filter press. Thickened and dewatered sludge (biosolids) is stockpiled in both a concrete-lined drying bed and several self-contained earthen beds prior to disposal/reuse at the City of El Paso de Robles’ landfill. Biogas generated by the anaerobic digesters is treated and used to generate electrical power and heat for the Facility. When biogas cannot be used beneficially to generate electrical power and heat, the facility has a newly upgraded flare to burn off the biogas, thus preventing a potentially dangerous

condition of over-pressurizing the anaerobic digesters. The San Luis Obispo County Air Pollution Control District permits and monitors the flare.

Prior to the 2016 and 2019 upgrades, all six of the ponds at the facility were used for “polishing” of the trickling filter effluent prior to disposal. The 2016 upgrade converted Pond 3 to an effluent polishing channel. The 2019 upgrade converted Ponds 1 and 2 to a recycled water storage pond and a stormwater retention pond. Ponds 4, 5, and 6 are now normally empty and are used for 1) overflow from the facility in extreme emergency situations (e.g., prolonged loss of grid power and loss of standby power system), 2) an alternative to the effluent polishing channel for disposal of treated wastewater, and 3) retention of stormwater runoff from the northern part of the plant site.

The upgraded treatment plant has the same monthly average dry weather effluent flow capacity of 4.9 MGD as the previous treatment process. The upgraded treatment plant has increased wet weather capacity to treat a peak hour wet weather flow of 12.7 MGD, and previously was designed to treat a peak daily wet weather effluent flow of 10 MGD. Average annual and maximum daily flow rates for 2017 through 2019 were 2.46 MGD and 3.16 MGD, respectively.

The Facility is designed to remove nitrogen and phosphorus from the wastewater stream. These nutrients become concentrated into the liquid that is pressed out of the digested sludge. In some cases, the nutrients in this pressate may precipitate out of solution into struvite, a hard-crystalline compound, which can damage pumps and piping. The Discharger’s 2019 upgrade included installation of a nutrient harvesting system by Multiform Harvest. This technology converts the nutrients in pressate to a commercial-grade fertilizer product that is rich in phosphorus and valuable for production of agricultural crops. Beyond its benefits to agriculture, this system eliminated the nuisance struvite formation problem and has further reduced the discharge of nutrients to the Salinas River.

The Facility upgrades completed in 2016 and 2019 also included measures to adapt to the changing climate. The upgrades included removal of all treatment facilities from the 100-year floodplain to protect the Facility from flooding. The Facility installed energy efficiency features, including high-speed gearless turbo blowers, variable frequency drives on all large pumps, gravity flow through the entire tertiary treatment process to minimize pumping, modern ultraviolet light (UV) disinfection control and cleaning equipment, cogeneration facilities (using biogas from anaerobic digestion to produce heat and power), all light-emitting diodes (LED) site lighting, and use of an onsite hot spring for building heating. The commercial-grade fertilizer produced by the Facility is used by agriculture and offsets demand for mining of phosphate rock. The Discharger uses disinfected tertiary treated wastewater produced by the facility for onsite uses including landscape irrigation, washdown of plant processes, and seal water flow to pumps and for offsite uses including cleaning and maintaining the inside of sanitary sewers and lift stations (i.e., sanitary sewer system).

2.2. Discharge Points and Receiving Waters

Secondary and tertiary treated wastewater is discharged to the Salinas River from two outfalls. Discharge Point 001C (35.650°, -120.686°) is the primary outfall from the effluent polishing channel (formerly polishing ponds) to the Salinas River, and Discharge Point 001B (35.653°, -120.690°) is the secondary outfall from the former Pond 6 to the Salinas River, which is primarily used during maintenance, when the effluent polishing channel is out of service. The previous order included Discharge Point 001A, located immediately downstream of the chlorine contact chamber. The Discharger no longer discharges treated effluent or monitors at Point 001A. This Order does not include Discharge Point 001A.

Tertiary treated wastewater will be discharged to Huerhuero Creek from Discharge Points 002A (35.642°, -120.644°) and 002B (35.658°, -120.643°). Discharge Points 002A and 002B are approximately 2.5 miles from the Facility. Tertiary treated wastewater will flow through approximately four miles of the five-mile-long recycled water pipeline from the Facility to Discharge Points 002A and 002B. The Discharger does not plan to construct any permanent facilities within the dry Huerhuero Creek channel. Discharges to Huerhuero Creek will utilize aboveground temporary piping, with low-volume emitters placed in the dry creek channel, connected to the distribution system via turnout, flow meter, and flow control valve. The Discharger plans to actively maintain the creek bed material to alleviate clogging and maintain water infiltration rates. The Discharger plans to discharge to Huerhuero Creek only when there is no natural surface flow and to manage the discharge of the recycled water to prevent it from resulting in surface flow in the channel, erosion, or habitat creation.

Discharge Point 003 represents the point before tertiary treated recycled water produced at the Facility is discharged or distributed for reclamation use.

2.3. Summary of Existing Requirements and SMR Data

Effluent limitations contained in the existing Order for discharges from Discharge Points 001A, 001B, and 001C (Monitoring Locations EFF-001A, EFF-001B, and EFF-001C, respectively) and representative monitoring data from the term of the previous order are as follows:

Table F-2. Historic Effluent Limitations and Monitoring Data

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Biochemical Oxygen Demand 5-day @ 20°C (BOD ₅)	milligram per liter (mg/L)	25	35		14.8	34	

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
BOD ₅	pounds per day (lbs/day)	1,022	1,430		288	670	
BOD ₅	percent removal	≥85			90 ^[1]		
Total Suspended Solids (TSS)	mg/L	30	45		54	160	
TSS	lbs/day	1,226	1,839		310	3,202	
TSS	percent removal	≥85			2.6 ^[1]		
pH	standard units			6.5 to 8.3 ^[2]			6.96 to 8.43 ^[2]
Oil and Grease	mg/L	10	18		9.73	9.73	
Settleable Solids	milliliter per liter per hour (mL/L/hr)	0.1	0.3		<0.1	3.8	
Dissolved Oxygen	mg/L			2.0 ^[3]			3.79 ^[3]
Chlorine, Total Residual	mg/L			ND			2.27
Total Coliform Bacteria	Most probable number (MPN)/100 mL		23 ^[4]	2,300 ^[5]		801 ^[6]	1,600 ^[7]
Total Nitrogen (as N)	mg/L	10			14.4		
Total Dissolved Solids (TDS)	mg/L	1,115			982		
Sodium	mg/L	225			211		
Chloride	mg/L	355			317		
Sulfate	mg/L	200			224		
Copper, Total Recoverable	µg/L	21		39	18		18

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Selenium, Total Recoverable	µg/L	4.0		8.6	6.0		7.0
Chlorodibromomethane	µg/L	0.40		0.80	4.0		4.0
Dichlorobromomethane	µg/L	0.56		1.6	14.2		14.2
Bis(2-Ethylhexyl) Phthalate	µg/L	1.8		5.4	1.35		1.35
Acute Toxicity	Toxic Units Acute (TUa)			Pass/Fail			Fail ^[8]
Chronic Toxicity	Toxic Units Chronic (TUC)			1.0			>1.0 ^[9]

ND = Not Detected

[1] Lowest average monthly percent removal.

[2] Minimum and maximum values.

[3] Instantaneous minimum value.

[4] The seven-day median concentration shall not exceed 23 MPN/100 mL.

[5] No single sample shall exceed 2,300 MPN/100 mL.

[6] Highest reported seven-day median.

[7] Highest reported single sample.

[8] The Discharger reported one failed acute toxicity test from May 2015 through September 2019.

[9] The Discharger reported six failed chronic toxicity tests from May 2015 through September 2019.

2.4. Compliance Summary

2.4.1. Effluent Limitation Compliance Summary. The Discharger violated its numeric effluent limitations 52 times from May 2015 through September 2019, following the secondary treatment system upgrades to the facility. In addition to the numeric effluent limitation violations, there was one violation for deficient monitoring between May 2015 and September 2019. A summary of the effluent limitation violations occurring from May 2015 through September 2019 during the term of the previous order are listed in the table below. The compliance summary table does not include effluent violations prior to May 2015, because prior effluent data is not necessarily representative of current treatment processes.

The Discharger has taken several corrective actions to address the compliance issues, including the major facility upgrades. In the four-year period prior to completion of the upgrades to the treatment process, before May 2015, the Discharger reported 226 violations, consisting of 224 numeric effluent violations and two deficient monitoring violations. During the four years following the upgrades, reported violations have fallen by more than 75 percent. During the term of the previous order, the Discharger also upgraded to UV disinfection and discontinued the regular use of chlorine, addressing compliance issues related to chlorination and dechlorination processes.

Table F-3. Compliance Summary^[1]

Parameter	Violation Type	Number of Violations	Reported Value Range	Permit Limitation	Units
TSS	Monthly Average	1	41	30	mg/L
TSS	Weekly Average	1	160	45	mg/L
TSS	Weekly Average	1	3,202	1,839	lbs/day
TSS	Minimum Monthly Percent Removal	2	2.6 - 54	≥85	% Removal
Settleable Solids	Weekly Average	2	0.4 – 3.8	0.3	mL/L/hr
Chlorine, Total Residual	Maximum Daily	13	0.05 – 2.27	ND	mg/L
Total Coliform Bacteria	7-Day Median	3	27 – 801	23	MPN/100 mL
Total Nitrogen (as N)	Monthly Average	5	12.0 – 14.4	10	mg/L
Sulfate	Monthly Average	2	206 – 224	200	mg/L
Chlorodibromomethane	Monthly Average	4	0.7 – 4.0	0.40	µg/L
Chlorodibromomethane	Maximum Daily	3	1.18 – 4.0	0.80	µg/L
Dichlorobromomethane	Monthly Average	4	4.83 – 14.2	0.56	µg/L
Dichlorobromomethane	Maximum Daily	4	4.83 – 14.2	1.6	µg/L
Acute Toxicity	Instantaneous Maximum	1	Fail	Pass/Fail	TUa
Chronic Toxicity	Instantaneous Maximum	6	>1.0	1.0	TUc

^[1] Compliance summary of numeric effluent violations from May 2015 through September 2019.

2.4.2. Salt Reduction Plan Compliance Summary

As described in section 3.4 of this Fact Sheet, the Salinas River in the vicinity of the Facility is impaired for chloride and sodium. In order to decrease salt loadings attributable to the discharge to the Salinas River, the Discharger has continued to implement a salt reduction plan, which includes the following measures:

- The City of El Paso de Robles continues to be a major participant in the Nacimiento Water Project. The City completed a new water treatment plant and began receiving potable supply from the Nacimiento Lake in 2015. The new water treatment plant is capable of producing up to 2.4 MGD of potable water. The City also uses water from Lake Nacimiento to recharge Salinas River underflow and sustain production of its river underflow wells. These sources now make up all of the City's supply in the wet season when demand for irrigation water is low. In the dry season, when demand for irrigation water is high, these sources are supplemented by groundwater pumped from the Paso Robles Groundwater Basin. The new water supply contains less salt and hardness than groundwater, which results in less salt loading to the wastewater treatment plant.
- The upgraded wastewater treatment process is much more effective at removing waste. When the Facility is using its new ultraviolet disinfection system, no sodium hypochlorite is required to achieve disinfection and no sodium bisulfite is required for dechlorination. This combined with the effects of a higher quality water supply has reduced TDS levels in wastewater effluent more than 10 percent.
- Many residential customers still use ion exchange water softeners that discharge high salt wastes into the City sewer system. Now that the quality of the City's potable water supply has improved, the City will inform its customers of the opportunity to save money and water by turning down or removing their water softeners. The City has also adopted an ordinance to prohibit installation of self-regenerating water softeners in new residential construction.
- The City has established local limits for salts and regulates industrial facilities that discharge to the sewer system through its industrial waste program. Industrial facilities are permitted, inspected, and required to monitor their discharges. When necessary, the City requires industrial facilities to take measures to reduce salt sources. During the previous permit term, several industrial facilities eliminated large self-regenerating water softeners or installed reverse osmosis treatment systems.

2.5. Planned Changes

The Discharger plans to construct a recycled water distribution system in two phases to divert disinfected tertiary treated wastewater from the Facility for direct non-potable uses within the City and surrounding areas. Phase I includes the construction of approximately 40,400 feet of transmission main pipelines in three distinct segments and approximately 2,000 feet of distribution main pipeline. Phase II infrastructure and recycled water use sites have not yet been determined. The Discharger currently proposes to provide disinfected tertiary treated wastewater for City and agricultural irrigation. Additionally, the Discharger proposes to use the same distribution system to discharge tertiary treated effluent to Huerhuero Creek (Discharge Points 002A and 002B) to passively recharge the underlying aquifer, Paso Robles Groundwater Basin, to help alleviate basin-wide overdraft conditions.

As tertiary treated wastewater and recycled water from the Facility is pumped into the recycled water pipeline, the Discharger plans to inject a sodium hypochlorite solution (chlorine) to achieve a chlorine residual concentration of 0.5 to 1.5 mg/L. This is to prevent regrowth of bacteria within the conveyance system as the water travels approximately four miles to the vicinity of Barney Schwartz Sports Park. At the Barney Schwartz Sports Park maintenance yard, the Discharger plans to install a dechlorination station to remove any residual chlorine from the water before it is discharged into Huerhuero Creek. The dechlorination station will include a small tank of sodium bisulfite solution (dechlorination agent), two dosing pumps, a static mixer within the pipeline that delivers water to Huerhuero Creek, an instrumentation and control system, and water sampling ports.

3. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

3.1. Legal Authorities

This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. Environmental Protection Agency (U.S. EPA) and chapter 5.5, division 7 of the California Water Code (commencing with section 13370). It shall serve as an NPDES permit authorizing the Discharger to discharge into waters of the United States at the discharge locations described in Table 1 subject to the WDRs in this Order.

3.2. California Environmental Quality Act (CEQA)

Under California Water Code section 13389, this action to adopt an NPDES permit for the discharge of waste to surface waters is exempt from the CEQA provisions in Public Resources Code, division 13, chapter 3. The action to adopt groundwater receiving water limitations is exempt from CEQA as a permitting action for an existing facility under title 14 California Code of Regulations section 15301.

This action to adopt new recycling requirements for the Facility to produce disinfected tertiary recycled wastewater for distribution is not governed by California Water Code section 13389 and therefore not exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of Division 13 of the Public Resources Code. The Discharger completed all required CEQA documentation in August 2018. The Discharger completed an Initial Study/Mitigated Negative Declaration in August 2018 for the construction of a recycled water distribution system that would divert a portion of disinfected tertiary municipal wastewater from the Discharger's existing Facility discharge points at the Salinas River for recycled water use and discharge of surplus recycled water to the Salinas River and Huerhuero Creek. The Central Coast Water Board, as a responsible agency under CEQA, has reviewed and considered the August 2018 Initial Study/Mitigated Negative Declaration and makes its own conclusions on whether and how to approve the recycling requirements for the Facility. The August 2018 Initial Study/Mitigated Negative Declaration does not identify any significant or potentially significant impacts for items within the Central Coast Water Board's jurisdiction.

3.3. State and Federal Laws, Regulations, Policies, and Plans

- 3.3.1. Water Code section 1211.** Water Code section 1211 provides in relevant part that “[p]rior to making any change in the point of discharge, place of use, or purpose of use of treated wastewater, the owner of any wastewater treatment plant shall obtain approval of the board for that change.” The Discharger currently discharges an average of 2.2 MGD of treated wastewater year-round to the Salinas River from the Facility. The Discharger submitted a Wastewater Change Petition to the State Water Board in April 2019 to request authorization to reduce the discharge of treated wastewater by up to 1.9 MGD to the Salinas River during all months of the year and redirect the discharge to Huerhuero Creek and for a beneficial reuse (irrigation). On January 28, 2021, the State Water Board's Division of Water Rights issued an order approving the City of El Paso de Robles' petition for change of the point of discharge, place of use, purpose of use, and quantity of discharge of treated wastewater.
- 3.3.2. Water Code sections 13263 and 13241.** When requirements in an NPDES permit are more stringent than what is required by the federal CWA or implement state law only, the Regional Water Quality Control Boards must consider the factors in California Water Code section 13263, including the provisions of California Water Code section 13241. The Central Coast Water Board has considered these factors in establishing the WDRs in this Order.
- 3.3.3. Water Quality Control Plan.** The Central Coast Water Board adopted *Water Quality Control Plan for the Central Coastal Basin* (Basin Plan), the most recent version released in March 2019, which designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. Requirements in this Order implement the Basin Plan. In addition, the Basin Plan implements State Water Board Resolution 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially

suitable for municipal or domestic supply. Requirements of this Order implement the Basin Plan.

Beneficial uses applicable to the Salinas River between the confluence of Nacimiento River and the Santa Margarita Reservoir and Huerhuero Creek are as follows:

Table F-4. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001B and 001C	Salinas River	Municipal and Domestic Supply (MUN); Agricultural Supply (AGR); Industrial process supply (PROC); Ground Water Recharge (GWR); Water Contact Recreation (REC-1); Non-Contact Water Recreation (REC-2); Wildlife Habitat (WILD); Cold Freshwater Habitat (COLD); Warm Fresh Water Habitat (WARM); Migration of Aquatic Organisms (MIGR); Spawning, Reproduction, and/or Early Development (SPWN); Rare, Threatened, or Endangered Species (RARE); and Commercial and Sport Fishing (COMM)
002A and 002B	Huerhuero Creek	Municipal and Domestic Supply (MUN); Agricultural Supply (AGR); Ground Water Recharge (GWR); Water Contact Recreation (REC-1); Non-Contact Water Recreation (REC-2); Wildlife Habitat (WILD); Warm Fresh Water Habitat (WARM); Rare, Threatened, or Endangered Species (RARE); and Commercial and Sport Fishing (COMM)

Groundwater throughout the Central Coast Region is suitable for agricultural water supply, municipal and domestic water supply, and industrial use. Requirements of this Order implement the Basin Plan.

3.3.4. **Thermal Plan.** The State Water Board adopted the Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California (Thermal Plan) on January 7, 1971, and amended this plan on September 18, 1975. This plan contains temperature

objectives for inland surface waters. Requirements of this Order implement the Thermal Plan.

3.3.5. **National Toxics Rule (NTR) and California Toxics Rule (CTR).** U.S. EPA adopted the NTR on December 22, 1992, and later amended it on May 4, 1995 and November 9, 1999. About forty criteria in the NTR applied in California. On May 18, 2000, U.S. EPA adopted the CTR. The CTR promulgated new toxics criteria for California and, in addition, incorporated the previously adopted NTR criteria that were applicable in the state. The CTR was amended on February 13, 2001. These rules contain federal water quality criteria for priority pollutants.

3.3.6. **State Implementation Policy.** On March 2, 2000, the State Water Board adopted the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (State Implementation Policy or SIP). The SIP became effective on April 28, 2000, with respect to the priority pollutant criteria promulgated for California by the U.S. EPA through the NTR and to the priority pollutant objectives established by the Central Coast Water Board in the Basin Plan. The SIP became effective on May 18, 2000, with respect to the priority pollutant criteria promulgated by the U.S. EPA through the CTR. The State Water Board adopted amendments to the SIP on February 24, 2005, that became effective on July 13, 2005.

On May 2, 2017, the State Water Board adopted and approved Part 2 of the *Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Tribal and Subsistence Fishing Beneficial Uses and Mercury Provisions* (SIP Part 2). With SIP Part 2's approval, the State Water Board approved one new narrative and four new numeric mercury water quality objectives to apply to those inland surface waters, enclosed bays, and estuaries of the state that have any of the following beneficial use designations: COMM, CUL, T-SUB, WILD, MAR, RARE, WARM, COLD, EST, or SAL. The provisions of SIP Part 2 are to be implemented through NPDES permits and WDRs, among other actions the Regional Water Boards may take.

On August 7, 2018, the State Water Board adopted Part 3 of the *Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Bacteria Provisions and a Water Quality Standards Variance Policy* (SIP Part 3), which establishes water quality objectives for reasonable protection of people that recreate within all surface waters, enclosed bays, and estuaries of the state that have the water contact recreation beneficial use (REC-1). The provisions of SIP Part 3 are to be implemented through NPDES permits and WDRs, among other actions the Regional Water Boards may take.

The SIP, including its new applicable revisions from SIP Part 2 for mercury and SIP Part 3 for bacteria, establishes implementation provisions for priority pollutant criteria and objectives and provisions for chronic toxicity control. Requirements of this Order implement the SIP, SIP Part 2, and SIP Part 3.

3.3.7. **Domestic Water Quality.** In compliance with California Water Code section 106.3, it is the policy of the State of California that every human being has the right to safe, clean, affordable, and accessible water adequate for human

consumption, cooking, and sanitary purposes. This Order promotes that policy by requiring discharges to meet maximum contaminant levels implemented by the Basin Plan that are designed to protect human health and ensure that water is safe for domestic use.

- 3.3.8. **Antidegradation Policy.** Federal regulation 40 C.F.R. section 131.12 requires that state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution 68-16, *Statement of Policy with Respect to Maintaining High Quality of Waters in California*. Resolution 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Central Coast Water Board's Basin Plan implements, and incorporates by reference, both the State and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of 40 C.F.R. section 131.12 and State Water Board Resolution 68-16.

Section 4.4.2 of the Fact Sheet includes considerations for the potential impacts of discharging secondary and tertiary treated effluent to the Salinas River and tertiary treated effluent to the dry Huerhuero Creek bed on the underlying groundwater basin.

- 3.3.9. **Anti-Backsliding Requirements.** Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed.
- 3.3.10. **Endangered Species Act Requirements.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code, §§ 2050 to 2097) or the Federal Endangered Species Act (16 U.S.C.A. §§ 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the beneficial uses of waters of the state. The Discharger is responsible for meeting all requirements of the applicable Endangered Species Act.
- 3.3.11. **Sewage Sludge and Biosolids.** This Order does not authorize any act that results in violation of requirements administered by U.S. EPA to implement 40 C.F.R. part 503, Standards for the Use or Disposal of Sewage Sludge. These standards regulate the final use or disposal of sewage sludge that is generated during the treatment of domestic sewage in a municipal wastewater treatment facility. The Discharger is responsible for meeting all applicable requirements of 40 C.F.R. part 503 that are under U.S. EPA's enforcement authority.

3.4. Impaired Waterbodies on the CWA section 303(d) List

CWA section 303(d) requires states to identify specific waterbodies where water quality standards are not expected to be met after implementation of technology-based effluent limitations on point sources. For all 303(d) listed waterbodies and pollutants, the Central Coast Water Board must develop and implement Total Maximum Daily Loads (TMDLs) that will specify Waste Load Allocations (WLAs) for point sources and Load Allocations (LAs) for non-point sources.

The U.S. EPA approved the State's 2014-2016 303(d) list of impaired waterbodies on April 6, 2018. The 2014-2016 303(d) list identifies the Salinas River, between the confluence of the Nacimiento River and Santa Margarita Reservoir, as being impaired for sodium, chloride, turbidity, and pH. Huerhuero Creek is not listed as impaired on the 2014-2016 303(d) list.

A TMDL for the Salinas River has not been developed or approved by U.S. EPA. TMDL development for sodium, chloride, turbidity, and pH is not scheduled for the next seven years. This Order includes requirements for the Discharger to not cause or contribute to these impairments. This Order requires the Discharger to meet effluent limitations, protective of Basin Plan water quality objectives, for discharges from the Facility to the Salinas River, for sodium, chloride, and pH. This Order requires that discharges to the Salinas River do not cause levels of sodium, chloride, turbidity, and pH to exceed Basin Plan water quality objectives. Additionally, this Order requires the Discharger to sample for sodium, chloride, turbidity, and pH in the effluent and at the Salinas River surface water monitoring locations.

3.5. Other Plans, Policies and Regulations

3.5.1. Statewide General NPDES Permit, Waste Discharge Requirements for Stormwater Associated with Industrial Activities Excluding Construction Activities (State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001). The State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001, adopted April 1, 2014, is applicable to POTWs with a design capacity greater than 1.0 MGD. The purpose of State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001 is to regulate stormwater discharges associated with industrial activities. The Discharger is currently not enrolled under State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001. The Central Coast Water Board may require the Discharger to seek coverage under the State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001.

The Discharger treats and retains industrial stormwater runoff from the Facility using low impact development site design features including pervious pavers and bioswales. The Discharger routes industrial stormwater runoff from the southern portion of the Facility, that is not retained by the site design features, for retention in Pond 2 (stormwater pond), which overflows into Pond 3 (effluent polishing pond). The Discharger routes industrial stormwater runoff from the northern portion of the Facility, that is not retained by the site design features, for retention in Pond 4, which overflows into Ponds 5 and 6.

- 3.5.2. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** The State Water Board Order No. 2006-0003-DWQ, adopted on May 2, 2006, is applicable to all “federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California.” The purpose of State Water Board Order No. 2006-0003-DWQ is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows. The Discharger has obtained coverage under the State Water Board Order No. 2006-0003-DWQ.
- 3.5.3. **State Water Board Recycled Water Policy.** The Water Quality Control Policy for Recycled Water (Recycled Water Policy) was approved by the State Water Board on December 11, 2018, and became effective on April 8, 2019. The purpose of the Recycled Water Policy is to encourage the safe use of recycled water in a manner that is protective of public health and the environment. This Order implements the Recycled Water Policy by supporting the production of recycled water and requiring volumetric reporting of wastewater and recycled water to the State Water Board. The Recycled Water Policy calls for the development of regional groundwater basin/sub-basin salt/nutrient management plans. This Order requires the Discharger to continue to commit funding and in-kind resources to facilitate implementation of a regional groundwater basin/sub-basin salt/nutrient management plan that implements the Recycled Water Policy.
- 3.5.4 **Statewide General Water Reclamation Requirements for Recycled Water Use (State Water Board Order No. WQ 2016-0068-DDW).** Water Quality Order WQ 2016-0068-DDW, adopted on June 7, 2016, is applicable to recycled water projects where recycled water is used or transported for non-potable uses. The distribution and offsite reuse of recycled water produced by the Facility is subject to State Water Board Order No. WQ 2016-0068-DDW, or other applicable permit, dependent on final use.

4. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 C.F.R. section 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 C.F.R. section 122.44(d) requires that permits include water quality-based effluent limitations to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water.

4.1. Discharge Prohibitions

- 4.1.1. **Discharge Prohibition 3.1. (No discharge at a location or in a manner except as described by the Order).** The limitations and conditions established by the

Order are based on specific information provided by the Discharger and gained by the Central Coast Water Board through site visits, review of monitoring reports, and other information. Discharges to surface waters at locations not contemplated by this Order or discharges of a character not contemplated by this Order are therefore viewed as inconsistent with CWA section 402's prohibition against discharges of pollutants except in compliance with the CWA's permit requirements, effluent limitations, and other enumerated provisions. This prohibition is retained from the previous permit.

- 4.1.2. **Discharge Prohibition 3.2. (The discharge of any waste not specifically regulated by this Permit is prohibited).** Because limitations and conditions of the Order have been prepared based on specific information provided by the Discharger and specific wastes described by the Discharger, the limitations and conditions of the Order do not adequately address waste streams not contemplated during drafting of the Order. To prevent the discharge of such waste streams that may be inadequately regulated, the Order prohibits the discharge of any waste that was not described to the Central Coast Water Board during the process of permit reissuance.
- 4.1.3. **Discharge Prohibition 3.3. (Aggregated at Discharge Points 001B, 001C, 002A, and 002B, the average dry weather effluent flow shall not exceed 4.9 MGD and the peak hour wet weather effluent flow shall not exceed 12.7 MGD.)** This prohibition reflects the design treatment capacity of the Facility that the Discharger provided in its Report of Waste Discharge for an NPDES permit and in supplemental information provided during the Order development. This prohibition ensures that the influent flow will not exceed the Facility's hydraulic and treatment capacity. Exceeding this flow could result in greater potential to violate water quality requirements. This prohibition has been retained from the Order No. R3-2011-0002; however, it has been updated to reflect the Discharger's increased peak wet weather effluent flow capacity.
- 4.1.4. **Discharge Prohibition 3.4. (The overflow, bypass, or overspray of wastewater from the Discharger's facilities and the subsequent discharge of untreated or partially treated wastewater, except as provided for in Attachment D, Standard Provision 1.7. (Bypass), is prohibited).** The discharge of untreated or partially treated wastewater from the Discharger's collection, treatment, or disposal facilities represents an unauthorized bypass pursuant to 40 C.F.R. section 122.41(m) or an unauthorized discharge, which poses a threat to human health and/or aquatic life, and therefore, is explicitly prohibited by this Order.
- 4.1.5. **Discharge Prohibition 3.5. (Creation of a condition of pollution, contamination, or nuisance, as defined by Section 13050 of the California Water Code (CWC), is prohibited).** The Basin Plan requires that the disposal of wastewater in ephemeral streams be accomplished in a manner that safeguards public health and prevents nuisance conditions. This prohibition has been retained from Order No. R3-2011-0002.

4.1.6. **Discharge Prohibition 3.6. (The discharge shall not cause or contribute to adverse impacts to beneficial uses of water or to threatened or endangered species and their habitat).** This prohibition has been retained from the Order No. R3-2011-0002.

4.2. Technology-Based Effluent Limitations (TBELs)

4.2.1. Scope and Authority

Section 301(b) of the CWA and implementing U.S. EPA permit regulations at 40 C.F.R. section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. When the U.S. EPA has not yet developed technology based standards for a particular industry or a particular pollutant, CWA section 402(a)(1) and U.S. EPA regulations at 40 C.F.R. section 125.3 authorize the use of best professional judgement (BPJ) to derive technology-based effluent limitations on a case-by-case basis. When BPJ is used, the permit writer must consider specific factors outlined at 40 C.F.R. section 125.3.

The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at 40 C.F.R. part 133 as summarized below:

Table F-5. Secondary Treatment Requirements

Parameter	Units	30-Day Average	7-Day Average
Biochemical Oxygen Demand 5-day @ 20°C (BOD ₅) ^[1]	milligram per liter (mg/L)	30	45
TSS ^[1]	mg/L	30	45
pH	standard units	6.0 ^[2]	9.0 ^[3]

^[1] The 30-day average percent removal shall not be less than 85 percent.

^[2] Instantaneous minimum value.

^[3] Instantaneous maximum value.

4.2.2. Applicable Technology-Based Effluent Limitations

Title 40 C.F.R. section 122.45(f)(1) requires effluent limitations be expressed in terms of mass, with some exceptions, and 40 C.F.R. section 122.45(f)(2) allows pollutants that are limited in terms of mass to additionally be limited in terms of other units of measurement. This Order includes effluent limitations expressed in terms of mass and concentration. In addition, pursuant to the exceptions to mass limitations provided in 40 C.F.R. section 122.45(f)(1), some effluent limitations are not expressed in terms of mass, such as pH and temperature, and when the applicable standards are expressed in terms of concentration and mass limitations are not necessary to protect the beneficial uses of the receiving waters.

4.2.2.1. The following table summarizes technology-based effluent limitations established by this Order at Discharge Points 001B, 001C, 002A, and 002B.

Table F-6. Technology-Based Effluent Limitations – Discharge Points 001B, 001C, 002A, and 002B

Parameter	Units	30-Day Average	7-Day Average
BOD ₅ ^[1]	mg/L	25	35
BOD ₅	pounds per day (lbs/day) ^[2]	1,022	1,430
Total Suspended Solids (TSS) ^[1]	mg/L	30	45
TSS	lbs/day ^[2]	1,226	1,839
pH	standard units	6.0 ^[3]	9.0 ^[4]

^[1] The average monthly percent removal of BOD₅ and TSS, as measured at Monitoring Locations EFF-001B, EFF-001C, and EFF-002 shall not be less than 85 percent.

^[2] Mass loading limits were calculated using the following formulas:
lbs/day = pollutant concentration (mg/L) * permitted flow (4.9 MGD) * conversion factor (8.34)

^[3] Instantaneous minimum value.

^[4] Instantaneous maximum value.

4.2.2.1.1. BOD₅ and TSS. Federal Regulations at 40 C.F.R. part 133 establish the minimum weekly and monthly average level of effluent quality attainable by secondary treatment for BOD₅ and TSS. Although the Secondary Treatment Regulations at 40 C.F.R. part 133 require average monthly and weekly BOD₅ limitations of 30 and 45 mg/L, respectively, the more stringent average monthly and weekly limitations of 25 and 35 mg/L are retained from the previous permit, as the treatment facility has consistently achieved this level of performance. Effluent limitations for BOD₅ and TSS have been retained from Order No. R3-2011-0002 and represent the degree of treatment capable of the Facility.

Additionally, 40 C.F.R. section 133.102, in describing the minimum level of effluent quality attainable by secondary treatment, states that the 30-day average percent removal shall not be less than 85 percent. This Order contains a limitation requiring an average of 85 percent removal of BOD₅ and TSS over each calendar month.

4.2.2.1.2. pH. Federal Regulations at 40 C.F.R. part 133 establish technology-based effluent limitations for pH. The secondary treatment standards require the pH of the effluent to be no lower than 6.0 and no greater than 9.0 standard units. This technology based effluent limitation is not as stringent as the WQBELs for pH as discussed in section 4.3.6.4. of this Fact Sheet, established by Order No. R3-2011-0002, which have been retained in this Order.

4.3. Water Quality-Based Effluent Limitations (WQBELs)

4.3.1. Scope and Authority

CWA Section 301(b) and 40 C.F.R. section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards.

Section 122.44(d)(1)(i) of 40 C.F.R. requires that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, water quality-based effluent limitations (WQBELs) must be established using: (1) U.S. EPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the CTR and NTR.

4.3.2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

Beneficial uses described by the Basin Plan for the Salinas River are presented in section 3.3.1 of this Fact Sheet. Water quality criteria applicable to this receiving water are established by the CTR, the NTR, and by the Basin Plan.

4.3.3. Determining the Need for WQBELs

NPDES regulations at 40 C.F.R. section 122.44(d) require effluent limitations to control all pollutants which are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard.

The SIP, statewide policy that became effective on May 22, 2000, establishes procedures to implement water quality criteria from the NTR and CTR and for priority, toxic pollutant objectives established in the Basin Plan. The implementation procedures of the SIP include methods to determine reasonable potential (for pollutants to cause or contribute to excursions above State water quality standards) and to establish numeric effluent limitations, if necessary, for those pollutants which show reasonable potential.

The SIP Section 1.3 requires the Central Coast Water Board to use all available valid, relevant, and representative receiving water and effluent data and information to conduct a reasonable potential analysis. The Central Coast Water Board analyzed the Discharger's data for priority pollutants and the nature of the discharge to determine if the discharge has reasonable potential. The reasonable potential analysis (RPA) is based on effluent monitoring data collected by the Discharger from May 2015 through September 2019.

Some freshwater water quality criteria for metals are hardness dependent; i.e., as hardness decreases, the toxicity of certain metals increases, and the applicable water quality criteria become correspondingly more stringent. Central Coast Water Board staff used a hardness value of 157 mg/L as a lowest and conservative estimate of the receiving water hardness to determine hardness-based criteria. The minimum hardness value was determined from receiving water monitoring data collected by the Discharger at Monitoring Location SW-001 between July 2011 through May 2017.

To conduct the reasonable potential analysis, the Central Coast Water Board identified the maximum observed effluent (MEC) and background (B) concentrations for each priority, toxic pollutant from receiving water and effluent data provided by the Discharger and compared this data to the most stringent applicable water quality criterion (C) for each pollutant from the NTR, CTR, and the Basin Plan. Section 1.3 of the SIP establishes three triggers for a finding of reasonable potential.

- 4.3.3.1. **Trigger 1.** If the MEC is greater than C, there is reasonable potential, and an effluent limitation is required.
- 4.3.3.2. **Trigger 2.** If B is greater than C, and the pollutant is detected in effluent (MEC > ND), there is reasonable potential, and an effluent limitation is required.
- 4.3.3.3. **Trigger 3.** After reviewing other available and relevant information, a permit writer may decide that a WQBEL is required. Such additional information may include, but is not limited to: the facility type, the discharge type, solids loading analyses, lack of dilution, history of compliance problems, potential toxic impact of the discharge, fish tissue residue data, water quality and beneficial uses of the receiving water, CWA 303(d) listing for the pollutant, and the presence of endangered or threatened species or their critical habitat.

Based on analysis of effluent data, the Central Coast Water Board, using methods presented in the SIP, finds that the discharge does not have reasonable potential to cause or contribute to in-stream excursions above applicable water quality criteria for the priority toxic pollutants with the exception of copper, mercury, selenium, chlorodibromomethane, and dichlorobromomethane.

The following table summarizes the RPA for each priority, toxic, or Title 22 pollutant for which data was available from May 2015 to September 2019.

Table F-7. Summary of RPA Results

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Antimony	µg/L	2	0.771	6.0	0.388	No
Arsenic	µg/L	2	1.44	50	1.72	No

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Beryllium	µg/L	2	<0.043	4.0	<0.043	No
Cadmium	µg/L	2	<0.029	3.0	<0.029	No
Chromium (III)	µg/L	2	2.94	300	0.066	No
Chromium (VI)	µg/L	2	0.709	11.4	0.495	No
Copper	µg/L	18	18	13.7	2.3	Yes
Lead	µg/L	2	0.322	5.65	0.221	No
Mercury	µg/L	2	0.0268	0.012	0.0304	Yes
Nickel	µg/L	2	2.63	76.4	2.13	No
Selenium	µg/L	19	9.11	5.0	3.29	Yes
Silver	µg/L	2	0.66	8.82	0.33	No
Thallium	µg/L	2	<0.014	1.7	<0.014	No
Zinc	µg/L	2	53	176	14.5	No
Cyanide	µg/L	2	<0.0023	5.2	<2.3	No
Asbestos	fibers/L	1	<9	7,000,000	N/A	No
2,3,7,8 TCDD	µg/L	1	<1.2E-6	1.3E-08	N/A	No
Acrolein	µg/L	2	<2.5	320	<12	No
Acrylonitrile	µg/L	2	<0.85	0.059	<3.0	No
Benzene	µg/L	2	<0.12	1.0	<0.12	No
Bromoform	µg/L	18	1.16	4.3	<0.077	No
Carbon Tetrachloride	µg/L	2	<0.050	0.25	<0.053	No
Chlorobenzene	µg/L	2	<0.021	70	<0.021	No
Chlorodibromomethane	µg/L	18	4.0	0.40	<0.049	Yes
Chloroethane	µg/L	2	<0.093	No Criteria	<0.093	Uc
2-Chloroethylvinyl Ether	µg/L	2	<0.14	No Criteria	<0.79	Uc
Chloroform	µg/L	5	78.9	No Criteria	<0.047	Uc
Dichlorobromomethane	µg/L	18	14.2	0.56	<0.049	Yes
1,1-Dichloroethane	µg/L	2	<0.035	5.0	<0.035	No
1,2-Dichloroethane	µg/L	2	<0.044	0.38	<0.048	No
1,1-Dichloroethylene	µg/L	2	<0.028	0.057	<0.028	No
1,2-Dichloropropane	µg/L	2	<0.074	0.52	<0.074	No
1,3-Dichloropropylene	µg/L	2	<0.037	0.50	<0.037	No
Ethylbenzene	µg/L	2	<0.046	300	<0.057	No

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Methyl Bromide	µg/L	2	<0.025	48	<0.25	No
Methyl Chloride	µg/L	2	<0.070	No Criteria	<0.070	Uc
Methylene Chloride	µg/L	2	<0.019	4.7	<0.019	No
1,1,2,2-Tetrachloroethane	µg/L	2	<0.054	0.17	<0.054	No
Tetrachloroethylene	µg/L	2	<0.033	0.80	<0.033	No
Toluene	µg/L	2	<0.050	150	<0.060	No
1,2-Trans-Dichloroethylene	µg/L	2	<0.032	10	<0.032	No
1,1,1-Trichloroethane	µg/L	2	<0.040	200	<0.040	No
1,1,2-Trichloroethane	µg/L	2	<0.033	0.60	<0.060	No
Trichloroethylene	µg/L	2	<0.050	2.7	<0.069	No
Vinyl Chloride	µg/L	2	<0.049	0.50	<0.049	No
2-Chlorophenol	µg/L	2	<1.0	120	<1.0	No
2,4-Dichlorophenol	µg/L	2	<0.79	93	<0.79	No
2,4-Dimethylphenol	µg/L	2	<0.76	540	<0.76	No
4,6-dinitro-o-cresol (2-metil-4,6-dinitrofenol)	µg/L	2	<0.43	13.4	<0.43	No
2,4-Dinitrophenol	µg/L	2	<0.22	70	<0.22	No
2-Nitrophenol	µg/L	2	<1.1	No Criteria	<1.1	Uc
4-Nitrophenol	µg/L	2	<1.1	No Criteria	<1.1	Uc
3-Methyl-4-Chlorophenol (P-chloro-m-cresol)	µg/L	2	<0.46	No Criteria	<0.86	Uc
Pentachlorophenol	µg/L	2	<0.91	0.28	<0.91	No
Phenol	µg/L	2	<0.88	1.0	<0.88	No
2,4,6-Trichlorophenol	µg/L	2	<0.90	2.1	<0.90	No
Acenaphthene	µg/L	2	<0.50	1,200	<0.50	No
Acenaphthylene	µg/L	2	<0.39	No Criteria	<0.39	Uc
Anthracene	µg/L	2	<0.43	9,600	<0.43	No
Benzidine	µg/L	2	<1.8	0.00012	<1.8	No
Benzo(a)Anthracene	µg/L	2	<0.43	0.0044	<0.43	No
Benzo(a)Pyrene	µg/L	2	<0.40	0.0044	<0.40	No
Benzo(b)Fluoranthene	µg/L	2	<0.37	0.0044	<0.37	No

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Benzo(ghi)Perylene	µg/L	2	<0.40	No Criteria	<0.40	Uc
Benzo(k)Fluoranthene	µg/L	2	<0.50	0.0044	<0.50	No
Bis(2-Chloroethoxy) Methane	µg/L	2	<0.56	No Criteria	<0.56	Uc
Bis(2-Chloroethyl) Ether	µg/L	2	<0.52	0.031	<0.52	No
Bis(2-Chloroisopropyl) Ether	µg/L	2	<0.53	1,400	<0.53	No
Bis(2-Ethylhexyl) Phthalate	µg/L	18	1.35	1.8	<0.41	No
4-Bromophenyl Phenyl Ether	µg/L	2	<0.46	No Criteria	<0.46	Uc
Butylbenzyl Phthalate	µg/L	2	<0.29	3,000	<0.29	No
2-Chloronaphthalene	µg/L	2	<0.63	1,700	<0.63	No
4-Chlorophenyl Phenyl Ether	µg/L	2	<0.62	No Criteria	<0.62	Uc
Chrysene	µg/L	2	<0.51	0.0044	<0.51	No
Dibenzo(a,h)Anthracene	µg/L	2	<0.37	0.0044	<0.37	No
1,2-Dichlorobenzene	µg/L	2	<0.47	600	<0.47	No
1,3-Dichlorobenzene	µg/L	2	<0.45	400	<0.45	No
1,4-Dichlorobenzene	µg/L	2	<0.47	5.0	<0.47	No
3,3 Dichlorobenzidine	µg/L	2	<0.43	0.040	<0.43	No
Diethyl Phthalate	µg/L	2	<0.34	23,000	<0.34	No
Dimethyl Phthalate	µg/L	2	<0.31	313,000	<0.31	No
Di-n-Butyl Phthalate	µg/L	2	<0.35	2,700	<0.35	No
2,4-Dinitrotoluene	µg/L	2	<0.49	0.11	<0.49	No
2,6-Dinitrotoluene	µg/L	2	<0.55	No Criteria	<0.55	Uc
Di-n-Octyl Phthalate	µg/L	2	<0.31	No Criteria	<0.31	Uc
1,2-Diphenylhydrazine	µg/L	2	<0.47	0.040	<0.47	No
Fluoranthene	µg/L	2	<0.44	300	<0.44	No
Fluorene	µg/L	2	<0.62	1,300	<0.62	No
Hexachlorobenzene	µg/L	2	<0.47	0.00075	<0.47	No
Hexachlorobutadiene	µg/L	2	<0.45	0.44	<0.45	No
Hexachlorocyclopentadiene	µg/L	2	<0.24	50	<0.24	No
Hexachloroethane	µg/L	2	<0.43	1.9	<0.43	No
Indeno(1,2,3-cd) Pyrene	µg/L	2	<0.38	0.0044	<0.38	No

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Isophorone	µg/L	2	<0.41	8.4	<0.41	No
Naphthalene	µg/L	2	<0.55	No Criteria	<0.55	Uc
Nitrobenzene	µg/L	2	<0.47	17	<0.47	No
N-Nitrosodimethylamine	µg/L	2	<0.47	0.00069	<0.47	No
N-Nitrosodi-n-Propylamine	µg/L	2	<0.53	0.0050	<0.53	No
N-Nitrosodiphenylamine	µg/L	2	<0.74	5.0	<0.74	No
Phenanthrene	µg/L	2	<0.018	No Criteria	<0.50	Uc
Pyrene	µg/L	2	<0.46	960	<0.46	No
1,2,4-Trichlorobenzene	µg/L	2	<0.48	5.0	<0.48	No
Aldrin	µg/L	2	<0.91	0.00013	<0.91	No
alpha-BHC	µg/L	2	<1.3	0.0039	<0.0013	No
beta-BHC	µg/L	2	<1.5	0.014	<0.0015	No
gamma-BHC	µg/L	2	<3.7	0.019	<0.0037	No
delta-BHC	µg/L	2	<1.8	No Criteria	<0.0018	Uc
Chlordane	µg/L	2	<0.025	0.00057	<0.16	No
4,4'-DDT	µg/L	2	<4.1	0.00059	<0.0009 5	No
4,4'-DDE	µg/L	2	<1.3	0.00059	<0.0003 5	No
4,4'-DDD	µg/L	2	<1.3	0.00083	<0.0005 4	No
Dieldrin	µg/L	2	<1.5	0.00014	<0.0015	No
alpha-Endosulfan	µg/L	2	<2.1	0.056	<0.0021	No
beta-Endosulfan	µg/L	2	<2.1	0.056	<0.0021	No
Endosulfan Sulfate	µg/L	2	<1.2	110	<0.0012	No
Endrin	µg/L	2	<1.3	0.036	<0.0013	No
Endrin Aldehyde	µg/L	2	<1.9	0.76	<0.0019	No
Heptachlor	µg/L	2	<1.8	0.00021	<0.0018	No
Heptachlor Epoxide	µg/L	2	<0.77	0.00010	<0.0007 7	No
PCBs sum	µg/L	2	<0.049	0.00017	<0.049	No
Toxaphene	µg/L	2	<0.044	0.00020	<0.044	No

^[1] Number of data points available for the RPA.

[2] If there is a detected value, the highest reported value is summarized in the table. If there are no detected values, if available, the lowest MDL is summarized in the table.

[3] RPA Results:

= Yes, if MEC > WQO/WQC, or B > WQO/WQC and MEC is detected;

= No, if MEC and B are < WQO/WQC or all effluent data are undetected;

= Undetermined, if no criteria have been promulgated (Uc), or for lack of data (Ud).

Table F-8. Summary of RPA Results – Drinking Water Quality Objectives

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Aluminum	µg/L	1	235	1,000	N/A	No
Barium	µg/L	0	N/A	1,000	N/A	Ud
Fluoride	µg/L	0	N/A	1,000	N/A	Ud
cis-1,2-Dichloroethylene	µg/L	0	N/A	6.0	N/A	Ud
Methyl-tert-butyl ether	µg/L	2	<0.081	13	<0.064	No
Styrene	µg/L	2	<0.059	100	<0.070	No
Trichlorofluoromethane	µg/L	2	<0.15	150	<0.073	No
1,1,2-Trichloro-1,2,2-Trifluoroethane	µg/L	0	N/A	1,200	N/A	Ud
Xylenes	µg/L	2	<0.062	1,750	<0.092	No
Alachlor	µg/L	1	<0.16	2.0	N/A	No
Atrazine	µg/L	1	0.14	1.0	N/A	No
Bentazon	µg/L	0	N/A	18	N/A	Ud
Carbofuran	µg/L	0	N/A	18	N/A	Ud
2,4-D	µg/L	0	N/A	70	N/A	Ud
Dalapon	µg/L	1	<0.40	200	N/A	No
Dibromochloropropane (1,2-Dibromo-3-chloropropane)	µg/L	0	N/A	0.20	N/A	Ud
Di(2-ethylhexyl) Adipate	µg/L	1	ND ^[4]	400	N/A	No
Dinoseb	µg/L	1	<0.14	7.0	N/A	No
Diquat	µg/L	1	<1.4	20	N/A	No
Endothall	µg/L	1	<13	100	N/A	No
Ethylene Dibromide	µg/L	0	N/A	0.05	N/A	Ud
Glyphosate	µg/L	0	N/A	700	N/A	Ud
Methoxychlor	µg/L	2	<0.0050	30	<0.00046	No
Molinate	µg/L	0	N/A	20	N/A	Ud
Oxamyl	µg/L	1	<0.087	50	N/A	No

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Picloram	µg/L	1	<0.082	500	N/A	No
Simazine	µg/L	1	<0.16	4.0	N/A	No
Thiobencarb	µg/L	1	<0.94	70	N/A	No
2,4,5-TP(Silvex)	µg/L	2	<1.2	50	<1.2	No
Nitrate, (as NO ₃)	mg/L	16	30.1	45	N/A	No
Nitrate Plus Nitrite (as N)	mg/L	0	N/A	10	2.23	Ud
Nitrite (as N)	mg/L	16	0.686	1.0	N/A	No
Perchlorate	µg/L	0	N/A	6.0	N/A	Ud

N/A = Not Available

[1] Number of data points available for the RPA.

[2] If there is a detected value, the highest reported value is summarized in the table. If there are no detected values, if available, the lowest MDL is summarized in the table.

[3] RPA Results:

= Yes, if MEC > WQO/WQC, or B > WQO/WQC and MEC is detected;

= No, if MEC and B are < WQO/WQC or all effluent data are undetected;

= Undetermined, if no criteria have been promulgated (Uc), or for lack of data (Ud).

[4] Data was reported as “non-detect”. No MDL was reported.

Table F-9. Summary of RPA Results – Central Coast Basin Plan Water Quality Objectives

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Cobalt	µg/L	0	N/A	50	N/A	Ud
Iron	µg/L	1	496	5,000	N/A	No
Lithium	µg/L	0	N/A	2,500	N/A	Ud
Manganese	µg/L	1	56.8	200	N/A	No
Molybdenum	µg/L	0	N/A	10	N/A	Ud
Vanadium	µg/L	0	N/A	100	N/A	Ud
Methylene Blue Activated Substances	µg/L	1	0.038	200	N/A	No
Phthalate Esters	µg/L	0	N/A	0.002	N/A	Ud
Un-ionized Ammonia as N	mg/L	16	0.0764	0.025	0.013	Yes

Parameter	Units	N ^[1]	MEC ^[2]	Most Stringent Criteria	Background	RPA Result ^[3]
Boron	mg/L	0	N/A	0.2	N/A	Ud
Chloride	mg/L	51	317	20	165	Yes
Sodium	mg/L	51	250	20	174	Yes
Sulfate	mg/L	51	224	100	172	Yes
TDS	mg/L	46	1,060	250	902	Yes

N/A = Not Available

^[1] Number of data points available for the RPA.

^[2] If there is a detected value, the highest reported value is summarized in the table. If there are no detected values, if available, the lowest MDL is summarized in the table.

^[3] RPA Results:

= Yes, if MEC > WQO/WQC, or B > WQO/WQC and MEC is detected;

= No, if MEC and B are < WQO/WQC or all effluent data are undetected;

= Undetermined, if no criteria have been promulgated (Uc), or for lack of data (Ud).

4.3.4. WQBEL Calculations

The following example demonstrates how WQBELs were established for this Order for copper.

Final WQBELs for copper have been determined using the methods described in Section 1.4 of the SIP.

Step 1: For each water quality criterion/objective, an effluent concentration allowance (ECA) is calculated from the following equation to account for dilution and background levels of each pollutant.

$$\begin{aligned} \text{ECA} &= C + D (C - B), & \text{when } C > B, \text{ and} \\ \text{ECA} &= C & \text{when } C \leq B, \end{aligned}$$

Where,

C = the applicable water quality criterion (adjusted for receiving water hardness and expressed as total recoverable metal, if applicable).

D = the dilution credit (here D = 0, as the Central Coast Water Board has no information with which to justify credit for dilution).

B = the background concentration

As discussed above, for this Order, dilution was not allowed; therefore:

$$\text{ECA} = C$$

For copper the applicable water quality criteria are:

$$ECA_{\text{acute}} = 21.41 \mu\text{g/L}$$

$$ECA_{\text{chronic}} = 13.72 \mu\text{g/L}$$

Step 2: For each ECA based on an aquatic life criterion, the long-term average discharge condition (LTA) is determined by multiplying the ECA times a factor (multiplier), which adjusts the ECA to account for effluent variability. The multiplier varies depending on the coefficient of variation (CV) of the data set and whether it is an acute or chronic criterion/objective. Table 1 of the SIP provides pre-calculated values for the multipliers based on the value of the CV. When the data set contains less than 10 sample results, or 80 percent or more of the data are reported as nondetect (ND), the CV is set equal to 0.6. Derivation of the multipliers is presented in Section 1.4 of the SIP.

$$LTA_{\text{acute}} = ECA_{\text{acute}} \times \text{Multiplier}_{\text{acute } 99}$$

$$LTA_{\text{chronic}} = ECA_{\text{chronic}} \times \text{Multiplier}_{\text{chronic } 99}$$

For copper, the following data was used to develop the acute and chronic LTA using equations provided in Section 1.4, Step 3 of the SIP (Table 1 of the SIP also provides this data up to three decimals):

No. of Samples	CV	ECA Multiplier _{acute 99}	ECA Multiplier _{chronic 99}
17	0.93	0.22	0.39

$$LTA_{\text{acute}} = 21.41 \mu\text{g/L} \times 0.22 = 4.65 \mu\text{g/L}$$

$$LTA_{\text{chronic}} = 13.72 \mu\text{g/L} \times 0.39 = 5.40 \mu\text{g/L}$$

Step 3: WQBELs, including an average monthly effluent limitation (AMEL) and a maximum daily effluent limitation (MDEL) are calculated using the most limiting (the lowest) LTA. The LTA is multiplied times a factor that accounts for averaging periods and exceedance frequencies of the effluent limitations, and for the AMEL, the effluent monitoring frequency. Here, the sampling frequency is set equal to 4 (n = 4). The 99th percentile occurrence probability was used to determine the MDEL multiplier and a 95th percentile occurrence probability was used to determine the AMEL multiplier. Table 2 of the SIP presents the MDEL and AMEL multipliers as a function of the CV. When the data set contains less than 10 sample results, or when 80 percent or more of the data set is reported as non-detect (ND), the CV is set equal to 0.6. Otherwise, the CV is calculated as the standard deviation divided by the mean.

For copper, the most limiting LTA was the LTA_{acute} .

$$LTA_{\text{copper}} = LTA_{\text{acute}} = 4.65 \mu\text{g/L}$$

Step 4: Calculate the WQBELs by multiplying the LTA by a factor (multiplier).

WQBELs are expressed as AMEL and MDEL. The multiplier is a statistically based factor that adjusts the LTA for the averaging periods and exceedance frequencies of the criteria/objectives and the effluent limitations. The value of the

multiplier varies depending on the probability basis, the coefficient of variation (CV) of the data set, the number of samples (for AMEL) and whether it is a monthly or daily limit. Table 2 of the SIP provides pre-calculated values for the multipliers based on the value of the CV and the number of samples. Equations to develop the multipliers in place of using values in the tables are provided in Section 1.4, Step 5 of the SIP and will not be repeated here.

$$AMEL_{\text{aquatic life}} = LTA \times AMEL_{\text{multiplier 95}}$$

$$MDEL_{\text{aquatic life}} = LTA \times MDEL_{\text{multiplier 99}}$$

AMEL multipliers are based on a 95th percentile occurrence probability, and the MDEL multipliers are based on the 99th percentile occurrence probability. If the number of samples is less than four (4), the default number of samples to be used is four (4).

For copper, the following data was used to develop the AMEL and MDEL for aquatic life using equations provided in Section 1.4, Step 5 of the SIP (Table 2 of the SIP also provides this data up to two decimals):

No. of Samples	CV	Multiplier _{MDEL 99}	Multiplier _{AMEL 99}
17	0.93	4.60	1.88

$$AMEL_{\text{aquatic life}} = 4.65 \mu\text{g/L} \times 1.88 = 8.75 \mu\text{g/L}$$

$$MDEL_{\text{aquatic life}} = 4.65 \mu\text{g/L} \times 4.60 = 21.41 \mu\text{g/L}$$

Calculation of human health AMEL and MDEL:

Step 5: For the ECA based on human health, set the AMEL equal to the ECA_{human health}

$$AMEL_{\text{human health}} = ECA_{\text{human health}}$$

For copper:

$$AMEL_{\text{human health}} = 200 \mu\text{g/L}$$

Step 6: Calculate the MDEL for human health by multiplying the AMEL by the ratio of the Multiplier_{MDEL} to the Multiplier_{AMEL}. Table 2 of the SIP provides pre-calculated ratios to be used in this calculation based on the CV and the number of samples.

$$MDEL_{\text{human health}} = AMEL_{\text{human health}} \times (\text{Multiplier}_{\text{MDEL}} / \text{Multiplier}_{\text{AMEL}})$$

For copper, the following data were used to develop the MDEL_{human health}:

No. of Samples	CV	Multiplier _{MDEL 99}	Multiplier _{AMEL 99}	Ratio
17	0.93	4.60	1.88	2.45

$$MDEL_{\text{human health}} = 200 \mu\text{g/L} \times 2.45 = 490 \mu\text{g/L}$$

Step 7: Select the lower of the AMEL and MDEL based on aquatic life and human health as the water-quality based effluent limit for the Order.

For copper the AMEL_{human health} and MDEL_{human health} were 200 µg/L and 490 µg/L. Thus, the aquatic life criteria-based effluent limitations were more stringent and were considered in the Order. The newly calculated aquatic life criteria-based effluent limitations were compared to the effluent limitations established for copper in Order No. R3-2011-0002 (average monthly effluent limitation of 21 µg/L; maximum daily effluent limitation of 39 µg/L). The newly calculated effluent limitations were more stringent than the effluent limitations established in Order No. R3-2011-0002. Thus, the newly calculated effluent limitations for copper were established in this Order.

4.3.5. **Whole Effluent Toxicity (WET)**

WET limitations protect receiving water from the aggregated toxic effect of a mixture of pollutants in effluent. WET tests measure the degree of response of exposed aquatic test organisms to an effluent. The WET approach allows for protection of the narrative “no toxics in toxic amounts” criterion while implementing numeric criteria for toxicity. There are two types of WET tests – acute and chronic. An acute test is conducted over a short time period and measures mortality. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and may measure mortality, reproduction, and growth.

The Basin Plan requires that all waters shall be maintained free of toxic substances in concentrations which are toxic to, or which produce detrimental physiological responses in, human, plant, animal, or aquatic life. Survival of aquatic organisms in surface waters subjected to a waste discharge or other controllable water quality conditions shall not be less than that for the same waterbody in areas unaffected by the waste discharge or for another control water.

The previous order established a narrative effluent limitation for acute toxicity of “pass/fail” and a numeric effluent limitation for chronic toxicity of 1.0 TUC to ensure compliance with Basin Plan narrative objective. The acute and chronic toxicity effluent limitations have been retained from the previous order.

To ensure compliance with the acute and chronic toxicity effluent limitations, the Discharger is required to conduct acute and chronic WET testing, as specified in the Monitoring and Reporting Program (Attachment E, section 5). Furthermore, the Special Provision contained at section 6.3.2.1. of this Order requires the Discharger to investigate the causes of and identify and implement corrective actions to reduce or eliminate effluent toxicity. If the discharge demonstrates toxicity exceeding the acute and/or chronic toxicity effluent limitation, the Discharger is required to initiate a Toxicity Reduction Evaluation (TRE) in accordance with an approved TRE workplan.

4.3.6. **Basin Plan**

- 4.3.6.1. **Total Chlorine Residual.** Chlorinated discharges have the reasonable potential to contribute to an exceedance of the Basin Plan's narrative toxicity objective. The U.S. EPA developed National Recommended Ambient Water Quality Criteria for chlorine for the protection of freshwater aquatic life. The recommended 4-day average (chronic) and 1-hour average (acute) criteria for chlorine residual are 11 µg/L and 19 µg/L, respectively. These criteria are protective of the Basin Plan's narrative toxicity objective and are from U.S. EPA's National Recommended Water Quality Criteria for Freshwater Aquatic Life Protection. The *U.S. EPA Technical Support Document for Water Quality-based Toxics Control* (TSD) recommends that where calculated WQBELs are below detection limits, the calculated WQBELs be specified as the permit limitation. As these limitations are below analytical detection levels, compliance with the chlorine limitations is determined as described in sections 4.1.1.1 of this Order. Order No. R3-2011-0002 established an effluent limitation for chlorine of non-detect at Discharge Points 001B and 001C. This Order retains the effluent limitation at Discharge Points 001B and 001C for total chlorine residual from the previous order.
- 4.3.6.2. **Dissolved Oxygen.** The nature of domestic, commercial, and industrial wastewater received by the Facility and similar publicly owned treatment works, have the reasonable potential to cause or contribute to an exceedance of water quality criteria for dissolved oxygen. In order to protect the beneficial uses of the Salinas River, Order No. R3-2011-0002 established an effluent limitation for dissolved oxygen of greater than 2.0 mg/L at all times at Discharge Points 001B and 001C. This Order retains the effluent limitation for dissolved oxygen from the previous order and establishes an effluent limitation for dissolved oxygen of greater than 2.0 mg/L at all times at Discharge Points 002A and 002B to protect the beneficial uses of Huerhuero Creek.
- 4.3.6.3. **pH.** The nature of domestic, commercial, and industrial wastewater received by the Facility and similar publicly owned treatment works, have the reasonable potential to cause or contribute to an exceedance of water quality criteria for pH. The Basin Plan establishes a WQO for pH of between 6.5 to 8.3 standard units for the protection of receiving waters with the beneficial use of Municipal and Domestic Supply (MUN), Agricultural Supply (AGR), and Water Recreation (REC-1 and REC-2). The Basin Plan also establishes a WQO for pH between 7.0 to 8.5 standard units for the beneficial use of Freshwater Habitat (COLD and WARM) and Fish Spawning (SPWN). The Basin Plan designates COLD, WARM, and SPWN beneficial uses for the Salinas River and the WARM beneficial use for Huer Huero Creek. Order No. R3-2011-0002 contained a pH effluent limitation of 6.5 to 8.3 at Discharge Points 001B and 001C. This Order retains a pH effluent limitation of 6.5 to 8.3 at Discharge Points 001B and 001C and establishes a pH effluent limitation of 6.5 to 8.3 at Discharge Points 002A and 002B to protect all beneficial uses of the Salinas River and Huerhuero Creek.
- 4.3.6.4. **Oil and Grease.** The nature of domestic, commercial, and industrial wastewater received by the Facility and similar publicly owned treatment works, have the

reasonable potential to cause or contribute to an exceedance of water quality criteria for oil and grease. The Basin Plan establishes a narrative effluent limitation for oil and grease, which states, "Waters shall not contain oils, greases, waxes, or other similar materials in concentrations that result in a visible film or coating on the surface of the water or on objects in the water, that cause nuisance, or that otherwise adversely affect beneficial uses." Order No. R3-2011-0002 contained an average monthly effluent limitation of 10 mg/L and an average weekly effluent limitation of 18 mg/L. These effluent limitations are typical of similar facilities that discharge secondary treated wastewater and are necessary to protect the narrative water quality objective. This Order retains the effluent limitations at Discharge Points 001B and 001C for oil and grease, from the previous order, to ensure that the level of effluent quality discharged from the Facility to the Salinas River is maintained. This Order establishes an average monthly effluent limitation of 10 mg/L and an average weekly effluent limitation of 18 mg/L for oil and grease, at Discharge Points 002A and 002B, to ensure the that the level of effluent quality discharged from the Facility is protective of beneficial uses in Huerhuero Creek.

- 4.3.6.5. **Settleable Solids.** The nature of domestic, commercial, and industrial wastewater received by the Facility and similar publicly owned treatment works, have the reasonable potential to cause or contribute to an exceedance of water quality criteria for settleable solids. The Basin Plan establishes a narrative effluent limitation for settleable solids, which states, "Waters shall not contain settleable material in concentrations that result in deposition of material that causes nuisance or adversely affects beneficial uses." Order No. R3-2011-0002 contained an average monthly effluent limitation of 0.1 mL/L and an average weekly effluent limitation of 0.3 mL/L at Discharge Points 001B and 001C. These effluent limitations are typical of similar facilities that discharge secondary treated wastewater and is necessary to protect the narrative water quality objective. This Order retains the effluent limitations at Discharge Points 001B and 001C for settleable solids, from the previous order, to ensure that the level of effluent quality discharged from the Facility to the Salinas River is maintained. This Order establishes an average monthly effluent limitation of 0.1 mL/L and an average weekly effluent limitation of 0.3 mL/L for settleable solids, at Discharge Points 002A and 002B, to ensure the that the level of effluent quality discharged from the Facility is protective of beneficial uses in Huerhuero Creek.
- 4.3.6.6. **Un-ionized Ammonia.** The Basin Plan establishes a WQO for un-ionized ammonia of 0.025 mg/L for all inland surface waters in the Central Coast Region. The un-ionized ammonia WQO is dependent on pH and temperature of the receiving waterbody. Therefore, the un-ionized ammonia concentrations of the Facility's effluent reported during the previous permit term are not necessarily representative of the potential of the effluent to exceed the un-ionized ammonia WQO. Due to determination of the RPA for the effluent to contain un-ionized ammonia, this Order retains the existing un-ionized ammonia surface water limitation for discharges to the Salinas River and

establishes an un-ionized ammonia surface water limitation for discharges to Huerhuero Creek.

4.3.6.7. **Total Nitrogen.** Because of the nature of domestic wastewater, discharges from publicly owned treatment works have the reasonable potential to cause or contribute to an exceedance of water quality criteria for total nitrogen. Order No. R3-2011-0002 established a maximum daily effluent limitation of 10 mg/L (as N) for total nitrogen. This Order retains the effluent limitations at Discharge Points 001B and 001C for total nitrogen, from the previous order, to ensure that the level of effluent quality discharged from the Facility to the Salinas River is maintained. This Order establishes a maximum daily effluent limitation of 10 mg/L (as N) for total nitrogen, at Discharge Points 002A and 002B, to ensure that the level of effluent quality discharged from the Facility is protective of beneficial uses in Huerhuero Creek and the underlying groundwater basin.

4.3.6.8. **TDS, Sulfate, Chloride, and Sodium.** Based on analysis of effluent data, the RPA determined the reasonable potential for TDS, sulfate, chloride, and sodium to cause or contribute to in-stream excursions of WQOs established in the Basin Plan.

In 2015, the City completed a new potable water treatment plant and began supplying water delivered by pipeline from Nacimiento Lake. This new water supply has reduced the hardness, TDS, sulfate, chloride, and sodium levels in the potable water supply. This has resulted in reduced TDS, sulfate, chloride, and sodium levels in the wastewater treatment plant influent.

Although Nacimiento water supply has improved the quality of the Discharger's water supply, the water supply is still relatively hard during dry months when water demand is high and Nacimiento water must be supplemented with groundwater. Many of the Discharger's water and sewer customers use self-regenerating water softeners. The Discharger has a program to regulate industrial sources of salt. Collection system monitoring conducted in October 2008 demonstrated that residential users are the greatest contributors of salt to the City's wastewater system. Ongoing control of residential self-regenerating water softeners will contribute to the achievement of water quality objectives.

This Order retains the monthly average effluent limitations for TDS, sulfate, chloride, and sodium at Discharge Points 001B and 001C from Order No. R3-2011-0002. Section IV.C.8 of the Fact Sheet in Order No. R3-2011-0002, which contains the technical analysis for these effluent limitations that considered site-specific surface water and groundwater quality conditions as well as downstream beneficial uses, is hereby incorporated into the Fact Sheet for this Order.

This Order establishes the same effluent limitations for TDS, sodium, and chloride at Discharge Points 002A and 002B to protect the beneficial uses of Huerhuero Creek and the underlying groundwater basin. Section 4.4.2 of the Fact Sheet in this Order provides further justification for establishing TDS, sodium, and chloride effluent limitations at Discharge Points 002A and 002B. The "Antidegradation Analysis for Recycled Water Discharge to Huerhuero

Creek” (RMC, Woodard & Curran 2017), referenced in section 4.4.2 of the Fact Sheet, concluded that the Facility’s discharges to Huer Huero Creek were not found to have the potential to cause or contribute to exceedances of the sulfate groundwater water quality objectives established for the Paso Robles Sub-Basin of the Paso Robles Groundwater Basin or to exceed the sulfate effluent limits established in Order No. R3-2011-0002 for the Salinas River discharges.

4.3.7. State Implementation Policy

4.3.7.1. **Bacteria.** The Facility receives domestic wastewater and discharges to surface waters with the water contact recreation beneficial use (REC-1). Because of the nature of domestic wastewater, discharges from publicly owned treatment works with these discharge characteristics have the reasonable potential to cause or contribute to an exceedance of water quality criteria for bacteria.

On August 7, 2018, the State Water Board adopted Part 3 of the Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Bacteria Provisions and a Water Quality Standards Variance Policy, which establishes water quality objectives for reasonable protection of people that recreate within all surface waters, enclosed bays, and estuaries of the state that have the water contact recreation beneficial use (REC-1). In accordance with the water quality objectives outlined in the statewide Bacteria Provisions for the protection of waters used for water contact recreation, disinfected effluent shall not contain *E. coli* exceeding the below limitations.

In waters where the salinity is less than 1 part per thousand (ppt) 5 percent or more of the time:

- The concentration of *E. coli* shall not exceed 100 colony forming units (cfu) per 100 milliliters (mL) as a six-week rolling geometric mean, calculated weekly.
- A statistical threshold value (STV) of 320 cfu/100 mL for *E. coli* shall not be exceeded by more than 10 percent of the samples collected in a calendar month and calculated in a static manner.

The Central Coast Ambient Monitoring Program (CCAMP) has a monitoring site, upstream of Discharge Points 001B and 001C, on the Salinas River at 13th Street in Paso Robles (monitoring site no. 309PSO). Between 1999 and 2012, CCAMP staff conducted monitoring at site no. 309PSO, and all salinity values were less than 1 ppt. During the development of this Order, no salinity data was readily available for Huerhuero Creek. Because Huerhuero Creek outlets to the Salinas River, this Order also applies the *E. coli* limitations, based on salinity values less than 1 ppt, to Discharge Points 002A and 002B.

Order No. R3-2011-0002 established effluent limitations for total coliform bacteria based on applicable water quality criteria for the Salinas River. The new state bacteria water quality objectives supersede numeric water quality objectives for bacteria for the REC-1 beneficial use contained in a Basin Plan prior to August 7, 2018; therefore, this Order establishes *E. coli* effluent limitations for Discharge Points 001B and 001C, in place of the previous total

coliform effluent limitations. This Order establishes *E. coli* effluent limitations at Discharge Points 002A and 002B.

4.4. Final Effluent Limitation Considerations

4.4.1. Anti-Backsliding Requirements

Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. The effluent limitations in this Order are at least as stringent as the effluent limitations in the previous order, with the exception of effluent limitations for bis(2-ethylhexyl) phthalate. Effluent data over the previous permit term indicate that discharges from Discharge Points 001B and 001C no longer have a reasonable potential to cause or contribute to an exceedance of water quality criteria for bis(2-ethylhexyl) phthalate. Based on this new information, effluent limitations for bis(2-ethylhexyl) phthalate have not been established in this Order, consistent with State and federal anti-backsliding requirements, including CWA section 402(o)(2)(B)(i).

This Order also replaces total coliform bacteria effluent limitations at Discharge Points 001B and 001C with effluent limitations for *E. coli*. This change is consistent with the new State Water Board adopted Part 3 of the Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Bacteria Provisions and a Water Quality Standards Variance Policy, Approved August 7, 2018.

4.4.2. Antidegradation Policies

Provisions of this Order are consistent with the anti-degradation provisions in NPDES regulations at 40 C.F.R. 131.12 and State Water Board Resolution No. 68-16.

This Order does not allow for an increase in flow or mass of pollutants to the Salinas River. Therefore, a complete antidegradation analysis is not necessary. The Order requires compliance with applicable federal technology-based standards and with WQBEL's where the discharge could have the reasonable potential to cause or contribute to an exceedance of water quality standards. The permitted discharge to the Salinas River is consistent with 40 C.F.R. section 131.12 and the State Antidegradation Policy because compliance with the permit requirements will result in the use of best practical treatment and control (BPTC) of the discharge and the impact on existing water quality will be insignificant.

The potential impacts of discharging tertiary treated effluent to Huerhuero Creek are also considered. The proposed discharge was analyzed in an "Antidegradation Analysis for Recycled Water Discharge to Huerhuero Creek (RMC, Woodard & Curran 2017)." The Woodard & Curran antidegradation analysis was submitted on behalf of the City and the analysis resulted in a determination that the discharge of tertiary treated effluent to the dry Huerhuero Creek bed would not cause the water quality in Huerhuero Creek to be lowered

because the Discharger plans to discharge only when the creek is dry and does not plan for the new discharges to create surface flows. The Woodard & Curran antidegradation analysis determined that the discharge of tertiary treated effluent to the dry Huerhuero Creek bed may cause the water quality in the groundwater basin underlying Discharge Points 002A and 002B to be slightly degraded for nitrate and salts (total dissolved solids, sodium, and chloride); however, concentrations of each of these constituents would use approximately one percent of the underlying basin's assimilative capacity compared to existing conditions and would continue to comply with drinking water maximum contaminant levels. The Woodard & Curran antidegradation analysis concludes that the discharge to Huerhuero Creek has the potential to help mitigate overdraft of the Paso Robles Groundwater Basin (up to 4,711 acre-feet per year of recharge out of an estimated total annual overdraft of 5,600 – 26,200 acre-feet per year) and that the expected degradation is small (one percent increase in use of assimilative capacity for nitrated and salts) compared to the potential benefits. Accordingly, although there may be very minimal degradation to the Estrella Sub-Basin, any change will be consistent with maximum benefit to the people of the State, will not unreasonably affect present and anticipated beneficial uses of the Estrella Sub-Basin, and will not result in water quality less than that prescribed in the Basin Plan.

To protect the beneficial uses of Huerhuero Creek and the underlying groundwater basin, this Order establishes for Discharge Points 002A and 002B the same TDS, sodium, chloride, and total nitrogen effluent limits as applied in Order No. R3-2011-0002 to Discharge Points 001B and 001C. Therefore, this Order holds the Discharger to an equal standard for TDS, sodium, chloride, and total nitrogen discharge concentrations used at the time of Woodard & Curran antidegradation analysis, so that the Discharger does not contribute to a greater level of degradation than that forecasted by the Woodard & Curran antidegradation analysis. Section IV.C.8 of the Fact Sheet in Order No. R3-2011-0002 contains the technical analysis for these effluent limitations that considered site-specific surface water and groundwater quality conditions as well as downstream beneficial uses.

4.4.3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality-based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions on BOD₅, TSS, and pH. Restrictions on BOD₅, TSS, and pH are discussed in section 4.2 of this Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum, federal technology-based requirements that are necessary to meet water quality standards. For pH, both technology-based effluent limitations and water quality-based effluent limitations are applicable. The more stringent of these effluent limitations are implemented by this Order. These limitations are not more stringent than required by the CWA.

Water quality-based effluent limitations have been derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. To the extent that toxic pollutant water quality-based effluent limitations were derived from the CTR, the CTR is the applicable standard pursuant to 40 C.F.R. section 131.38. The procedures for calculating the individual water quality-based effluent limitations for priority pollutants are based on the CTR implemented by the SIP, which was approved by U.S. EPA on May 18, 2000. Beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by U.S. EPA prior to May 30, 2000. Any water quality objectives and beneficial uses submitted to U.S. EPA prior to May 30, 2000, but not approved by U.S. EPA before that date, are nonetheless "applicable water quality standards for purposes of the CWA" pursuant to 40 C.F.R. section 131.21(c)(1). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

4.4.4. **Selenium Intake Credit**

In limited circumstances, the State Implementation Policy (SIP; 2005) authorizes the Central Coast Water Board to establish "intake credit" in a discharge permit when elevated levels of a pollutant are present in a municipality's potable intake water, leading to discharges of that pollutant from the municipality's wastewater treatment plant at levels that exceed applicable water quality criteria for the receiving stream. When an intake credit is applied, there is no net addition of the pollutant in the discharge compared to the intake water. Criteria for justification of intake credit are described in section 1.4.4 of the SIP and are summarized below.

- The observed maximum background concentration, as determined in section 1.4.3.1 of the SIP, and the intake water concentration of the pollutant exceed the most stringent applicable criterion/objective for that pollutant;
- The intake water credit established in a discharge permit is consistent with any fully approved TMDL that is applicable to the discharge;
- The intake water is from the same body of water as the receiving waterbody;
- The facility does not alter the intake water pollutant chemically or physically in a manner that adversely affects water quality and beneficial uses; and
- The timing and location of the discharge does not cause adverse effects on water quality and beneficial uses that would not occur if the intake water pollutant had been left in the receiving waterbody.

The Discharger requested intake credit for selenium and provided justification in a letter report from TJ Cross Engineers to Central Coast Water Board, dated February 9, 2009. Although this report is over a decade old, it is still relevant to current river and groundwater conditions and the Discharger's municipal water supply system. The Discharger uses three sources of intake water for its municipal supply, and, based on information provided by the Discharger in the report, the Central Coast Water Board has determined that only one of these

sources (intake water from shallow wells within the Salinas River underflow) meets the criteria established by the SIP to justify an intake credit. The Discharger has shown that shallow groundwater (underflow of the Salinas River) is hydrologically connected to the surface flow of the river, and therefore, the river underflow and the surface flow are "the same body of water."

Based on the hydrologic connection and the conclusion that the river underflow and the surface flow of the Salinas River are the same body of water, the Central Coast Water Board has determined that water quality data for the river underflow reflect both background and intake characteristics. In this circumstance, intake water data from 1997 through 2008 show selenium concentrations that consistently exceed the most stringent applicable water quality criterion (5.0 µg/L for chronic freshwater aquatic life criterion). There is no selenium TMDL for this reach of the Salinas River, and, although the City's potable water treatment plant physically alters intake water from the Salinas River underflow by dilution with two other intake water sources, this alteration does not "adversely affect water quality." Finally, the timing and location of the discharge does not cause adverse effects on water quality and beneficial uses that would not occur if the intake water pollutant had been left in the groundwater.

Based on methods of the SIP and using effluent data collected from May 2015 through September 2019, as well as the most stringent applicable water quality criterion of 5.0 µg/L, this Order establishes effluent limitations for selenium of 3.5 µg/L (average monthly) and 8.2 µg/L (maximum daily) to be protective of water quality. This Order also permits the use of intake credits for selenium when determining compliance with these limitations to account for selenium that originates in the Salinas River underflow.

When effluent samples are collected for determining compliance with the effluent limitations for selenium, the Discharger must take the steps described in section 7.6 of the Order to apply the appropriate intake credit for compliance determination. These steps give credit for the mass of selenium originating in the Salinas River underflow and entering the City's potable water distribution system and apply that intake credit to the measured concentration of selenium in the discharge from the wastewater treatment plant. The "adjusted" effluent concentration is then compared to the average monthly and maximum daily effluent limitations of 3.5 µg/L and 8.6 µg/L, respectively, to determine compliance with effluent limitations. This process ensures that intake credit is given for only that portion of the City's potable water supply that originates from the underflow of the Salinas River.

The City has the following water sources for its municipal water supply portfolio: *Salinas River – river wells*, *Paso Robles Groundwater Basin – basin wells*, and *Nacimiento Water Treatment Plant*. As discussed above, the water supply from the *Salinas River – river wells* meets the criteria for the selenium intake credit in the SIP. Because the portion of water from each municipal water supply source fluctuates throughout the calendar year, the City has indicated that calculating the selenium intake credit just based on the *Salinas River – river wells* would pose challenges. The Discharger provided selenium concentration sampling records

ranging from June 2012 to November 2020 from the *Paso Robles Groundwater Basin – basin wells* and *Nacimiento Water Treatment Plant* water supply sources. Historical records indicate all results of selenium concentrations are less than the maximum daily effluent limitation of 8.6 µg/L. Because taking the selenium concentrations from the comingled water supply will either solely represent the *Salinas River – river wells* (prioritized municipal water source) or will be a diluted sample including *Paso Robles Groundwater Basin – basin wells* and/or *Nacimiento Water Treatment Plant*, this will result in a selenium intake credit that is representative of actual Salinas River underflow conditions or a lower value credit.

The City's water supply system is separated into two portions (east and west), geographically divided by the Salinas River. The Discharger plans to conduct a volume-weighted average calculation using water supply information from the two portions (east and west) to inform the selenium intake credit. Section 1.4.4 of the SIP explains that when a facility discharges pollutants from multiple sources, the same pollutant from other sources shall be assumed to have a concentration that is no greater than the most stringent application criterion/objective.

The equation in Section 7.6 of this Order requires the Discharger to take selenium effluent samples within one day of the potable water supply selenium samples. The Order provides a one-day timeframe to take both sets of samples because the Facility's average hydraulic retention time is 28 hours (approximately one day); therefore, the selenium intake credit should be representative of selenium concentrations in the flows entering the Facility.

4.4.5. Summary of Final Effluent Limitations

4.4.5.1. Discharge Points 001B and 001C

- 4.4.5.1.1. The Discharger shall maintain compliance with the below effluent limitations at Discharge Points 001B and 001C with compliance measured at Monitoring Locations EFF-001B and EFF-001C as described in the Monitoring and Reporting Program, Attachment E:

Table F-10. Final Effluent Limitations – Discharge Points 001B and 001C

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
BOD ₅	mg/L	25	35			
BOD ₅	lbs/day ^[1]	1,022	1,430			
TSS	mg/L	30	45			
TSS	lbs/day ^[1]	1,226	1,839			

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
pH	standard units				6.5	8.3
Oil and Grease	mg/L	10	18			
Settleable Solids	mL/L	0.1	0.3			
Dissolved Oxygen	mg/L				2.0	
Total Chlorine Residual	mg/L				ND ^[2]	
Total Dissolved Solids	mg/L	1,115				
Sodium	mg/L	255				
Chloride	mg/L	355				
Sulfate	mg/L	200				
Nitrogen, Total as N	mg/L	10				
Copper, Total Recoverable	µg/L	8.8		21.4		
Mercury, Total Recoverable	µg/L	0.012		0.024		
Selenium, Total Recoverable	µg/L	3.5 ^[3]		8.6 ^[3]		
Chlorodibromomethane	µg/L	0.40		0.80		
Dichlorobromomethane	µg/L	0.56		1.6		
Acute Toxicity	TUa					Pass ^[4]
Chronic Toxicity	TUc					1.0 ^[4]

^[1] Mass loading limits were calculated using the following formulas:

lbs/day = pollutant concentration (mg/L) * permitted flow (4.9 MGD) * conversion factor (8.34)

^[2] ND = less than 0.1 mg/L. Compliance determination for total chlorine residual shall be based on 99 percent compliance. To determine 99 percent compliance, the following conditions shall be met:

- The total time during which the total chlorine residual values are above 0.1 mg/L (instantaneous maximum value) shall not exceed 7 hours and 26 minutes in any calendar month;
- No single excursion from 0.1 mg/L shall exceed 30 minutes;
- No single excursion shall exceed 2 mg/L; and
- When continuous monitoring is not being performed, standard compliance guidelines shall be followed.

^[3] Compliance with the effluent limitation shall be determined based on the steps described in section 7.6. of the Order.

^[4] As specified in section 5 of the Monitoring and Reporting Program (Attachment E).

4.4.5.1.2. **Percent Removal:** The average monthly percent removal of BOD 5-day 20°C and total suspended solids shall not be less than 85 percent.

4.4.5.1.3. ***E. Coli***

4.4.5.1.3.1. *E. coli* concentrations in the effluent shall not exceed 100 MPN/100 mL, as a 6-week rolling geometric mean; and

4.4.5.1.3.2. *E. coli* concentrations in the effluent shall not exceed 320 MPN/100 mL in more than 10 percent of samples collected in a calendar month, calculated in a static manner.

4.4.5.2. **Discharge Points 002A and 002B**

4.4.5.2.1. The Discharger shall maintain compliance with the below effluent limitations at Discharge Points 002A and 002B with compliance measured at Monitoring Location EFF-002 as described in the Monitoring and Reporting Program, Attachment E:

Table F-11. Final Effluent Limitations – Discharge Points 002A and 002B

Parameter	Units	Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
BOD ₅	mg/L	25	35			
BOD ₅	lbs/day ^[1]	1,022	1,430			
TSS	mg/L	30	45			
TSS	lbs/day ^[1]	1,226	1,839			
pH	standard units				6.5	8.3
Oil and Grease	mg/L	10	18			
Settleable Solids	mL/L	0.1	0.3			
Dissolved Oxygen	mg/L				2.0	
TDS	mg/L	1,115				
Sodium	mg/L	255				
Chloride	mg/L	355				
Nitrogen, Total as N	mg/L	10				

^[1] Mass loading limits were calculated using the following formulas:

lbs/day = pollutant concentration (mg/L) * permitted flow (4.9 MGD) * conversion factor (8.34)

4.4.5.2.2. **Percent Removal:** The average monthly percent removal of BOD 5-day 20°C and total suspended solids shall not be less than 85 percent.

4.4.5.2.3. ***E. Coli***

4.4.5.2.3.1. *E. coli* concentrations in the effluent shall not exceed 100 MPN/100 mL, as a 6-week rolling geometric mean; and

4.4.5.2.3.2. *E. coli* concentrations in the effluent shall not exceed 320 MPN/100 mL in more than 10 percent of samples collected in a calendar month, calculated in a static manner.

4.5. Interim Effluent Limitations – Not Applicable

4.6. Land Discharge Specifications – Not Applicable

4.7. Recycling Specifications

This Order allows the production, onsite use, and limited offsite use of disinfected tertiary recycled wastewater in compliance with applicable state and local requirements regarding the production and use of reclaimed wastewater, including those requirements established by the California Department of Public Health at title 22, sections 60301 - 60357 of the California Code of Regulations, Water Recycling Criteria. This Order includes water reclamation requirements for the Facility pursuant to the State Water Resources Control Board's (State Water Board's) Division of Drinking Water recommendations submitted to the Central Coast Water Board. This Order requires the Discharger to adhere to the requirements outlined in section 4.3 and any additional conditions pursuant to specifications in updated title 22 engineering reports approved by the State Water Board's Division of Drinking Water.

In establishing these recycling specifications in the Order, the Central Coast Water Board considered the factors set forth in California Water Code sections 13263 and 13241, including the technical capabilities of the Facility; the past, present, and probable future uses of the receiving waters; the environmental characteristics of the hydrologic unit; economics; and the need to develop and use recycled water. The Discharger upgraded its facility during the last permit term, and it is both economically feasible and technologically capable of producing disinfected tertiary recycled wastewater that meets the recycling specifications.

4.8. Recycled Water Policy Salt and Nutrient Management Program

Salt and nutrient management program requirements established in this Order are similar to the requirements established in other permits in the Central Coast Region that provide disinfected tertiary treated wastewater for irrigation or land application. The Discharger completed a salt and nutrient management plan for the Paso Robles Groundwater Basin in May 2015. Section 6.3.6.1.4. of this Order specifies that the Discharger may continue to implement its current plan in place of developing and implementing the salt and nutrient management program components outlined in this Order.

5. RATIONALE FOR RECEIVING WATER LIMITATIONS

5.1. Surface Water

Receiving water quality is a result of many factors, some unrelated to the discharge. This Order considers these factors and is designed to minimize the influence of the discharge on the receiving water. Specific water quality objectives established by the Basin Plan to meet this goal for all inland surface waters are included as Receiving Water Limitations in section 5.1. of this Order.

On August 7, 2018, the State Water Board adopted Part 3 of the *Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Bacteria Provisions* and a water quality standards variance policy, which establishes water quality objectives for reasonable protection of people that recreate within all surface waters, enclosed bays, and estuaries of the state that have the water contact recreation beneficial use (REC-1). In accordance with the water quality objectives outlined in the statewide bacteria provisions for the protection of waters used for water contact recreation, the discharge shall not cause *E. coli* to exceed the below limitations.

In waters where the salinity is less than 1 part per thousand (ppth) 5 percent or more of the time:

- The concentration of *E. coli* shall not exceed 100 colony forming units (cfu) per 100 milliliters (mL) as a six-week rolling geometric mean, calculated weekly.
- A statistical threshold value (STV) of 320 cfu/100 mL for *E. coli* shall not be exceeded by more than 10 percent of the samples collected in a calendar month and calculated in a static manner.

The Central Coast Ambient Monitoring Program (CCAMP) has a monitoring site upstream of Discharge Points 001B and 001C on the Salinas River at 13th Street in Paso Robles (monitoring site no. 309PSO). Between 1999 and 2012, CCAMP staff conducted monitoring at site no. 309PSO, and all salinity values were less than 1 ppth.

Order No. R3-2011-0002 established surface water limitations for total coliform bacteria based on applicable water quality criteria for the Salinas River. The new state bacteria water quality objectives supersede numeric water quality objectives for bacteria for the REC-1 beneficial use contained in a Basin Plan prior to August 7, 2018; therefore, this Order establishes *E. coli* surface water limitations in place of the previous total coliform effluent limitations.

5.2. Groundwater

Groundwater limitations included in section 5.2. of this Order include general objectives as established in Chapter 3, Section 3.3.4 of the Basin Plan and specific numeric WQOs for groundwater within the Paso Robles sub-area (Paso Robles sub-basin) groundwater unit as established in Table 3-6 of the Basin Plan. All groundwater limitations in this Order are retained from the previous order.

6. RATIONALE FOR PROVISIONS

6.1. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 C.F.R. section 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 C.F.R. section 122.42, are provided in Attachment D. The Discharger must comply with all standard provisions and with those additional conditions that are applicable under section 122.42.

Sections 122.41(a)(1) and (b) through (n) of 40 C.F.R. establish conditions that apply to all state-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) of 40 C.F.R. allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 C.F.R. section 123.25, this Order omits federal conditions that address enforcement authority specified in 40 C.F.R. sections 122.41(j)(5) and (k)(2) because the enforcement authority under the California Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference California Water Code section 13387(e).

6.2. Special Provisions

6.2.1. Reopener Provisions

The Order may be modified in accordance with the requirements set forth at 40 C.F.R. parts 122 and 124, to include appropriate conditions or limits based on newly available information, or to implement any, new State water quality objectives that are approved by the U.S. EPA. As effluent is further characterized through additional monitoring, and if a need for additional effluent limitations becomes apparent after additional effluent characterization, the Order will be reopened to incorporate such limitations.

6.2.2. Special Studies and Additional Monitoring Requirements

The Order requires the Discharger to conduct accelerated whole effluent toxicity monitoring upon the detection of toxicity in the effluent and requires the Discharger to perform a TRE upon the determination of continued toxicity within the effluent. This requirement is retained from previous order.

6.2.3. Best Management Practices and Pollution Prevention

6.2.3.1. Pollutant Minimization Program. The Discharger is required to minimize the discharge of pollutants consistent with the requirements of section 2.4.5.1 of the State Implementation Policy (SIP). The goal of the Pollutant Minimization Program is to reduce all potential sources of a priority pollutant through pollutant minimization strategies to maintain the effluent concentration at or below water quality-based effluent limitations.

6.2.4. Construction, Operation, and Maintenance Specifications

Section 5.3.4.1. of the Order requires the Discharger to comply with standard NPDES permit provisions based on federal and state regulations. Section 5.3.4.2.

of this Order is required to ensure the potential for spills at the Facility is minimized. These requirements have been retained from Order No. R3-2011-0002.

6.2.5. **Special Provisions for Publicly Owned Treatment Works (POTWs)**

6.2.5.1. **Biosolids.** The use and disposal of biosolids is regulated under federal and State laws and regulations, including permitting requirements and technical standards included in 40 C.F.R. part 503. The Discharger is required to comply with the standards and time schedules contained in 40 C.F.R. part 503, which is enforceable by U.S. EPA because California has not been delegated the authority to implement this program.

Title 27, CCR, Division 2, Subdivision 1, section 20005 establishes approved methods for the disposal of collected screenings, residual sludge, biosolids, and other solids removed from liquid wastes. Requirements to ensure the Discharger disposes of solids in compliance with State and federal regulations have been included in this Order.

6.2.5.2. **Pretreatment.** Section 307(b) of the CWA and federal regulations, 40 C.F.R. part 403 require POTWs with a total design flow greater than 5 MGD and receiving pollutants that pass through or interfere with the operation of the POTW to develop and implement an acceptable industrial pretreatment program. Under 23 California Code of Regulations section 2233(a), the Central Coast Water Board may include a permit condition requiring a local pretreatment program for a publicly owned treatment works treating or designed to treat an average dry weather flow of less than 5 MGD of community wastewater where deemed appropriate.

To determine if the City should be mandated to develop a formal pretreatment program, a U.S. EPA subcontractor conducted a pretreatment compliance inspection of the City's voluntary pretreatment program in June 2013. The U.S. EPA subcontractor found that the City's sewer use ordinance meets the requirements of 40 C.F.R. part 403, yet does not provide the City the authority to require that dischargers notify the City in the event of a discharge or bypass, immediately halt any actual or threatened discharge, or implement its established response plan. The U.S. EPA subcontractor and the Central Coast Water Board determined that the established response plan and sewer use ordinance contain inconsistent enforcement action requirements and do not contain all the elements required by 40 C.F.R. section 403.8(f)(5). Additionally, the U.S. EPA subcontractor identified that the City is not adequately tracking the non-domestic dischargers within its service area, is failing to issue necessary permits required by its own sewer use ordinance, and is not performing frequent enough inspections.

Based on the nature of the industrial users in the City and the results of the U.S. EPA subcontractor inspection, the Central Coast Water Board transmitted a letter on November 22, 2013 requiring the City to develop a formal program for industrial discharges to the City's Facility that meets federal and state

pretreatment program regulations. A pretreatment program is required to prevent the introduction of pollutants that will interfere with treatment plant operations or sludge disposal and prevent pass through of pollutants that exceed water quality objectives, standards, or permit limitations.

The Discharger has run a voluntary pretreatment program since 2007. The program operates under the sewer use ordinance, which includes the federal requirements for a pretreatment program under 40 C.F.R. part 403, including local discharge limits. The Discharger most recently updated its local limits on December 1, 2020, to reflect the last upgrade to the Facility and disconnection of Templeton Community Services District from the Discharger's sewer system in 2019. Currently, the City permits and inspects one categorical industrial user, three zero-discharge categorical industrial users, and two significant industrial users. There is also one non-significant categorical industrial user. The Discharger's program also inspects food establishment to ensure the grease control devices are properly installed and maintained under its fats, oils, and grease program.

In July 2017, a U.S. EPA subcontractor conducted another pretreatment compliance inspection. The Discharger addressed the July 2017 inspection comments and submitted a revised program to the Central Coast Water Board in October 2018. In June 2019, a U.S. EPA subcontractor conducted a follow-up review of files and documents related to the Discharger's revised October 2018 developing pretreatment program. On December 24, 2020, the Central Coast Water Board provided feedback from the June 2019 pretreatment compliance inspection to the Discharger. The Discharger is currently updating its program to address feedback from the June 2019 pretreatment compliance inspection, address changes to sources including disconnection of Templeton Community Services District from the Discharger's sewer system, and incorporate updated local limits.

The Discharger does not yet have an approved pretreatment program. The Central Coast Water Board is the approval authority for the City's pretreatment program and is responsible for the review and approval of new pretreatment programs in accordance with 40 C.F.R. section 403.11. The approval process includes circulation of a public notification announcing the opportunity for public review and public hearing of either a pretreatment program submittal or proposed changes to a previously approved pretreatment program.

The Discharger shall continue to implement and enforce its pretreatment program. If the Discharger fails to perform the pretreatment functions, the Central Coast Water Board, the State Water Board, or U.S. EPA may take enforcement actions against the Discharger as authorized by the CWA.

- 6.2.5.3. **Discharges of Stormwater.** Discharges of stormwater from POTWs with a design capacity greater than 1.0 MGD are applicable for coverage under General State Water Board Order No. 2014-0057-DWQ, NPDES General Permit No. CAS000001, *Waste Discharge Requirements for Dischargers of*

Stormwater Associated with Industrial Activities Excluding Construction Activities.

6.2.5.4. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** The Order requires coverage by and compliance with applicable provisions of General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ). This General Permit, adopted on May 2, 2006, is applicable to all “federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California.” The purpose of the General Permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows.

6.2.5.5. **Resource Recovery from Anaerobically Digestible Material.** Some POTWs choose to accept organic material such as food waste, fats, oils, and grease into their anaerobic digesters for co-digestion to increase production of methane and other biogases for energy production and to prevent such materials from being discharged into the collection system, which could cause sanitary sewer overflows. The California Department of Resources Recycling and Recovery has proposed an exemption from requiring Process Facility/Transfer Station permits where this activity is regulated under waste discharge requirements or NPDES permits. The proposed exemption is restricted to anaerobically digestible material that has been prescreened, slurried, and processed/conveyed in a closed system to be co-digested with regular POTW sludge. The proposed exemption requires that a POTW develop standard operating procedures for the proper handling, processing, tracking, and management of the anaerobically digestible material before it is received by the POTW.

Standard operating procedures are required for POTWs that accept hauled food waste, fats, oil, and grease for injection into anaerobic digesters. The development and implementation of standard operating procedures for management of these materials is intended to allow the California Department of Resources Recycling and Recovery to exempt this activity from separate and redundant permitting programs. If the POTW does not accept food waste, fats, oil, or grease for resource recovery purposes, it is not required to develop and implement standard operating procedures.

6.2.6. Other Special Provisions

6.2.6.1. **Recycled Water Policy Salt and Nutrient Management Program.** This Order requires the Discharger to develop and implement a Salt and Nutrient Management Program. This requirement is based on the Recycled Water Policy. The Discharger completed a Salt and Nutrient Management Plan for the Paso Robles Groundwater Basin in May 2015. Section 6.3.6.1.4. of this Order specifies that the Discharger may continue to implement its current plan in

place of developing and implementing the salt and nutrient management program components outlined in this Order.

6.2.6.2. **Salt Reduction Plan.** This Order requires the Discharger to continue implementation of its Salt Reduction Plan, including the specific measure described in section 2.4.2. of this Fact Sheet. This will ensure that the Facility continues to decrease salt loadings attributable to the discharge to the Salinas River.

6.2.6.3. **Climate Change Adaptation Program.** The Discharger has taken significant steps to adapt, mitigate, and prepare for climate change. Section 2.1 of the Fact Sheet summarizes these actions. This Order requires the Discharger to submit a Climate Change Adaptation Program to ensure the Discharger continues to identify and address climate change hazards and vulnerabilities at the Facility.

The Central Coast Water Board is addressing the threats of climate change and flooding by including provisions in new and reissued orders that ensure climate change mitigation and adaptation strategies are implemented. There is widespread scientific consensus that climate change is occurring and will continue at an accelerating rate into the future. Extreme weather events, including drought, high-intensity precipitation, flooding, and extreme heat have occurred through much of California in the recent years and are projected to increase in frequency, extent, or intensity due to climate change.

Climate change has the potential to impact discharging facilities through inundation, storm impacts, an erosion, increasing the risk of accidental discharge that results in discharge permit violations. These events have significant implications for wastewater treatment and operations, such as increased corrosion, deposition of solids, infiltration, overflows, inundation of facilities, impairment of treatment processes, and disruption of power or electrical components. Due to the long-term nature of these risks, there is a need to avoid piecemeal or reactionary adaptation and instead undertake proactive, long-term planning with consideration of various adaptation strategies that both keep facilities safe, maintain safe discharging practices, and avoid impacts to resources.

6.2.7. **Compliance Schedules – Not Applicable**

7. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

CWA section 308 and 40 C.F.R. sections 122.41(h), (j)-(l), 122.44(i), and 122.48 require that all NPDES permits specify monitoring and reporting requirements. California Water Code section 13383 authorizes the Central Coast Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements related to discharges to navigable waters or publicly owned treatment works. Water Code section 13267 further authorizes the Central Coast Water Board to establish such requirements related to discharges of waste to any waters of the state within its region. The Monitoring and Reporting Program (MRP), Attachment E of this Order, establishes monitoring, reporting, and recordkeeping requirements that

implement federal and state requirements. The following provides the rationale for the inclusion of the monitoring and reporting requirements contained in the MRP for this facility to ensure compliance with Order requirements to ensure protection of water quality and beneficial uses. The burden, including costs, of these requirements bears a reasonable relationship to the need for and benefits to be obtained through the provision of these reports.

7.1. Influent Monitoring

Monitoring requirements for BOD₅ and TSS have been retained from Order No. R3-2011-0002 to determine compliance with the Order's percent removal requirement for these pollutants. This permit also establishes influent monitoring requirements for flow to aid in the compliance determination with Facility's design flow and effluent limitations for flow.

Annual effluent monitoring for TDS, boron, and fluoride has been added to be consistent with other Central Coast Water Board monitoring programs, such as Central Coast Ambient Monitoring Program and Irrigated Lands Program. The additional parameters will help efforts to discern sources of water quality impacts in the watershed through cation and anion mapping of various water sources.

7.2. Effluent Monitoring

Effluent monitoring is necessary to determine compliance with effluent limitations and evaluate compliance with applicable water quality objectives and criteria. Most effluent monitoring requirements have been retained from Order No. R3-2011-0002.

Effluent monitoring frequency for pH was reduced from daily to five times per week due to long-term compliance history for pH and to allow the Discharger to operate its laboratory more efficiently. The effluent monitoring requirement for total chlorine residual was reduced from daily to daily only when using chlorine for disinfection or to prevent regrowth in conveyance system for the flow discharged to Huerhuero Creek (Discharge Points 002A and 002B). The effluent monitoring requirement for chloroform (previously listed as trichloromethane) and bromoform (previously listed as tribromomethane) was reduced from quarterly to quarterly only when using sodium bisulfite or other dechlorination agents on day of monitoring. Effluent monitoring frequency for bis(2-ethylhexy) phthalate was decreased from once per month to once per permit term due to RPA results and removal of effluent limitations for this parameter. Bis(2-ethylhexy) phthalate will be conducted once per permit term with CTR pollutant monitoring. Effluent monitoring frequency for acute and chronic toxicity is decreased from quarterly to once per year due to upgrades to the Facility to address toxicity problems. Effluent monitoring for turbidity was added because turbidity is a controlling indicator for measuring performance of the Facility's upgraded treatment processes.

Part 2 of the *Water Quality Control Plan for Inland Surface Waters, Enclosed Bays, and Estuaries of California – Tribal and Subsistence Fishing Beneficial Uses and Mercury Provisions* (SIP Part 2) specifies that dischargers with mercury effluent limitations that are authorized to discharge at a rate less than 5 MGD are required to conduct routine total mercury monitoring in the effluent at a frequency no less

than once each year for the permit duration. Therefore, effluent monitoring frequency for mercury was increased in this Order from once per permit term to once per year.

Effluent monitoring was established for Discharge Points 002A and 002B due to the addition of this outfall as a new discharge point from the Facility to Huerhuero Creek. The pipeline conveying tertiary treated effluent to Discharge Points 002A and 002B may also convey recycled water to users in the future. Total coliform effluent monitoring is required for Discharge Points 002A and 002B to ensure the Discharger is not discharging water into the recycled water pipeline that does not meet recycled water specification.

Annual effluent monitoring for calcium, magnesium, potassium, bicarbonate, carbonate, and fluoride has been added to be consistent with other Central Coast Water Board monitoring programs, such as Central Coast Ambient Monitoring Program and Irrigated Lands Program. The additional parameters will help efforts to discern sources of water quality impacts in the watershed through cation and anion mapping of various water sources.

7.3. Whole Effluent Toxicity Testing Requirements

Whole effluent toxicity (WET) limitations protect receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. Acute toxicity testing measures mortality in 100 percent effluent over a short test period and chronic toxicity testing is conducted over a longer period of time and may measure mortality, reproduction, and or growth. Acute and chronic toxicity monitoring requirements are retained from the previous order.

7.4. Recycled Water Monitoring

Recycled water monitoring is necessary to evaluate compliance with recycling specifications detailed in section 7.1 of this Order.

7.5. Receiving Water Monitoring

7.5.1. Surface Water

Surface water receiving water monitoring requirements are necessary to evaluate compliance with water quality objectives and the protection of beneficial uses. Surface water monitoring requirements have been retained from the previous order.

7.5.2. Groundwater

Groundwater monitoring requirements are necessary to evaluate compliance with water quality objectives and the protection of beneficial uses. Groundwater monitoring requirements have been retained from the previous order with a reduction in the required number of groundwater monitoring wells. The previous order required the Discharger continue monitoring at its two existing groundwater monitoring wells (one upstream and one downstream of the discharge points) and establish a third groundwater monitoring well downgradient of the discharge points to inform groundwater flow direction. The Discharger was unable to gain access to private property to establish a third well, so it has continued monitoring

at its two existing groundwater monitoring wells. Multiple hydrogeology studies of the Paso Robles Groundwater Basin document that groundwater in the shallow alluvium of the Salinas River consistently flows northward, in the same direction as surface water flow. This Order requires the Discharger continue monitoring at its two existing groundwater monitoring wells to monitor the influence of the wastewater discharge on groundwater quality. Ongoing groundwater monitoring conducted as part of the Groundwater Sustainability Plan for the Paso Robles Groundwater Basin may be used to periodically validate groundwater flow direction remains unchanged.

7.6. Pretreatment Monitoring

Pretreatment monitoring shall be reported in the Annual Report in accordance with requirements of 40 C.F.R. section 403.8.

7.7. Potable Water Supply Monitoring

Potable water supply monitoring requirements are retained from the previous order. This Order also establishes monitoring for flow and selenium concentration to inform the selenium intake credit.

7.8. Other Monitoring Requirements

7.8.1. Discharge Monitoring Report-Quality Assurance (DMR-QA) Study Program

Under the authority of section 308 of the CWA (33 U.S.C. § 1318), U.S. EPA requires major and selected minor dischargers under the NPDES Program to participate in the annual DMR-QA Study Program. The DMR-QA Study evaluates the analytical ability of laboratories that routinely perform or support self-monitoring analyses required by NPDES permits. There are two options to satisfy the requirements of the DMR-QA Study Program: (1) The Discharger can obtain and analyze a DMR-QA sample as part of the DMR-QA Study; or (2) Per the waiver issued by U.S. EPA to the State Water Board, the Discharger can submit the results of the most recent Water Pollution Performance Evaluation Study from its own laboratories or its contract laboratories. A Water Pollution Performance Evaluation Study is similar to the DMR-QA Study. Thus, it also evaluates a laboratory's ability to analyze wastewater samples to produce quality data that ensure the integrity of the NPDES Program. The Discharger shall ensure that the results of the DMR-QA Study or the results of the most recent Water Pollution Performance Evaluation Study are submitted annually to the State Water Board. The State Water Board's Quality Assurance Program Officer will send the DMR-QA Study results or the results of the most recent Water Pollution Performance Evaluation Study to U.S. EPA's DMR-QA Coordinator and Quality Assurance Manager.

7.8.2. Annual Volumetric Reporting of Wastewater and Recycled Water

To establish a realistic estimate of statewide recycled water use and potential for increased recycled water use statewide, the Recycled Water Policy requires Dischargers to report the volume of treated wastewater and recycled water. The annual report will meet implementation needs of the Recycled Water Policy and

fill data gaps for additional statewide water planning efforts. The burden and cost of preparing the report is reasonable and consistent with the interest of the state in maintaining water quality and developing alternative water supplies to increase water resiliency. The Discharger shall ensure that all volumetric reporting requirements from this Order are submitted in electronic format via the State Water Board's Internet GeoTracker system at <http://geotracker.waterboards.ca.gov/>. The State Water Board will evaluate progress towards the recycled water goals in the Recycled Water Policy and evaluate the need to update the recycled water goals in the future based on consistent statewide data.

8. PUBLIC PARTICIPATION

The Central Coast Water Board considered the reissuance of WDRs that will serve as an NPDES permit for City of El Paso de Robles Wastewater Treatment Plant. As a step in the WDR renewal process, Central Coast Water Board staff developed tentative WDRs and encouraged public participation in the WDR adoption process.

8.1. Notification of Interested Parties

The Central Coast Water Board notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and provided an opportunity to submit written comments and recommendations. Notification was provided via the Central Coast Water Board's website.

The public had access to the agenda and any changes in dates and locations through the Central Coast Water Board's website at:
<<http://www.waterboards.ca.gov/centralcoast/>>

8.2. Written Comments

Interested persons were invited to submit written comments concerning the tentative WDRs.

To be fully responded to by staff and considered by the Central Coast Water Board, the written comments were due at the Central Coast Water Board office by 5:00 p.m. on **February 15, 2021**.

Comment letters and responses to comments were provided in Attachment 1 to the staff report for consideration of adoption of the WDRs.

8.3. Public Hearing

The Central Coast Water Board held a public hearing on the WDRs during its regular Board meeting on the following date and time and at the following location:

Date:	April 16, 2021
Time:	9:00 am – 5:00 pm
Location:	Via web conference as mandated by State guidance on public gatherings

Interested persons were invited to attend. At the public hearing, the Central Coast Water Board invited testimony pertinent to the discharge, WDRs, and permit. For

accuracy of the record, important testimony was requested in writing. Central Coast Water Board staff and a representative from the Discharger were in attendance to respond to questions. The Central Coast Water Board approved the proposed order 5-0.

8.4. Reconsideration of Waste Discharge Requirements

Any person aggrieved by this action of the Central Coast Water Board may petition the State Water Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., within 30 calendar days of the date of adoption of this Order at the following address, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100
Or by email at waterqualitypetitions@waterboards.ca.gov

For instructions on how to file a petition for review, see the State Water Board's website on instructions for filing water quality petitions at:
https://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetitioninstr.shtml.

8.5. Information and Copying

The Report of Waste Discharge, other supporting documents, and comments received are on electronic file and may be inspected. Due to State guidance in response to Covid-19, please contact the Central Coast Water Board to facilitate the electronic review of documents in lieu of a physical office visit. Copying of documents may be arranged through the Central Coast Water Board by contacting the Central Coast Water Board at centralcoast@waterboards.ca.gov or (805) 549-3147.

8.6. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Central Coast Water Board, reference this facility, and provide a name, address, and phone number.

8.7. Additional Information

Requests for additional information or questions regarding this order should be directed to Tamara Anderson at (805) 549-3334 or tamara.anderson@waterboards.ca.gov or Phil Hammer at (805)-549-3882 or phillip.hammer@waterboards.ca.gov.